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The *Hukm*: What is Islamic Law?

The purpose of studying the *hukm shar'ī* is to understand the conceptual part of Islamic law. This study provides the framework within which the meaning of Islamic law is understood, the nature of its rules is grasped, and the operation of the legal system is seen. In the figure of the general format of the theory of Islamic law, described earlier, this part is shown on the left side. (See p. 26 above).

3.1 The Three Elements of the *Hukm Shar'ī*

The *hukm shar'ī* in its literal sense conveys the meaning of a rule of Islamic law.⁷⁵ It comes into being through the operation of its three elements (*arkān*).⁷⁶ These elements are:

75. The term *hukm* (plural *ahkām*) has been translated into English in different ways: injunction, command, prescription, and *shar'ī* *ah*-value. None of these terms conveys completely the comprehensive meaning of the term, as will be obvious in the discussions to follow. It is preferable to retain such terms in their untranslated forms.

76. *Arkān* is the plural of *rukn*. A *rukn* may be conceived as a pillar on which a thing is erected. If we pull out the pillar the structure on top of it will collapse. A *rukn*, therefore, is an essential element of a thing without

1. **The Lawgiver (*Hākim*).** The true source from which the *ḥukm* originates. The original source for Islamic law is the *Hākim* or the Lawgiver, that is, Allah Almighty;
2. **The Act (*Maḥkūm Fīh*).** The *maḥkūm fīh* or the act on which the *ḥukm* operates—also called the *maḥkūm bih*; and
3. **The Subject (*Maḥkūm 'Alayh*).** The *maḥkūm 'alayh* or the subject (legal person) for whose conduct the *ḥukm* is stipulated.

A discussion of the meaning of the *ḥukm shar'ī* in Islamic law amounts to asking the question: what is Islamic law? The response deals with Islamic law as a system as well as with individual rules. The study of the *ḥukm shar'ī*, when it deals with the nature of rules, reveals the types of legal obligation created by the rule. It tells us that all the rules may not create an obligation and that some rules are laid down by the Lawgiver to facilitate the operation of other rules.⁷⁷ A classification of the various types of rules or *aḥkām* becomes necessary to grasp these meanings.

The first of the three *arkān* (elements) of the *ḥukm shar'ī* mentioned above is the Lawgiver (the *Hākim*). In the study of this element, it is shown that Allah is the Ultimate and True Source of all laws in Islam. Further, the implication of this statement is examined, that is, what do we mean by saying that Allah is the source of all laws? The second element deals with the act on which the *ḥukm* operates and the legal rights that are affected. The third element deals with the types of subjects who are affected by a *ḥukm*, that is, those who possess full legal capacity and those who do not. It also deals with cases in which the legal capacity of the subject is restricted or becomes defective.

3.2 The Meaning of the *Hukm Shar'ī* or the Meaning of Islamic Law

The Arabic word *ḥukm* (pl. *aḥkām*) in its literal sense means a command. In its technical sense it means a "rule" This may be a rule of any kind. Thus, it may be a rational rule, like $2 + 2 = 4$, or the rule

which it cannot stand.

77. This is where Islamic law differs with the approach adopted by John Austin for law: the imperative theory of law. See below.

that the whole is greater than its parts. It may be a rule perceived by the senses, like fire burns. Again, it may be based upon experience or experiment, like aspirin is good for headache. Here, however, we are concerned with the legal rule, which is called the *hukm shar'ī*.

The Muslim jurists give us a definition of the *hukm shar'ī* when they attempt to answer the question: What is Islamic law? They define it as:

خطاب الله تعالى المتعلق بأفعال المكلفين بالافتضاء أو التخيير أو الوضع

A communication from Allah, the Exalted, related to the acts of the subjects through a demand or option or through a declaration.⁷⁸

This definition highlights the following important points:⁷⁹

1. The *hukm* or a rule of law (to be referred to as *hukm* from now on) is a communication from Allah. This means that it is not treated merely as a command.⁸⁰ It also means that a communication from anyone else cannot be considered as a *hukm*, be he a ruler or someone else in authority.
2. The communication is related to the acts of the subjects. The communication invariably gives rise to a rule of some kind, and enables the jurist to understand whether the requirement is for the commission of an act or its omission, or whether a choice has been granted for the commission or omission of such act. While every *hukm* is related, directly or indirectly, to the act of the subject, the declaratory *hukm* may address situations or sets of facts. For example, the *hukm* may tell us that the time for the evening prayer is related to the setting of the sun. Now, this is not an act of the subject, but an act (the evening prayer) is indirectly addressed. The words "acts of the subjects" in the definition are, therefore, to be read with this qualification. Thus, the words of Allah, "Do not go near unlawful sexual intercourse (*zinā*)," [Qur'ān 17 : 32] contain a *hukm* that requires omission and affects conduct. Some jurists

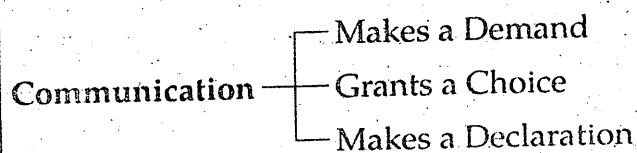
78. Ṣadr al-Sharī'ah, *al-Tawdīh*, vol. 1, 28.

79. For an analysis see *ibid.*, 28–32.

80. The method is, therefore, different from the one adopted by John Austin for law in his well known imperative theory or the command theory of law.

divide the *khitāb* into two types: *khitāb jinā'ī* and the *khitāb* of *mu'āmalāt* (criminal and civil liability).

3. The *ḥukm* may be expressed through a demand. The demand in this case may be for the commission of an act or its omission. In each case, the demand may be expressed in binding terms or otherwise. When the demand is expressed in binding terms and requires the commission of an act, the *ḥukm* creates an obligation (*ijāb*). When the terms used are not binding or absolute, the *ḥukm* gives rise to a recommendation (*nadb*) for the commission of the act. The jurists use various rules to decide when a demand has been expressed in binding terms.



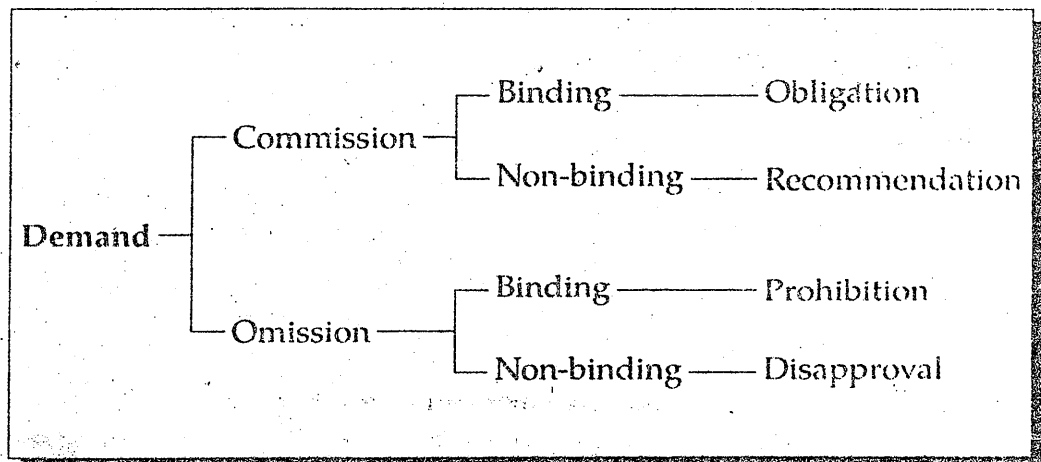
When the demand in the *ḥukm* is for abstention from or omission of an act and is expressed in binding or absolute terms, the *ḥukm* conveys a prohibition (*tahrīm*). If the demand, for omission, is not expressed in binding terms the act is looked down upon and conveys disapproval (*karāhah*).

Al-Ghazālī describing the division of commission and omission and the resulting rules, says: When there is a demand for the commission of an act, we conclude that there is a command (*amr*), but when this command is accompanied by additional evidence about a consequential penalty for omission the act is obligatory *wājib*. In case we do not find such evidence, the act is recommended. In the case of a demand for the omission of an act, if there is accompanying evidence entailing punishment for the omission, the act is *ḥarām*; if not, the act is *makrūh*.⁸¹

In any case, we have four categories of obligations arising from a demand: obligation, recommendation, disapproval, and prohibition. These obligations are mostly associated with

81. Al-Ghazālī, *al-Mustasfā min 'Ilm al-Uṣūl*, vol. 1, 42. See also al-Rāzī, *al-Maḥṣūl*, vol. 1, 93–104.

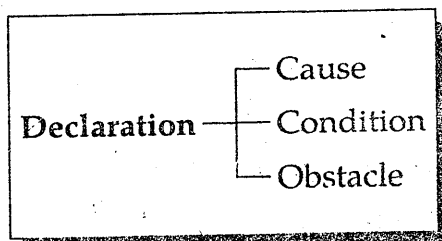
sanctions. When the obligations relate to ritual or worship the sanctions pertain to the hereafter or to censure through public opinion, and when the obligations relate to mundane affairs they invoke sanctions in the form of punishment in this world.



4. The *ḥukm* may grant a choice or option to the subject for the commission or omission of an act. If a text tells the subject to "eat and drink," a choice is offered to him that he may exercise when he likes. In other words, the subject is free to perform the act at his discretion. The bulk of the Islamic laws fall under this category and include all kinds of contracts and transactions. The Lawgiver, it is sometimes said, is indifferent to the performance of such acts.⁸²
5. The communication may be expressed through a declaration. In this case, the communication declares or determines the relationship of an act, or set of facts, with the *ḥukm*. The communication, therefore, declares that an act or set of facts is the cause (*sabab*), condition (*shart*), or an impediment (*mānī'*) for the application of the *ḥukm*. For example, in the *ḥukm* of the payment of *zakāt* (obligatory religious contribution), the possession of a minimum amount of wealth (*niṣāb*) is the cause for the application of the *ḥukm*, having retained this wealth for a year (*ḥawl*) is a condition for the *ḥukm*, and the existence of debts against the subject may be the

82. In the discussion of the *mubāḥ*, see p. 88 below, we will see that this indifference is not absolute. For example, eating and drinking is permissible, but a person cannot give up eating altogether. If he does so, the rule will convert itself from indifference to one of obligation.

impediment or obstacle in the way of fixing liability for *zakāt*. The declaratory communication explains the relationship of all these categories. Further, the declaratory communication tells us whether an act has been performed properly (*ṣahīh*), with some removable defect (*fāsid*), or has been done in a totally incorrect way (*bāṭil*).



If we separate demands and choices from declaratory communications, we have two main categories for the *ḥukm*. The first is called the *ḥukm taklīfī* or the obligation-creating *ḥukm*. The second category is called the *ḥukm wad'ī* or the declaratory *ḥukm*. We shall first take up the discussion of the obligation creating rule or the *ḥukm taklīfī*.

3.3 The *Ḥukm Taklīfī*—Obligations and Duties

The *ḥukm taklīfī* or the obligation-creating rule is viewed from two perspectives in Islamic law. It is viewed from the point of view of the *uṣūlī*, who is a specialist in *uṣūl al-fiqh*, and from the point of view of the *faqīh*, who is a specialist in *fiqh* or the substantive law.⁸³ It is possible, though, that one jurist may be performing both functions. The definition of the obligation-creating rule from the point of view of the *uṣūlī* is: "The demand of the Lawgiver requiring the subject to perform or omit an act or to have a choice between commission and omission." The definition from the point of view of the *faqīh* is: "The legal attribute of the acts of the subject after the demand of the Lawgiver requiring its commission or omission or to His granting a choice between commission and omission."

It is obvious that the earlier jurists were not providing different definitions to satisfy the requirements of their individual

83. In reality, the two perspectives are those of the legislature and the judiciary: the laying down of the law and its implementation.

perspectives. There is a legal basis for the two views. When we look at these categories from the point of view of the jurist who is concerned with derivation of the *ḥukm* (that is, the *uṣūlī*), we call them obligations. The *uṣūlī* is concerned with the question as to whether the *ḥukm* has created an obligation. On the other hand, the *faqīh* is more concerned with the performance of the acts and he, therefore, looks at the duties that are created. The two perspectives are, thus, complementary. The *uṣūlī* is looking at the obligations that are created by the *ḥukm shar'ī*, while the *faqīh* is looking at the corresponding duties that arise. A similar distinction is made with respect to the *ḥukm waḍ'ī* as well.

These two perspectives have an effect on the terminology employed in *uṣūl al-fiqh*. Let us list the different categories from both perspectives to see the difference in the terminology.

3.3.1 The *ḥukm taklīfī* from the perspective of the *uṣūlī*

The *uṣūlī*, who is emphasising the obligations created by the *ḥukm*, uses the following terminology for the five categories:⁸⁴

1. Obligation (*ijāb* — إيجاب)
2. Recommendation (*nadb* — ندب)
3. Disapproval (*karāhah* — كراهة)
4. Prohibition (*tahrīm* — تحريم)
5. Permissibility (*ibāhah* — إباحة)

The *uṣūlī* is saying that the *ḥukm* to be derived from the texts is creating an obligation, or a recommendation and so on.

3.3.2 The *ḥukm taklīfī* from the perspective of the *faqīh*

The *faqīh*, who is emphasising the performance of duties created by the *ḥukm*, states the five categories in the following terminology:⁸⁵

1. Obligatory (*Wājib* — واجب)

84. Ṣadr al-Sharī'ah, *al-Tawdīh*, vol. 1, 30; vol. 2, 678.

85. Ibid., vol. 2, 678.

2. Recommended (*Mandūb* — مندوب)
3. Reprehensible, Disapproved (*Makrūh* — مكروه)
4. Prohibited (*Harām* — حرام)
5. Permissible (*Mubāḥ* — مباح)

The *faqīh* is saying that the *act* to which the derived *ḥukm* is related is obligatory, recommended and so on. He will be focusing on duties and their performance all the time.

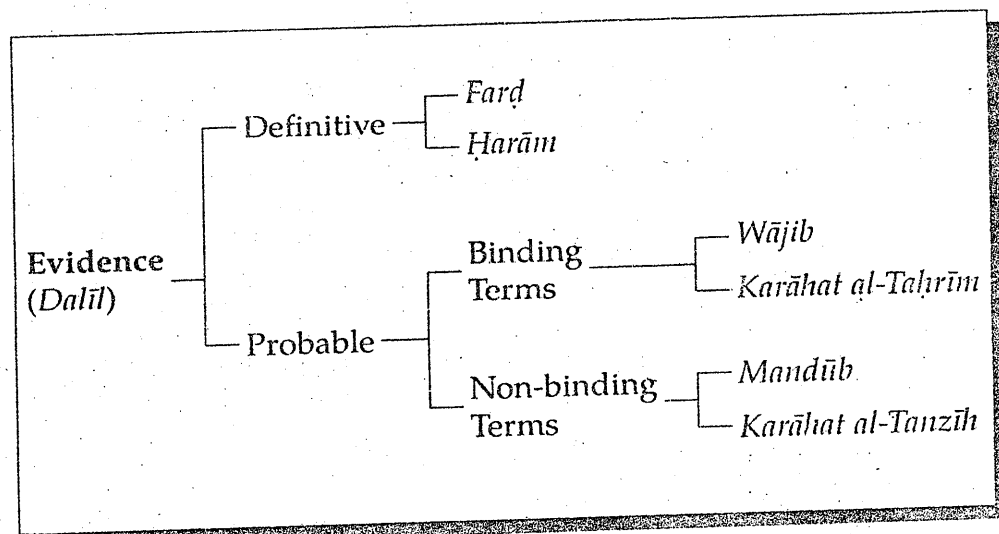
3.3.3 The *ḥukm taklīfī* according to the Ḥanafīs

These five categories of obligations and duties emerge from the operation of laws in the opinion of the majority of the Sunnī schools. The Ḥanafīs derive seven categories from the same definition. Let us view the categories derived by the Ḥanafīs in terms of duties, that is, from the perspective of the *faqīh*, who is concerned more about the performance of duties.

1. *Fard*: Obligatory. This duty arises from an evidence or source that is definitive⁸⁶ with respect to the authenticity of its transmission.

86. The meanings of the terms "definitive" and "probable" are explained later on (see section 9.2.3). The words "with respect to the authenticity of its transmission" have been used intentionally to protect against the use of vague terms. The allusion here is to a distinction drawn by some modern writers aiming to simplify the understanding of texts. This is the distinction between *qat'ī al-thubūt* (definitive by way of transmission) and *qat'ī al-dalālah* (definitive by way of implication). This classification appears to have originated with al-Rāzī and was picked up by al-Shāṭibī and other later writers, but it is not to be found with the earlier jurists and rightly so. The reason is that a text cannot be deemed definitive or probable in its implication in a general way. There are detailed categories for analysing this according to the system of the Mutakallimūn as well as the Ḥanafīs. When the earlier jurists use the term *qat'ī* or *ẓannī*, they always refer to the strength of the transmission, that is, *mutawātir*, *mashhūr* or *āḥād*. It has been felt necessary to point this out because this vague and somewhat inaccurate terminology has taken hold in modern writings. We do acknowledge, however, that in certain cases it does serve as a very instructive device.

2. *Wājib*: Obligatory. This duty is slightly weaker than the first in its demand for commission. It arises from a source that is probable with respect to its authenticity. The demand, however, has been expressed in binding terms.
3. *Mandūb*: Recommended. The difference between recommendation and the two kinds of obligation above, it should be recalled, is based on the binding nature of the command. The source is probable here, but the demand is expressed in non-binding terms.



4. *Makrūh karāhat al-tanzīh*: Disapproved. It is an act whose omission is demanded by the Lawgiver through a probable evidence expressed in non-binding terms.
5. *Makrūh karāhat al-tahrīm*: Reprehensible. This category arises from a probable evidence expressed in binding terms. It is close to prohibition.
6. *Ḥarām*: Prohibited or duty not to commit an act. This arises from a definitive evidence.
7. *Mubāḥ*: Permissible. No duty is created and the subject is given a choice to perform the act or not to perform it. We may also say here that the subject is sometimes given the power to create obligations and duties with respect to other individuals. This may occur, for example, in the case of a person appointing another his agent or concluding a contract with him.

Some modern writers try to ignore this division by saying that the addition of two categories by the Hanafīs has no practical significance. This seems questionable for there are some practical consequences though they relate mostly to ritual and in one case to apostasy.⁸⁷

Let us now examine the classification of the declaratory rules that flows from the definition provided by Muslim jurists.

3.4 The *Hukm Wad'ī*—Declaratory Rules

The definition of the *hukm shar'ī* provided above stated that the communication from Allah may be related to the acts of the subjects in a manner that is declaratory. This is stated in order to accommodate rules that cannot be classified under the obligation creating rules. The following classifications are made:

1. Classification of secondary rules into *sabab*, *shart* and *mānī'*. The *uṣūlī* is concerned more with this classification.
2. Classification into *ṣiḥḥah*, *buṭlān*, and *fasād* (validity, nullity and vitiation). This classification is more important for the *fuqih*, because it pertains to the performance of acts.⁸⁸
3. Classification into *'azimah* and *rukhsah* (general rules and exemptions). This classification helps the jurists identify the general principles of the law or initial rules and the exceptions to these rules. It is used as a tool for achieving analytical consistency.⁸⁹

87. For a discussion see Ṣadr al-Sharī'ah, *al-Tawdīh*, vol. 2, 682.

88. Ṣadr al-Sharī'ah, *al-Tawdīh*, vol. 2, 679–80.

89. It is sometimes stated that all the injunctions of the *sharī'ah* are of two types: broad general principles and exceptions to these principles. See, e.g., Amīn al-Iḥsān Mujaddadī, *Qawā'id al-Fiqh* (Karachi: al-Ṣadaf Publishers, 1986), 5. In terms of our explanation of evidences as general principles and specific evidences, it would mean that the specific evidences sometimes provide exceptions to the general principles. It is the task of the jurist, for the sake of analytical consistency, to relate the general principles and the exceptions. Another aspect of this view is the laying down of an initial rule, called *'azimah* and then providing an exception to it, called *rukhsah*. (See p. 93 below.)

3.5 The Distinction Between the *Hukm Taklīfī* and the *Hukm Wad'ī*

1. The aim of the *hukm taklīfī* is to create an obligation for the commission or omission of an act or to grant a choice between the commission or omission of the act. The *hukm wad'ī* has no such aim. Its purpose is to either inform the subject that a certain thing is a cause of, condition for or obstacle to a *hukm* or it is to explain the relationship that exists between two rules or to provide the criterion for judging whether an act performed is valid or void.
2. The act or event that is affected by the *hukm taklīfī* is within the ability of the subject with respect to its commission or omission. The act affected by the *hukm wad'ī* may or may not be within the ability of the subject with respect to commission or omission. In other words, it is always possible for the subject to commit or omit an act affected by the *hukm taklīfī*, but it may not be possible for him to commit or omit all acts that fall within the domain of the *hukm wad'ī*. Thus, theft is an act the omission of which is required and it is possible for the subject to avoid it, but the setting of the sun is the legal cause for the evening prayer, and it is not possible for the subject to bring it about. *Rushd* (discretion) is a necessary condition for contracts, but it is a condition that is beyond the power of the subject to create. Insanity is a defence against criminal liability, that is, it is an obstacle (*māni'*) for the *hukm* to take effect, but it is beyond the power of the subject (he can only feign it for some time).

It is not to be assumed that the *hukm taklīfī* and the *hukm wad'ī* are always stated in separate texts. It is possible for them to exist in the same text. For example, the verse about theft states: "The thief, male and female, cut off their hands." Here the *hukm* is the obligation to cut off the hand, the cause for it is *sariqah* (theft), thus, both occur in the same text.

REVIEW QUESTIONS

1. What are the elements (*arkān*) of the *hukm shar'ī*? Describe them briefly indicating the topics covered under each element.

2. Define the *ḥukm shar'ī* and analyse the definition into its various implications.
3. Is the *ḥukm shar'ī* always "related to the acts of the subjects" as stated in the definition?
4. How many differences can you point out between the definition of the *ḥukm shar'ī* and the definition of law as the command of the sovereign?
5. Analyse the word "communication" giving the reasons due to which the jurists divide it into obligation, prohibition, recommendation and disapproval. How does the method of the Hanafīs differ from the other schools in this respect?
6. Give the classification of the *ḥukm shar'ī* on the basis of obligations and duties. Does the distinction between obligations and duties have some advantage?
7. Describe the various ways in which the *ḥukm wad'ī* is classified. What is the benefit of the classification of the *ahkām* into '*azāmah* and *rukhsah*?
8. What is the distinction between the *ḥukm taklīfī* and the *ḥukm wad'ī*?
9. How would you compare the classification of the *ḥukm shar'ī* by the Muslim jurists with the classification of the law into primary and secondary rules given by H.L.A. Hart?

4 Classification of Rules in Islamic Law

The main categories of rules emerging from the definition of the *ḥukm shar'ī* have been identified in the previous chapter, both in terms of obligations and in terms of duties. The details of these categories will be taken up in this chapter. The discussion of *wājib*, *mandūb*, *mubāh*, *makrūh* and *ḥarām* will be taken up first. This will be followed by the discussion of the types of *ḥukm waḍ'ī*.⁹⁰

4.1 The Meaning of *Wājib* (Obligatory Act) and its Different Types

The term *wājib* means an act the performance of which is obligatory for the subject. In its technical sense, it is an act whose commission is demanded by the Lawgiver in certain and binding terms.⁹¹ The

90. The discussions that follow are based on the work of Ṣadr al-Sharī'ah and the commentary on this work by al-Taftāzānī. See Ṣadr al-Sharī'ah, *al-Taḥḍīṭ*, vol. 2, 677 passim.

91. Ṣadr al-Sharī'ah, *Taḥḍīṭ*, vol. 2, 680–81. Al-Ghazālī states the meaning of *wājib* in simpler terms. He says: When there is a demand for the commission of an act, we conclude that there is a command (*amr*), but when this command is accompanied by additional evidence about a

binding and certain nature of the demand may be inferred from the syntax of the statement in which the demand is expressed. It may also be inferred from an evidence external to the syntax, for example, the existence of a consequential punishment for omission. Examples of these are: the performance of *ṣalāt*, the payment of *zakāt*, pilgrimage to the Ka'bah, the fulfilling of promises and many other acts that are required by the Lawgiver from His subjects. The Lawgiver has determined penalties for the omission of such acts.

4.1.1 The *ḥukm* or rule for the *wājib*

The rule for the *wājib* is that it must be brought about by the subject and for doing so there is reward (*thawāb*) for him, while omitting it, without a legal excuse, entails a penalty.⁹² The rule further says that a person who denies the legality of a *wājib* when it is based upon a definitive (*qat'ī*) evidence is to be imputed with *kufr* (infidelity).⁹³ This is the rule according to the Sunnī majority. The rules according to the Hanafīs for the *fard* and for the *wājib* are as follows:

- The *wājib*, according to the Hanafīs, is what has been made binding for the subject by the Lawgiver, but which has been established through a probable (*ẓannī*) evidence, whose strength is not that of a definitive evidence. The examples are: *ṣadaqat al-fiṭr*, *witr* prayers, prayers of the two 'Ids and reciting *sūrat al-Fātiḥah* in prayers. These cases have been established, according to the Hanafīs, through a *khābar wāḥid*, which is a probable evidence.⁹⁴
- The *fard*, on the other hand, has been made binding for the subject and is established through a definitive (*qat'ī*) evidence. By *qat'ī* in this sense, we mean *qat'ī al-thubūt* and not *qat'ī al-dalālah*. The evidence may be a verse of the Qur'ān or a *mutawātir* or *mashhūr* tradition. Examples of the *fard* are: the

consequential penalty for omission the act is obligatory *wājib*. In case we do not find such evidence, the act is recommended. Al-Ghazālī, *al-Mustasfā min 'Ilm al-Uṣūl*, vol. 1, 42.

92. Ṣadr al-Sharī'ah, *Tawḍīḥ*, vol. 2, 680–81; Al-Ghazālī, *al-Mustasfā min 'Ilm al-Uṣūl*, vol. 1, 42.

93. Ṣadr al-Sharī'ah, *Tawḍīḥ*, vol. 2, 681.

94. Ibid., 680, 682.

five daily prayers, *zakāt*, *hajj*, recitation of the Qur'ān in prayer and so on.⁹⁵

- The rules for *farḍ* and *wājib* are different in their view. The rule for *farḍ* is the obligation of performance and liability for punishment on omission as well as imputation of *kufr* for denying its legal validity. The rule for the *wājib* is the obligation of performance and liability for punishment for omission, but of a lesser gravity as compared to the *farḍ*. They also do not impute with *kufr* the person who denies the *wājib*.⁹⁶
- This distinction, drawn by the Ḥanafīs, has an effect on the opinions derived in *fiqh*. For example, they say, if one forgets to recite the Qur'ān in prayer, the prayer is a nullity (*bāṭil*), because this is noncompliance with a definitive evidence in the Qur'ān requiring such recitation: "Then recite what is easy from the Qur'ān." On the other hand, if one forgets to recite *sūrat al-Fātiḥah*, but does recite something else, it does not invalidate the prayer, although this is noncompliance with a tradition that says: "There is no prayer for one who does not recite the *Fātiḥah* of the Book." This, however, is a *khābar wāḥid*.⁹⁷

4.2 The Classifications of the Wājib (Obligatory Act)

There are several classifications for the *wājib* (obligatory act)⁹⁸ based upon different criteria. These are described below:⁹⁹

95. Ibid., 681.

96. Ibid., 681.

97. See al-Sarakhsī, *Kitāb al-Uṣūl*, vol. 1, 133.

98. A question may be raised as to why the term "obligatory act" is being used and not "obligation". The basic reason is that the term for "obligation" is *wujūb*. Further, the focus here is on the duties created and their performance rather than on creation of the obligation.

99. For the divisions below, see Ṣadr al-Sharī'ah, *al-Tawḍīḥ*, vol. 2, 682; al-Sarakhsī, *Kitāb al-Uṣūl*, vol. 1, 26–30; al-Ghazālī, *al-Mustasfā min 'Ilm al-Uṣūl*, vol. 1, 42–44.

4.2.1 Classification based on the time available for performance: *muṭlaq* and *muqayyad*

On the basis of the time of its performance the *wājib* is divided into *wājib muṭlaq*, which is absolute or unrestricted by time, and into *wājib muqayyad* or *wājib* with a time limitation.

4.2.1.1 *Wājib muṭlaq* (obligatory act independent of time)

Wājib muṭlaq is an act whose performance has been demanded by the Lawgiver, but He has not fixed a definite time for its performance. An example is the payment of expiation (*kaffārah*) and the *nadhr* for fasting sometime in the future.

The rule for *wājib muṭlaq* is that the subject may perform the act whenever he likes. For example, if he took an oath to do something and then broke his oath, he may pay the *kaffārah*, for which he is liable, anytime he wishes to do so.

4.2.1.2 *Wājib muqayyad* also called *wājib muwaqqat* (obligatory act limited by time)

It is an obligatory act demanded by the Lawgiver from the subject for which a time period is also determined having a beginning and an end. Examples are: the five daily prayers, fasting during *Ramādān*, and *Hajj*.

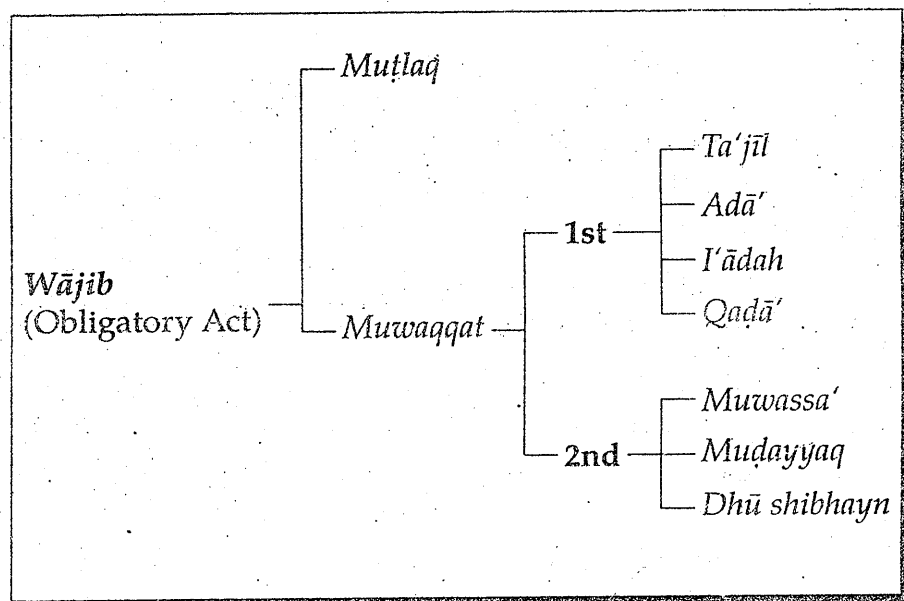
The *wājib muqayyad* or *muwaqqat* gives rise to two further subdivisions depending on the performance of the act within time and depending on the time available for the performance of the act, that is, whether the time is just enough for the act or exceeds the time required. Let us look at both divisions.

First subdivision of the *wājib muwaqqat*: early, timely and delayed performance or *ta'jīl*, *adā'* and *qadā'*. The three types are as follows:¹⁰⁰

1. *Ta'jīl* or early performance of an obligatory act, if permitted by the Lawgiver, amounts to performance in time, like the early payment of the *ṣadaqat al-fitr*.

100. See al-Sarakhsī, *Kitāb al-Uṣūl*, vol. 1, 44–59.

2. *Adā'* is the timely performance of the act, that is, the time that the Lawgiver has fixed for it, without there being any shortfall in such performance. In case the act has not been properly performed and is repeated within time and is performed properly, it is called *i'ādah* (repetition), like a person praying with *tayammum* finds water, performs ablution and prays again within time. There are some fine distinctions about the term *i'ādah* among the majority and the Hanafīs, that is, when a repetition is called *i'ādah* and when *adā'*.
3. *Qadā'* is the performance of an obligatory act after the time fixed for it by the Lawgiver, like offering the morning prayer after the sun has risen or like offering *zuhr* in the time of '*aṣr*. The jurists agree that one who misses the determined time is obliged to offer the act as *qadā'* and if the delay was without a valid excuse, he is liable for blame. The Zāhirī jurists confine the excuse to one who forgot or one who missed the act while he was asleep, thus, it is obligatory only for these two cases in their view and not for one who misses it intentionally.



Second subdivision of the *wājib muwaqqat*: wide, narrow and dual duration for the performance of the act or *muwassa'*, *muḍayyaq* and *dhū shibhayn*. The three types are as follows:

1. *Wājib muwassa'* (Obligatory act with extra time) is an act for which the time given by the Lawgiver is enough for this act

and others like it. The time for the act is called *zarf* according to the Hanafis. An example is the time for the *zuhr* prayer. The subject is permitted to perform the required act in any part of this time period. After agreeing on this, the jurists disagreed as to which part is the *wujūb* (obligation) connected to: the beginning or the end of the period. Supposing a woman starts menstruating in the middle of the period for the *zuhr* prayer, when she has not offered the prayer. Is she liable for *qadā'*? This problem is actually related to the issue in *uṣūl* whether a command necessitates immediate or delayed compliance. It is somewhat complex and lengthy to discuss here.¹⁰¹

2. *Wājib muḍayyaq* (Obligatory act with time sufficient for a single performance) is an act for which the time granted by the Lawgiver is just enough for its performance and for no other, like the fasts of Ramaḍān or like the evening prayer. The time granted itself becomes the standard (*mi'yār*) for the validity of this act.
3. *Wājib dhū shibhayn* (Obligatory act with extra time from one aspect and sufficient time from another) or the act that can be performed once in a time period, yet it permits other acts. An example is *ḥajj*. It can be performed once in a year in known months, but it permits the subject to perform acts like *ṭawāf* a number of times during this period.

A major reason for this distinction is that the *wājib murwassa'* is not valid if the subject does not form a *niyyah* required for it, because the time available may include other acts and the act has to be identified. As compared to this the *wājib muḍayyaq* is valid with a general *niyyah* or even a *niyyah* for another act of the same kind. The *niyyah* will be redirected, so to say, toward the act for which the time is just sufficient.

4.2.2 Classification based on the extent of the required act

The *wājib* is classified according to the extent or amount of the act required into *wājib muḥaddad* and *wājib ghayr muḥaddad*.

101. For the details see al-Sarakhsī, *Kitāb al-Uṣūl*, vol. 1, 26–59. He discusses these details under the topic of *amr* (command) and all these categories are dealt with as types of commands.

4.2.2.1 *Wājib muḥaddad* (determinate obligatory act)

It is an act whose amount or extent has been determined by the Lawgiver, like the five daily prayers and the amount of *zakāt*. The rule for this type of *wājib* is that it becomes due as a liability as soon as its cause is found. A demand for its performance or payment is valid without waiting for a judicial verdict or on the willingness of the subject to perform the act. The subject is not absolved from the liability to perform or pay unless he does so in the way determined by the Lawgiver and in the amount fixed by Him.

4.2.2.2 *Wājib ghayr muḥaddad* (indeterminate obligatory act)

It is an act whose amount or extent has not been fixed by the Lawgiver, like spending in the way of Allāh, feeding the needy or hospitality for guests. These things depend upon the need and capacity of the individual and thus vary. The rule for this kind of *wājib* is that it does not become a liability, unless it is imposed by a judicial decision or through willingness and acceptance.

The jurists have differed as to which act is to be attached to which type of *wājib*. For example, maintenance of wife and children, or support for the next of kin: are these to be linked to *wājib muḥaddad* or *wājib ghayr muḥaddad*? According to some Hanafī scholars these are to be linked to the *ghayr muḥaddad*, because there is no fixed amount for them. A court decision would, therefore, be required or it will become obligatory through an agreement between the parties. The majority link these to the *muḥaddad* and no court decision is required in their view for a claim.¹⁰²

4.2.3 Classification based on the subjects who are required to perform

Depending on who is required to perform the act, the *wājib* is divided into the universal obligation and the communal obligation or the *wājib ‘aynī* and the *wājib kifā’ī*.

102. Perhaps, the opinion of the majority would be preferable today as it will provide a less cumbersome procedure for implementation. In other words, the rights of the neglected women and children can be secured more easily if this decision is followed.

4.2.3.1 *Wājib ‘aynī* (the universal obligatory act)

Wājib ‘aynī or the universal obligation is a demand by the Lawgiver from each subject, or each subject with legal capacity for the act, to perform the act, like prayers, fasting, *hajj* and *zakāt*. The rule for this type of obligation is that it is to be performed by each person from whom it is demanded. The individual is not absolved of the liability even if some other persons have performed the act.

4.2.3.2 *Wājib kifā’ī* (the communal obligatory act)

The *wājib kifā’ī* is an act whose performance is required from the whole community and not from each individual, like *jihād*, answering the *salām*, and rendering testimony.

The rule for the *wājib kifā’ī* is that if it is performed by some individuals in the community, the rest are no longer liable for it, as the required act stands performed. The communal obligation may turn into a universal obligation, however, in certain cases. For example, if there is only one doctor in the community, it will be his personal obligation to look after a patient.

4.2.4 Classification based on the identification of the object of the required act

The obligatory act is divided into two types on the basis of the determination of the object of the act. The types are *wājib mu’ayyan* and *wājib mukhayyar*.

4.2.4.1 *Wājib mu’ayyan* (the specified obligatory act)

The *wājib mu’ayyan* is an act that is required by the Lawgiver specifically; there is no choice in it with respect to the act to be performed. The examples are prayer, fasting, payment of due wages and so on. The rule is that the subject is not free of the liability without specific performance.

4.2.4.2 *Wājib mukhayyar* (the unspecified obligatory act or obligatory act with an option as to its performance)

This type of act is required by the Lawgiver not as a specific act, but as one out of several determined acts, like the *kaffārah* (expiation) for breaking the oath: feeding ten needy persons, or clothing them, or

the freeing of a slave. If the subject is not able to perform one act, he may perform the other. Each of these three acts, however, are required by way of a choice. When one is performed, the subject is absolved of liability.

4.3 The Meaning of *Mandūb* (Recommended Act) and its Different Types

Mandūb or the *mandūb ilayh* is defined as "a demand by the Lawgiver for the commission of an act without making it binding and without assigning any blame for its omission."¹⁰³ The non-binding nature of the demand can be inferred from the syntax. Sometimes the syntax may indicate that the demand is binding, but there may be related evidence showing that the demand is non-binding. The related evidence may be a text or a general principle of the *sharī'ah* or some other indication, like the absence of a penalty for non-performance.

For example, in the verse,

إذا تدأيتم بدین الی أجل مسمی فاكتبوه

O ye who believe, when you enter into a transaction involving a *dayn* (debt), write it down. [Qur'ān 2 : 282]

the demand for the recording of the debt is a recommendation and is non-binding, because of an associated evidence that indicates this. The evidence is found in the following verse:

فإن أمن بعضكم بعضا فليؤد الذي أؤتمن إمانته

And if one of you deposits a thing on trust with another, let the trustee faithfully discharge his trust. [Qur'ān 2 : 283]

This indicates to the creditor that he may trust the debtor without the writing down of the debt. Likewise in the verse

والذين يبتغون الكتاب مما ملكت أيمانكم فكتبوهم إن علمتم فيهم خيرا

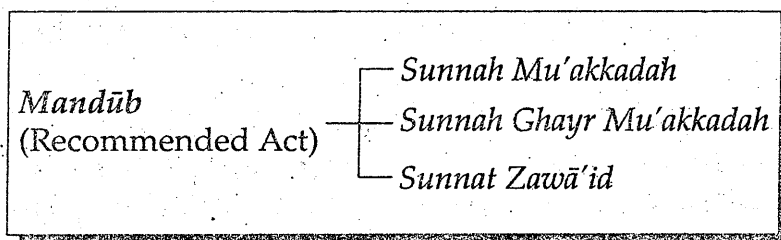
And if any of your slaves ask for a deed in writing (to enable them to earn their freedom for a certain sum) give them such a deed, if ye know any good in them. [Qur'ān 24 : 33]

103. Şadr al-Sharī'ah, *al-Ta'wīḍīh*, vol. 2, 682.

The command requires the agreement of *mukātabah* with the slave (in which the slave pays for his freedom in installments). It is, however, not binding on the owner. This is inferred from the established principle of the *sharī'ah* that an owner of property is free to dispose of it as he likes. It is not permitted to coerce him into a specific transaction, unless there is a legal necessity for doing so.¹⁰⁴

4.3.1 Types of *Mandūb*

The recommended act (*mandūb*) sometimes has some additional legal emphasis behind it for persistent or continued performance. On this criterion, it has been divided into three broad types:



4.3.1.1 *Sunnah mu'akkadah* (the emphatic recommended act)

Sunnah mu'akkadah is a recommended act that was persistently performed by the Prophet (pbuh). He did not give up its persistent performance, except on some occasions. This again is of two types:

- *Sunnah mu'akkadah* that complements and completes a *wājib*, like *adhān* and congregational prayers. The rule for this category is that the person who gives up such acts is liable to some blame, though this does not reach the level of punishment. The person who performs them is entitled to reward in the hereafter. If an individual gives up such acts totally, he is liable to lose his *'adālah* (moral probity), which may in turn result in the rejection of his testimony. If a township collectively decides to give up these recommended

104. Although writers use this example as an evidence to show that writing down of an agreement is not necessary and is merely recommended, the verse as translated appears to be talking about the agreement itself and not the act of writing down of the agreement. This would be the view if the word *al-kitāb* is translated as a "deed in writing". If the word *al-kitāb* is translated as "the agreement of *mukātabah*", the example is in order.

acts, it exposes itself to legal and military action. The reason is that these acts are part of the fundamental practice (*sha'ā'ir*) of Islam. (ما لا يتم الواجب إلا به فهو واجب) —An act essential for completing an obligatory act becomes an obligation in itself).

- *Sunnah mu'akkadah* that does not complement or complete a *wājib*, though it is generally supportive of it, like praying two *rak'as* before the *fajr* prayer, or after *zuhr*, *maghrib* and '*ishā*'. There is reward for the performance of such an act and blame for giving it up, however, the person giving it up totally does not lose his '*adālah*'. If a township gives them up, it does not become liable for civil or military action, because these acts are not considered part of the *sha'ā'ir* of Islam.

4.3.1.2 *Sunnah ghayr mu'akkadah* (non-emphatic recommended act)—*nafl*, *mustahabb*

The recommended act that is not emphatic is called *sunnah ghayr mu'akkadah* or *nafl* or *mustahabb*. It is an act that was not performed persistently by the Prophet (pbuh), that is, he performed it several times and did not do so at other times. Examples of this type are the four *rak'ahs* before '*aṣr*' and '*ishā*' and giving *sadaqah* to the poor. The rule for this type of act is that one who performs it is entitled to *thawāb*, but one who does not, is not subject to blame.

4.3.1.3 *Sunnat zawā'id*

This term is used by some jurists for the acts of the Prophet (pbuh) pertaining to ordinary daily tasks as a human being, like his dress, food and drink, as well as his dealings with his family members.¹⁰⁵ The rule for such acts is that one who adopts them seeking to follow the Prophet's example, out of love for him, is to be rewarded. The person who does not adopt them is not blameworthy in any way.

4.4 The Meaning of *Harām* (Prohibited Act) and its Different Types

The prohibited act (*harām*) is one whose omission is required by the Lawgiver in binding and certain terms. According to the majority

105. Ṣadr al-Sharī'ah, *al-Tawdīh*, vol. 2, 682.

4.4.1.2 *Harām li-ghayrihi* (prohibited for an external factor)

The act that is prohibited due to an external factor was not prohibited initially, and was legal in itself, but an external factor intervened and led to its prohibition, like fasting on 'Īd day. Fasting is legal otherwise, but the Lawgiver prohibited it on the day of 'Īd, because the subjects that day are the guests of Allāh, and fasting becomes a hurdle for this hospitality. Another example is the sale that involves *ribā*. Sale is legal in itself, but a condition stipulated in it that requires the charging and giving of interest leads to its prohibition.

The rule for this type is that as the act is valid in itself, if it is possible to remove the obstructing factor the act may be declared valid. Thus, according to the Hanafis, if the condition of *ribā* is removed from the *ribā* based sale, the sale may be declared valid. It is for this reason that they place this type of contract in the category of *fāsid* (vitiated; unenforceable) and not *bātil* (void).

4.4.1.3 Distinction between the two types

There are two basic distinctions between acts that are prohibited for themselves and those that are prohibited due to an external factor:

1. When an act prohibited for itself becomes the subject-matter of a contract, the contract is void, that is, it will have no legal effects. As compared to this, when the act prohibited for an external factor becomes the subject of a contract, it is not void, but is valid or is vitiated with partial or suspended legal effects, according to the varying opinions of jurists on this. Thus, if the sale pertains to carrion or to wine, the contract is void having no legal effects. Likewise, a contract of marriage within the prohibited degree is void and has no legal effects. As for the contract of *ribā* mentioned above, it is vitiated.

The reader will come across many examples that are said to fall in the category prohibited for an external factor. However, in most examples one finds that they fall in this category according to the majority of the jurists; the Hanafis would place them in the category of *makrūh* that is closer to prohibition. Thus, some care is to be exercised in studying the examples.

2. The act prohibited for itself cannot be permitted, except in the case of duress (*idtirār*). For example, wine is prohibited for

itself and cannot be permitted, unless the person affected is dying of thirst and there is nothing else available. The reason is that preservation of life is a vital interest secured by the *sharī'ah*. As compared to this, an act prohibited for an external factor may be permitted in case of dire need to the extent of the need. Thus, the covering of private body parts is prohibited not for itself, but for what it leads to. It is, therefore, permitted to uncover these parts in case of need, as when it is necessary for medical treatment.

4.5 The Meaning of *Makrūh* (Disapproved Act) and its Different Types

The *makrūh* (disapproved act) is a single category according to the majority of the jurists, but is divided by the Hanafis into two types: *makrūh tahrīmān* and *makrūh tanzīhan*.¹⁰⁹ The first is what has been called reprehensible as it is closer to the category of *ḥarām*. This type of act is the opposite of *wājib*, according to the Hanafis. It is an act whose omission has been demanded by the Lawgiver in certain terms through a probable evidence, like making a proposal for marriage where the proposal of another is awaiting response or even making an offer for sale where the offer of another is pending. Each of these has been established through a *khābar wāḥid*. The *ḥukm* or rule for this type of *makrūh* is punishment for the person denying it, though he is not imputed with *kufr*.

The simple *makrūh* (disapproved) act is one whose omission is demanded by the Lawgiver in non-binding terms whatever the type of evidence from which it arises. It is one for which omission is better than commission. For example, a verse of the Qur'ān proscribes sale at the time of the Friday congregational prayer, and asks the believers to avoid it at that time. This, however, may be interpreted as *makrūh* rather than prohibited; and even if it is interpreted as prohibited due to an external factor, the result is the same.

The above division of *makrūh* into two types is based on the Hanafī opinion. The majority of the jurists place *makrūh tahrīmān* into the category of *ḥarām* insofar as it is a demand for omission expressed in binding terms.

109. Ṣadr al-Sharī'ah, *al-Tawdīh*, vol. 2, 685.

Al-Shāṭibī, the Mālikī jurist, explains that something that is considered disapproved in an individual case may be deemed prohibited as a whole. This means that a person should not make a habit of indulging in disapproved acts.

4.6 The Meaning of *Mubāḥ* (Permitted Act) and its Different Types

The *mubāḥ* or permissible act is one in which the Lawgiver has granted a choice of commission or omission, without blame or praise for omission or commission. It is also called *ḥalāl*.

The *mubāḥ* that is mentioned in the texts is usually expressed in words like "There is no harm for you..." or "It is no sin for you" and so on. The *mubāḥ* is also understood through the principle of *istishāb*, which states that anything that is not expressly prohibited or considered abominable by the *sharī'ah* is permissible. According to the above rule, all contracts and transactions are permissible, unless there is an evidence indicating that they are not. This principle emphasises the fact that underlying rule for all things is permissibility. It will be explained, however, in detail in the sources for the *muṭtahid*.

There is an interesting discussion in *uṣūl al-fiqh* about the *ḥukm* of *mubāḥ*. It is generally maintained by the jurists that once an act is established as *mubāḥ*, the Lawgiver cannot be assumed to have an intention of omission or commission related to it, and the performance or non-performance cannot be deemed an act of worship or required obedience.

On the other hand, there are certain groups, like a section of the Sūfis, who are attributed with the statement that the omission of *mubāḥ* is a required act. They rely for this on certain verses and texts of the traditions in which the temporal world and its pleasures have been looked down upon by the Lawgiver. They also argue that indulging in the permitted pleasures of this world leads to the commission of the disapproved and the forbidden. The jurists, however, reject such opinions and maintain that omission of the *mubāḥ* is not a required act.

There have been other jurists who insist that as the commission of a *mubāḥ* act amounts to the non-performance of a prohibited act, the commission of *mubāḥ* becomes *wājib*. Al-Shāṭibī, thinking in different terms, has explained in great detail how the *mubāḥ*

may be permitted for individual cases, but taken as a whole may be considered obligatory or permitted. For example, eating and drinking is permitted and the subject has a choice in eating or not eating, but overeating may destroy his health and not eating at all may kill him too; a balance, therefore, has to be maintained. He calls such an act *wājib bi al-kullī* and *mubāh bi al-juz'ī*. This means that at the level of a specific evidence it is permitted, but when it attacks a purpose of the law it becomes obligatory or prohibited, as the case may be.

We may raise the question here as to whether the *mubāh* is permitted by itself or whether it becomes permitted with the approval of the *sharī'ah*? For example, whether eating and drinking was permitted anyway or only when the texts said "eat and drink". This question is directly concerned with the principle of *istishāb*. The answer will, therefore, be provided there (see p. 263 below).

4.7 The *Hukm Wad'ī* or the Declaratory Rule

The declaratory rule or the *hukm wad'ī* does not create an obligation; it is a rule that facilitates the operation of the obligation-creating rule or it explains the relationship between different obligation-creating rules. The major classifications are:

1. *sabab*, *shart* and *māni'*;
2. *ṣiḥḥah*, *fasād* and *butlān*; and
3. *'azimah* and *rukhsah*.

4.7.1 *Sabab*, *shart* and *māni'*

The secondary or declaratory rules primarily include the causes of, conditions for, and obstacles to the *hukm*. These may be described very briefly.¹¹⁰

110. For the details see Ṣadr al-Sharī'ah, *al-Tawdīh*, vol. 2, 705–20. For an even more detailed explanation see al-Sarakhsī, *Kitāb al-Uṣūl*, vol. 2, 301 passim.

10 The Qur'ān

The primary sources are the Qur'ān and the *Sunnah*, because these sources contain the law for many cases and also serve as the basis for the extension of the law. Consensus of legal opinion (*ijmā'*) also contains the law, and its provisions can be used for extending the law further, though some would prefer to have recourse to the basis or the *sanad* of *ijmā'* for the new case.¹⁹⁴ For this basis, we have to turn to the Qur'ān and the *Sunnah* again, therefore, some jurists maintain that the primary sources are the Qur'ān and the *Sunnah* alone, and *ijmā'* is a kind of secondary source. It is, however, associated with the primary sources for the purposes of this book on the basis of the reasons discussed earlier.

In this chapter the Qur'ān and the *Sunnah* will be studied as the two primary sources. This will be followed by a description of the close relationship between these two sources. Finally, the details of *ijmā'* as a source of law will be examined.

194. If the source on which the jurists have relied for *ijmā'* are mentioned, the binding force will come from this source rather than from *ijmā'*.

10.1 The Qur'ān as the Primary Source of Law

The words al-Qur'ān and *al-Kitāb* are used in the same meaning. The jurists who specialise in *uṣūl al-fiqh* (called *uṣūlīs*) are hesitant about providing a definition of the Qur'ān insofar as a definition means enclosing the defined thing within bounds.¹⁹⁵ Yet, many of them, in an attempt to grasp all its noble attributes and characteristics have provided definitions. They maintain that the purpose of the definition is not to enclose the nature of the Qur'ān in a definition, but to identify the book in response to the question: Which book do you mean? One such definition recorded here is from al-Bazdawī.

القرآن: هو الكتاب المنزل على رسول الله محمد صلى الله عليه وسلم المكتوب في دفات المصاحف، المنقول إلينا على الأحرف السبع المشهورة نقلا متواترا.

This may be rendered into English as follows:

The Qur'ān is the Book revealed to the Messenger of Allāh, Muḥammad (peace be on him) as written in the *maṣāḥif*¹⁹⁶ and transmitted to us from him through an authentic continuous narration (*tawātur*) without doubt.¹⁹⁷

Some jurists add the words "revealed in Arabic" to emphasise that it cannot be translated, while others say that "the Qur'ān is the revealed and miraculous speech of Allāh ...," to emphasise the *i'jāz* (inimitable or miraculous nature) of the Book. Still others, like the Hanafīs, add that it is transmitted in its seven readings all of which are *mutawātir*.

The attempt in most of these definitions is to emphasise the following attributes:

1. *The Qur'ān is the speech of Allāh revealed to Muḥammad (peace be on him).* This attribute excludes other revealed books from the definition, that is, books that were not revealed to Muḥammad (peace be on him). These are like the Torah (التوراة) and the Evangel (الإنجيل). Some jurists maintain that the word Qur'ān applies to the eternal speech of the Almighty as well as to

195. See, e.g., Ṣadr al-Sharī'ah, *al-Taḥdīṭh*, vol. 1, 57.

196. This is used to indicate the order in which the Qur'ān is recorded as well as its syntax.

197. Al-Bazdawī, *Uṣūl al-Bazdawī* in 'Abd al-'Azīz al-Bukhārī, *Kashf al-Asrār 'an Uṣūl al-Bazdawī*, vol. 1, 23.

the written text that is recited. To refine their definition some insist that it is the recited text that is meant here, while others maintain that both meanings are included in the definition.¹⁹⁸

2. *The Arabic words of the Qur'ān as well as their meanings are both revealed.* This attribute excludes the *Sunnah* from the definition, because the words of the *Sunnah* are not those of Allāh though its content is inspired and is considered to be revelation in meaning from Allāh.

The attribute also excludes the *tafsīr* of the Qur'ān and the translation of the Qur'ān from this definition. It is said that Abū Hanīfah used to permit recitation in Fārsī during prayers for those who did not know Arabic, however, authentic reports in the Ḥanafī school confine such permission to converts to Islam for a period in which they are able to learn the Arabic text. Thus, the exemption was for necessity and need and was, therefore, limited. There has been an intense debate on the issue in Islamic legal literature.

Translation of the Qur'ān is, therefore, not possible and what are termed translations are in fact translations of the *tafsīr* (interpretation) of the Qur'ān.

3. *The Qur'ān is transmitted to us by way of tawātur.* This means that the Qur'ān was transmitted to us both in its written and memorised form by such a large number of people in each generation starting with the first that any doubt about its not being the original text cannot be conceived rationally. This attribute is intended to exclude a few variant readings of the Qur'ān that were not revealed by way of *tawātur*.¹⁹⁹ The Qur'ān cannot be communicated in what is less than *tawātur*.
4. *I'jāz of the Qur'ān.* *I'jāz* means the inability of human beings individually or collectively to imitate or bring about something similar to the Qur'ān. This inability was acknowledged by the Arabs during the period of the Prophet. The inability also confirms that the Qur'ān is the revealed word of Allāh, and

198. 'Abd al-'Azīz al-Bukhārī, *Kashf al-Asrār*, vol. 1, 36–37.

199. For the details of the seven readings transmitted by *tawātur* and three that are not so transmitted see Khudrī Bey, *Uṣūl al-Fiqh*, (Cairo: al-Maktabah al-Tijāriyah al-Kubrā, 1962), 251.

is therefore a source of law.²⁰⁰ In other words, for purposes of the jurist, *i'jāz* becomes an additional proof of the authenticity of the Qur'ān and the truth of the mission of the Prophet (peace be on him)

10.1.1 Justification of the Qur'ān as a source

The entire *ummah* agreed that the Qur'ān is the primary source for the *ahkām* of Allāh. It is, therefore, binding upon the jurist to have recourse to it and to rely upon it for the discovery of the law in each case that he faces. They also agreed that the jurist will find each case provided for in the Qur'ān either expressly or by implication, that is, through derivation (*istinbāt*). In approaching the Qur'ān for the derivation of the laws, the jurist is also under an obligation to have recourse to its commentary and explanation, which is the *Sunnah* of the Prophet. The statement of al-Shāfi'ī recorded earlier that "there is no incident that befalls one of those who follow the *dīn* of Allāh without there being an evidence in the Book of Allāh providing guidance for it"²⁰¹ emphasises this meaning.

Considering the Qur'ān as *the primary source* means that all the other sources are secondary to it; even their legal validity and justification as sources is derived from the Qur'ān.

10.1.2 The recording and revelation of the Qur'ān

The compilation of the Qur'ān has a detailed and well documented history. These details can be gleaned elsewhere. The reason why it is studied under the title of the Qur'ān as a source of Islamic law is to provide further justification for its having been transmitted by way of *tawātur* and also to explain the reason for its unique arrangement.

The Qur'ān, as is well known, was not revealed all at once to the Messenger of Allāh (peace be on him), but in stages and in accordance with incidents faced by the Muslim community. The important aspect of the wisdom behind its revelation in this way is considered to be the ease in its memorisation by the Companions.

200. There is a discussion whether *i'jāz* pertains to individual verses or whole *sūrah*s.

201. Among the verses he quotes is verse 89 of *Sūrah al-Nahl*: "And We have sent down to thee the Book explaining all things, a Guide, a Mercy, and glad tidings to Muslims." Al-Shāfi'ī, *al-Risālah* (Cairo, 1309/1891, Reprint Beirut: Dār al-Fikr, n.d.) 20, paras 48–52.

Allāh, the Exalted, says: "(It is) a Qur'ān which We have divided (into parts from time to time) in order that thou mightest recite it to men at intervals: We have revealed it by stages," [Qur'ān 17 : 106] and "Those who reject faith say: 'Why is not the Qur'ān revealed to him all at once?' Thus (it is revealed), that We may strengthen thy heart thereby, and We have rehearsed it to thee in slow, well-arranged stages, gradually." [Qur'ān 25 : 32]

Another reason for the gradual revelation of the Qur'ān is considered to be the implementation of the law in stages. This has given rise to the abrogating and the abrogated verses.²⁰² The clearest example of the laying down of the law in phases is the case of the prohibition of *khamr* (wine).

The incidents, cases, and questions that often preceded the revelation of the verses help, those who came later, in understanding the meaning and import of the verses. These are called the *asbāb al-nuzūl* or occasions for the revelation. These reasons have facilitated to a great extent the application of the law in all ages.

The Messenger of Allāh used to memorise a verse or verses of the Qur'ān after their revelation. He then recited these for his Companions who used to memorise them. There were also scribes with the Prophet (pbuh) who used to record the verses after their revelation and recitation. These written records were then preserved in the Prophet's house, while some of the scribes would record the verses for themselves and preserve them for their own use. Jibrīl used to inform the Prophet (pbuh) of the place and location of each verse within its chapter (*sūrah*). During each Ramadān, it is said, Jibrīl used to recite in its proper arrangement with the Prophet what had been revealed of the Qur'ān, and in the last year of his life Jibrīl recited the whole of it in its proper arrangement and the Prophet (pbuh) recited it twice after him. The Prophet, thus, memorised it and recited it for his Companions, who memorised it in this arrangement.

By the time of Abū Bakr, the Qur'ān was to be found in its complete form either memorised or recorded in *ṣuḥuf*. Zayd ibn Thābit, therefore, did not rely upon the memory of the Companions alone when he prepared the official copy; he relied upon both.

202. For an explanation of the meaning of abrogation and its principles see the chapter on Abrogation and Preference at p. 352 below.

10.2 Legal strength and indication of *ahkām* in the Qur'ān

As the Qur'ān has been transmitted to us by way of *tawātur*, its authenticity is definitive (*qāṭi'ī*). This is from the aspect of transmission. When we read the Qur'ān, however, some of its words convey a definitive meaning, which is not subject to interpretation, while others convey probable meanings, that is, there can be two or meanings for a word.²⁰³ Taking both these aspects into account we say that the Qur'ān indicates the *ahkām* in two grades of strength, as follows:

1. Indications that are definitive with respect to *sanad* (transmission) and definitive with respect to meaning. The examples of such meanings, as provided in the previous chapter, were the words "half" or "hundred." This type of text is also known as *naṣṣ* (explicit). The rule for such indications are: "There is no *ijtihād* in a *naṣṣ* (explicit meaning not subject to interpretation)." Some people mistakenly believe that this rule applies to all the texts of the Qur'ān and that *ijtihād* is not possible where a text exists. Accordingly they call *ijtihād* by names like "independent reasoning" and so on, as if *ijtihād* was something independent of the texts. It is for the same reason, probably, that the idea is advanced that *ijtihād* is a source of law.²⁰⁴
2. Indications that are definitive with respect to *sanad*, but are probable with respect to meaning. These would be the texts of the Qur'ān that convey more than one meaning, that is, they are subject to interpretation. When the Qur'ān says: "Rub your heads (*mash*) with water," [Qur'ān 5 : 6] it is probable that the meaning is the entire head or part of it, and both meanings have been upheld by jurists. The rule stated for the first category does not apply here. Thus, the texts of the Qur'ān that indicate such meanings are subject to interpretation, that is, *ijtihād*.

203. As indicated earlier, such a classification is used for illustrative purposes. The jurists have detailed and more precise categories for the different shades of meanings arising from the texts. A single category like "definitive" in meaning is not enough to explain the complexity.

204. For an elaboration of this point see p. 384 below.

10.3 The kinds of *aḥkām* in the Qur'ān

There are approximately six hundred verses in the Qur'ān that indicate the *aḥkām* of Islamic law. Over four hundred of these pertain to the *'ibādāt* and the remaining to crimes, personal law, and other *mu'āmalāt*.²⁰⁵ A few of all these verses belong to the first of the two categories mentioned above, that is, they do not need further elaboration. The remaining verses require interpretation and elaboration. The primary means of such elaboration or the choosing of one meaning out of two or more probable meanings is through the *Sunnah*. This relationship of the *Sunnah* with the Qur'ān will be explained later in this chapter. The texts of the Qur'ān also require analysis through the tools and rules of literal interpretation, even when the *Sunnah* is being employed for elaboration, and these tools have been described in the part on *ijtihād*. The kinds of *aḥkām* that are contained in the six hundred or more verses of the Qur'ān cover a very wide range of *aḥkām*. These may be divided into the following categories:

1. ***Aḥkām* Pertaining to *Aqā'id* (Tenets of Faith).** These are like belief in One God, His Angels, Books, Prophets, and the Day of Judgement. The discipline dealing with these is that of *Tawḥīd*.
2. ***Aḥkām* Pertaining to the Disciplining and Strengthening of the Self.** These rules deal with Qur'ānic ethics. The disciplines that deal with them are ethics and *taṣawwuf*. Many of the ethical norms of the Qur'ān are to be found clothed in the legal provisions.
3. **Rules of Conduct (Pertaining to the Words and Acts of the Subject).** This category covers the entire field of *fiqh*. They are divided into two types:
 - A. ***Rules Related to Worship.*** The purpose of these rules is to establish the relationship of the individual with his Creator.

205. According to one count, about 70 verses pertain to family law, 80 to trade and finance, 13 to oaths, 30 to crimes and sentencing, 10 to constitutional and administrative matters, 25 to international law and prisoners of war, while the rest, over 400, pertain to *'ibādāt*.

B. *All Those Rules that Relate to Conduct Other than Worship.*

This area is called *mu'āmalāt* by the jurists. It regulates the relationship of individuals among themselves, the relationship of individuals with states, and the relationship of the Islamic state with non-Muslim states. In short, it covers the entire area of substantive and procedural law or to put it differently, it includes private and public law.

It is to be remembered that though the particular cases mentioned in the Qur'ān are few, there are many broad and general principles that facilitate the derivation of countless *ahkām*.

10.4 Can one text of the Qur'ān abrogate another?

This issue will be discussed in the part on *ijtihād* (see p. 352 below).

REVIEW QUESTIONS

1. How does al-Bazdawī define the Qur'ān as a source of law? What attributes flow from this definition?
2. The Qur'ān has been communicated to us through a *mutawātir* transmission alone. Comment.
3. Write a short note on the recording and revelation of the Qur'ān.
4. How are the legal meanings in the Qur'ān indicated and with what strength?
5. What are the different types of *ahkām* that are found in the Qur'ān? Also give some examples of general principles stated in the Qur'ān.
6. Give a classification of the legal verses indicating the number of verses dealing with the *'ibādāt* and with other matters.



11 The *Sunnah*

11.1 The *Sunnah* as a Primary Source

11.1.1 Definition of the *Sunnah*

The word *Sunnah* has a literal meaning and several technical meanings. An indiscriminate use of the term leads to confusion, therefore, it is necessary that most of the technical meanings be understood.²⁰⁶

11.1.1.1 Literal meaning

In its literal meaning the word *sunnah* stands for the "well-known path," or the "well-trodden path," which is followed again and again. This may be the path on which people tread or it may be a practice. It is in this sense that the following saying of the Prophet (peace be on him) is understood: "He who establishes a good *sunnah* has its reward and the reward of whoever acts upon it till the Day

206. There are a number of terms whose meanings need to be understood in the precise meanings in which they are used by the jurists. Some of the important terms are: *sunnah*, *ḥadīth*, *khābar* and *athar*. In these pages we will try to identify the meanings of these and several other terms.

of Judgement, and he who establishes a bad *sunnah* bears its burden and the burden of whoever acts upon it till the Day of Judgement." The *sunnah* of an individual is a practice that he considers binding for himself and that he attempts to protect and uphold.

11.1.1.2 Technical meanings

In its technical sense, the word *sunnah* is assigned the following meanings:

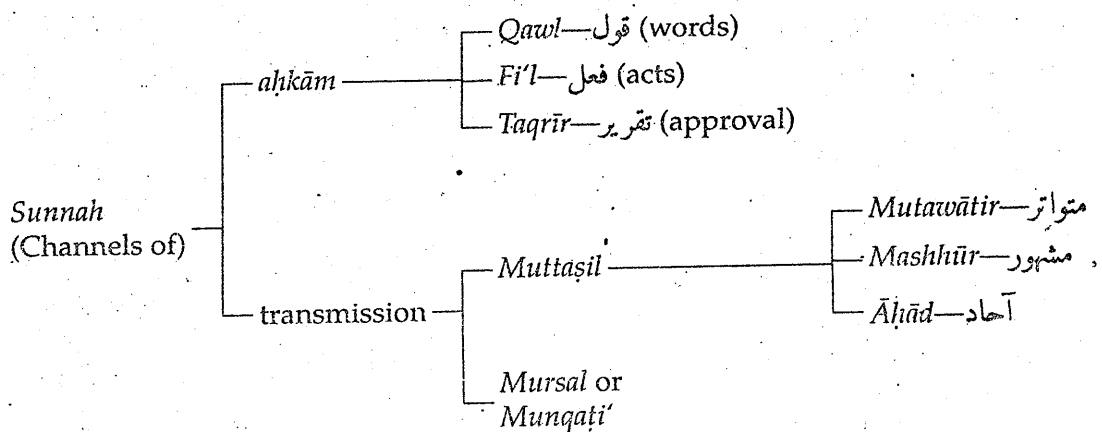
1. Some jurists apply it to mean recommended acts of worship, while others apply it to supererogatory acts (*nawāfil*).
2. The word *sunnah* as an antonym of *bid'ah* (innovation), that is, innovations in matters of religion. In this sense, it is said, "This act is a *sunnah*," that is, it is legal. The meaning of "legal" is assigned to it irrespective of the legality arising from the Qur'ān or the *Sunnah*. When it is said that such and such act is a *bid'ah* it means it is not legal according to the Qur'ān and the *Sunnah*.
3. The term *sunnah* is used to mean the practice of the Companions (*Ṣaḥābah*) irrespective of their relying in it on the Book, the *Sunnah*, or their own *ijtihād*. An example is the compilation of the Qur'ān for which there was no authorising text either in the Qur'ān or in the *Sunnah*, but it amounted to an interest (*maṣlahah*) indicated by all the texts; namely, the preservation of *Dīn*. The saying of the Prophet (peace be on him), "Hold on to my *sunnah* and the *sunnah* of the rightly guided caliphs after me," is understood in this sense.
4. Finally, it is defined as "what was transmitted from the Messenger of Allāh (peace be on him) of his words, acts, and (tacit) approvals." It is in this sense that we shall be using the term *sunnah*, that is, as the *Sunnah* of the Prophet (peace be on him) and a source of Islamic laws.

11.1.2 Kinds of *Sunnah*

The question that arises here is whether every saying, act and approval of the Prophet (peace be on him) has the same status for purposes of acting upon it as a source of law. To be able to answer

this question it is necessary to look at the types of the *Sunnah*. For this purpose, the *Sunnah* is classified in two ways:

1. The kinds of the *Sunnah* when we look at the channels through which the *aḥkām* are established. This is also called the classification of the *Sunnah* according to its nature.
2. The kinds of the *Sunnah* with respect to the channels through which it is transmitted to us. This may be called the classification of the *Sunnah* according to its written record, that is, the classification of *ḥadīth*, when this term is used not merely for the sayings of the Prophet (peace be on him), but for the entire written record.



11.1.2.1 Kinds of the *Sunnah* with respect to the channels of the *aḥkām*

This type of the *Sunnah* is of three types: *sunnah qawliyyah* or the sayings of the Prophet (peace be on him); *sunnah fi'liyyah* or the acts of the Prophet (peace be on him); and *sunnah taqrīriyyah* or the tacit approval given by the Prophet (peace be on him). Some jurists, like al-Shāṭibī, have discussed another subtype called *sunnat al-tark*, which is discussed briefly here along with *sunnah fi'liyyah*.

Al-Sunnah al-qawliyyah: It is defined as the sayings of the Prophet (peace be on him) through which he intended the laying down of the law or the explanation of the *aḥkām*. Generally, the word

ḥadīth is used for this type of *sunnah* insofar as the word *ḥadīth* means "saying."²⁰⁷ In this sense, the word *ḥadīth* has a meaning narrower than that of *sunnah*. Some of the traditionists, however, use the term *ḥadīth* to mean all that is reported from the Prophet (peace be on him), that is, words, acts, and approvals. In this sense, the words *sunnah* and *ḥadīth* are synonyms. It is in this meaning that al-Bukhārī calls his book *al-Ṣaḥīḥ min al-Ḥadīth* when his book contains all three types.

There are a large number of sayings of the Prophet (peace be on him) that are considered as *sunnah qawliyyah*. Some well known examples are: *الخراج بالضمان* (Entitlement to revenue depends on a corresponding liability for loss); *إنما الأعمال بالنيات* (The nature of acts is dependent upon the underlying intentions); *لا ضرر ولا ضرار* (No injury is to be caused and none is to be borne); and *العمد قود* (Intentional murder leads to retaliation).

It is to be noted that not every saying of the Prophet (peace be on him) is a source of law. This is obvious from the definition stated above. To become a source of law, the purpose of the saying should be the laying down of the law or its elaboration.

207. To avoid any confusion between the use of the terms *sunnah* and *ḥadīth*, we shall make a distinction between them for purposes of this book. The reason is that the terms are used interchangeably by authors and the result is a lack of precision.

The word *ḥadīth* means "saying." In this literal meaning it could stand for the sayings of the Prophet (peace be on him), that is, for one of the three types of *sunnah* mentioned in the definition above. Thus, it would exclude acts and tacit approvals. This, however, is not the meaning that we shall assign to the term *ḥadīth* here.

By *ḥadīth*, in this book, we mean the record of the *Sunnah* of the Prophet (peace be on him). This record may be written or in the form of an oral report. In this sense, one *ḥadīth* may contain more than one *sunnah*. A *ḥadīth* may report a saying, act, or approval of the Prophet (peace be on him). A single *sunnah* may be found in differently worded *ahādīth*. When we say that a *sunnah* has been reported with a complete chain, what we mean is that it is contained in a *ḥadīth* with perfect *isnād*. *Ḥadīth* in this sense, then, is the bearer of the *Sunnah*; it is a report. It may also be added here that some jurists like Abū 'Ubayd ibn Sallām, the author of the well known book called *Kitāb al-Amwāl*, has used the term *ḥadīth* in a very wide sense of the word report. Thus, he includes in it reports from the Prophet (peace be on him), his Companions, and even their Followers. For our purposes here, the narrower meaning is intended: reports about the Prophet's words, acts and approvals.

Al-Sunnah al-fi'liyyah: It is defined as the acts of the Prophet (peace be on him) having a legal content, like his prayer, fasts and *hajj*. These acts or the method of their performance that he adopted are to be followed in the same way as his sayings. The acts that do not have a legal content do not become a source of law. This may be understood distinguishing between the following types of acts:

1. Ordinary physical acts performed by every human being, like eating, drinking, walking and sitting. Such acts are not meant to lay down laws, though some jurists consider them to be *mubāh*. This becomes clear when such acts are compared with acts that lay down the law. Jurists maintain that an act of the Prophet (peace be on him) pertaining to law indicates absolute or unqualified permission, which includes *wujūb*, *nadb*, and *ibāhah*, till such time that another evidence fixes the meaning for one these. This means that if no other evidence is available, the acts of the Prophet (peace be on him) will be interpreted to mean permissibility. As compared to this, the ordinary acts mentioned above, like eating and drinking, indicate *ibāhah* or permissibility *ab initio*; they do not indicate recommendation or obligation.

In addition to this, there may be acts that pertain to his experience as a human being, like the organising of the army, war tactics, trading skills, and so on. These acts too do not become precedents of law, because their basis is skill and experience rather than revelation.²⁰⁸

Some jurists say that accepting evidence for proving facts in a trial or case cannot be considered as binding either. The reason is that they treat this as a skill. On the other hand, they would consider a decision rendered in a case as a binding precedent. He is reported to have said: "I am a human like you. When you come to me as litigants, some of you have better evidence than the others, and I decide according to what I hear. Thus, if

208. During the Battle of Badr, when the Prophet (peace be on him) took up a position at a spot he selected a Companion asked him if the selection of the spot was based on guidance from Allah or it was based on his own tactical skill. The Prophet (peace be on him) told him that it was based on his own decision. The Companion selected a position close to a well and said: "O Messenger of Allah, we will drink from it and keep the enemy away."

I have given to one something that was due to the other, I have given him a piece of hellfire.”

2. Acts that are specific to the Prophet (peace be on him) and the rest of the *ummah* is not to follow him in such acts. For example, in the case of the number of his marriages, which is based on a law specific to him.
3. Acts that are intended to be explanations of unelaborated rules in the texts. All such explanations have the status of law. The persuasive force of such explanations is the same as that of the text being elaborated. The explanation of a *mujmal* (unelaborated) word will take the force of the *mujmal* on which it is based. The acts of his prayer, after his saying, “Pray as you see me praying,” as well as his acts concerning the rites of *hajj* based on his saying, “Take (the knowledge of) your rites from me,” are examples.²⁰⁹
4. Acts that establish new laws obviously have the force of law.

Intentional omissions (*sunnat al-tark*). Some jurists divide the *sunnah fi’liyyah* into acts and intentional omissions, and this leads to a further subtype:²¹⁰ *sunnat al-tark*. Omission or abstention from an act by the Prophet (peace be on him) indicates that the act he has given up is not permitted, and this includes disapproval and prohibition, and one of these will be determined by circumstantial or related evidence. The Prophet’s omission of the act indicates that giving up the act is better than its performance. An example is the Prophet’s refusal to become a witness for a person who had given most of his wealth to one child. He asked the man: “Have you treated each child like this.” He said: “No.” The Prophet (peace be on him) said: “Then get someone else as a witness. I will not be a witness to injustice.”²¹¹ The omission here indicates that the act is not legal. It covers both disapproval and prohibition, and the jurists have differed in determining one of these according to the evidences they have relied upon.

209. For a discussion of this point see the section on *bayān* at p. 307 below.

210. See, e.g., al-Shāṭibī, *al-Muwāfaqāt*, vol. 4, 58 *passim*.

211. This in reality is a statement and will be construed as *sunnah qawliyyah*, but the idea is to explain the omission of the act.

It may sometimes become obvious that the omission is not because of disapproval, but due to some other reason, like a natural aversion for a thing. The Prophet (peace be on him) refused to eat a *dabb* (a small animal of the rodent family) and then explained that he did not feel like having such food. As it was something personal to him, it means that it is not prohibited to eat such things.

Again, the omission may be for fear that the act may be construed as an obligation, when the act itself is required by law. Examples are the avoiding of *tarāwīḥ* prayer during Ramaḍān on certain occasions as well as his saying: "If I did not foresee hardship for my *ummah*, I would have ordered them to use the *siwāk* (brushing of teeth) before each prayer."

Sunnah taqrīriyyah: It is defined as the commission of certain acts, by word or deed, by some Companions and the maintenance of silence by the Prophet (peace be on him) without expressing disapproval. His silence in such a case is called *taqrīr* or tacit approval and is considered a *sunnah* that becomes a source for the permissibility of an act or a statement. An example of this type is the statement of Mu'ādh ibn Jabal when he was sent to Yemen and the Prophet (peace be on him) asked him how he will decide cases. This approval, however, was a little more emphatic than mere silence. A better example would be the contracts of *mudārabah* and *sharikah*.

11.1.2.2 Kinds of *Sunnah* with respect to its modes of transmission

Aḥādīth (traditions) are divided, with respect to narration, into two types. First, the *aḥādīth* whose chain of narration is complete. These are the ones in which the narrators are mentioned from the beginning of the *sanad* upto the Messenger of Allāh, and no narrator is missing. Second, the *aḥādīth* from the chains of which one or more narrators are missing. The *ḥadīth* from which a narrator is missing is called *mursal* by the Ḥanafis. The Traditionists (Muḥaddithūn) confine the term *mursal* to a tradition from the chain of which the name of the Companion is missing, while they term as *munqaṭi'* a tradition from the chain of which the name of a narrator other than a Companion is missing. Both types of *ḥadīth* will be discussed and within these the types of *Sunnah* they give rise to.

11.1.2.3 *Hadīth Muttasīl*

The majority of the jurists divided the *muttasīl ahādīth* into two types: *mutawātir* and *āḥād*. In between these two, the Ḥanafī jurists added a third category called *mashhūr*. It is very important to note that for purposes of working out the number of narrators of a tradition, only the first three generations are taken into account. After their periods, the reports were compiled and all the reports became well-known.

Hadīth Mutawātir. The *mutawātir ḥadīth* is one that is related by such a large number of people that their agreement to propagate a falsehood cannot be conceived.²¹² This applies to the narration from the beginning of its chain to its end, where it reaches the Prophet (peace be on him). An example of such a *ḥadīth* is:

إِنَّمَا الْأَعْمَالُ بِالنِّيَّاتِ، وَإِنَّمَا لِكُلِّ امْرِئٍ مَا نَوَى

Acts are determined by intentions, and to each person belongs what he intends.²¹³

In the same category are the reports about the number of daily prayers, number of *rak'ahs*, *ḍiyāt* and the rates of *zakāt*.

Tawātur is of two types: *tawātur* in words and *tawātur* in meaning. When all the narrators are in agreement about the words as well as meaning, the *ḥadīth* indicates *tawātur* by its very words. An example are the words of the Prophet (peace be on him): "He who intentionally attributes a falsehood to me should prepare his abode in the Fire" (مَنْ كَذَبَ عَلَيَّ مُتَعَمِّدًا فَلْيَتَّبِعُوا مَقْعَدَهُ مِنَ النَّارِ). This tradition was related by a large number of Companions in these words. The narration was reproduced in great numbers in the following generation when it was finally recorded. This makes it *tawātur lafzī*. Some experts consider this tradition to be a true *mutawātir*, even stronger than the tradition about intentions above. The other kind is known as *tawātur ma'navī*, which is a tradition that conveys the

212. The term *khbar* means a report or news. If a single person, for instance, comes to your room and says that the building is on fire, you may or may not believe him. If he is followed by another person with the same report, you may be inclined to believe that the report is true. If more than two persons were to come to you with the same report, you are likely to be convinced that the report is true and all of them could not have agreed to fabricate the report.

213. This tradition is considered as *mashhūr* by some depending on who accepts *mashhūr* as a category in itself.

same meaning even if the words are not exactly the same. Most of the *mutawātir* traditions are of the latter category.²¹⁴

The *mutawātir* tradition conveys definitive knowledge (*'ilm*) and is also definitive with respect to its authenticity. It is, therefore, said that a *mutawātir* tradition is *qaṭ'ī* with respect to *'ilm* as well as *thubūt*. In other words, it must be followed under all circumstances. *Qaṭ'ī al-thubūt* means that we are certain about its narration from the Prophet (peace be on him). It is to be noted, however, that the words of such a tradition may be subject to interpretation, in which case the meaning arising from such a tradition (its *dalālah*) will not be definitive, but will be probable.²¹⁵ Such a meaning will be definitive, of course, if only one meaning can be derived. For example, in the case of the tradition, mentioned above, saying that "acts are determined by intentions", some jurists may say that this means "for the purposes of the hereafter," while others may interpret it to mean acts in this world and thus apply it to contracts and other acts.

Hadīth Mashhūr. It has been stated above that the majority of the jurists classified the tradition with a complete chain into two types, but the Hanafī jurists added a third category called *mashhūr*.

The *mashhūr* tradition is one the number of whose reporters do not reach the level of *tawātur* in the first generation. Thus, if one or two Companions related the tradition from the Prophet (peace be on him), but in the next generation, that is, the generation of the *Ṭabī'ūn*, a very large number narrated from them and so on till the end of the chain when the traditions were compiled, then, such a tradition is called *mashhūr*. The factor that makes such a tradition *mashhūr* (well-known) is the number of persons in the second and the third generation narrating it, because after this compilation started and all traditions became well-known.

The *mashhūr* tradition, according to the Hanafīs, falls into a category that is lesser in strength than the *mutawātir* tradition, but is stronger than the *khābar wāḥid*. The majority of the jurists, however, consider such a tradition to be a *khābar wāḥid*. According

214. For example, there are a large number of reported cases where the sentence of *rajm* is said to have been awarded to the married (*muḥṣan*) offender. Some jurists looking at the common meaning emerging from all the individual reports may deem such meaning to be *mutawātir*.

215. See the division of the sources into definitive and probable in the previous chapter.

to al-Sarakhsī, the tradition about the prohibition of marrying the maternal or paternal aunt of an existing wife belongs to this category.²¹⁶

Ḥadīth al-Āḥād. The *ḥadīth al-āḥād* or the *khābar wāḥid* is reported by one or two persons from the beginning of its chain upto its end when all traditions were recorded. Thus, the narrators do not reach the level of *tawātur* in either of the first three periods: the period of the Companions, the *Tābi'ūn*, and the *Tab' Tābi'ūn*. After the third period, as stated above, the traditions were compiled and all became well known.

The *khābar wāḥid* is generally not relied upon by jurists in matters of faith (*aqā'id*), but it is accepted in matters of conduct, that is, in matters covered by the *mu'āmalāt*. In fact, there is generally an agreement of the Muslims about the acceptance of the *khābar wāḥid* in matters of *fiqh*.²¹⁷

11.1.3 Justification of the *Sunnah* as a source of law

The *Sunnah* is unanimously accepted as a primary source of law and *aḥkām* can be derived from it independently of any other source. The jurists provide transmitted as well as rational arguments for its justification as a primary source of law.

1. **From the Book.** There are several ways in which this justification is understood:

- The Book indicates that what the Prophet (peace be on him) lays down as law is based upon revelation. Allāh, the Exalted, says: "Nor does he say (aught) of (his own) desire. It is no less than inspiration sent down to him." (وما ينطق عن الهوى إن هو إلا وحي يوحى) [Qur'ān 53: 3, 4] Thus, the words of the Prophet (peace be on him), being based upon revelation, are a valid source of law, except that the *Sunnah* is revelation in meaning alone, not in words.

216. Al-Sarakhsī, *Uṣūl al-Sarakhsī*, vol. 1, 321.

217. 'Abd al-'Azīz al-Bukhārī has provided a detailed analysis, along with arguments of jurists, to show when and under what circumstances the *khābar wāḥid* may be accepted. 'Abd al-'Azīz al-Bukhārī, *Kashf al-Asrār*, vol. 2, 550–53.

- Allāh granted the Prophet (peace be on him) the task of elaborating the meanings of the Qur'ān as well as the explanation of the unelaborated words. His elaboration, therefore, complements and completes the meanings in the Qur'ān and becomes a valid source or evidence for law. The verse of the Qur'ān supporting this is: "And We have sent down unto thee (also) the Message that thou mayest explain clearly to men what is sent down for them" (وَأَنزَلْنَا إِلَيْكَ الذِّكْرَ لِتُبَيِّنَ لِلنَّاسِ مَا نَزَّلَ إِلَيْهِمْ) [Qur'ān 16 : 44]
- A number of verses in the Qur'ān that indicate definitively that the *Sunnah* is to be followed as a source of law:
 - a) O ye who believe! Obey Allāh, and obey the Apostle, and those charged with authority among you. If ye differ in anything among yourselves, refer it to Allāh and His Apostle, if ye do believe in Allāh and the Last Day. [Qur'ān 4 : 59]
 - b) He who obeys the Apostle, obeys Allāh. [Qur'ān 4 : 80]
 - c) So take what the Apostle assigns to you, and deny yourselves that which he withholds from you. [Qur'ān 59 : 7]
 - d) But no, by thy Lord, they can have no (real) faith, until they make thee judge in all disputes between them, and find in their souls no resistance against thy decisions, but accept them with the fullest conviction. [Qur'ān 4 : 65]
 - e) It is not fitting for a believer, man or woman, when a matter has been decided by Allāh and His Apostle, to have any option about their decision. [Qur'ān 4 : 65]

2. **On the Basis of *Ijmā'* (Consensus).** The Muslims all agreed during the period of the Prophet (peace be on him) upon the obligation of acting according to the *ahkām* laid down by the *Sunnah* and upon the necessity of having recourse to it for the derivation and discovery of the *ahkām*. There was no one among the Companions who disputed this, because the true source of these *ahkām* was revelation.

3. **Rational Argument.** First, it is a part of a Muslim's faith that Muḥammad is the Messenger of Allāh charged with the mission of conveying the commands of Allāh. It is, therefore, obligatory to follow the Messenger of Allāh in all that he lays

down by way *ahkām*. Yet, the most powerful rational argument is to be found in the bond between the Qur'ān and the *Sunnah* and this is visible when we examine the relationship between the two. The rational argument for the necessity of the *Sunnah* can thus be seen in section 11.2 on page 193 dealing with the Status of the Qur'ān with respect to the *Sunnah*.

11.1.4 Justification of the different types of *Sunnah*

The Muslims agreed unanimously that the *Sunnah* is a source of the *sharī'ah*, as detailed above. It is an evidence to which recourse must be had for the derivation of the laws, if it meets the conditions that each Imām has laid down for it with respect to authenticity.

A group deviated from this unanimous agreement and denied the employment of the *khbar wāḥid* for establishing the *ahkām*. Imām al-Shāfi'ī gave detailed arguments in support of the *khbar wāḥid* with the intention that once this is established there can be no question about the validity of the (*mashhūr* and) *mutawātir*. A few of these arguments are provided below:

1. The Companions accepted the report of a single person when he informed them that *khamr*, which was hitherto permitted, had now been prohibited. In response to this report they broke the wine containers. This is proof that the report of an individual is valid.
2. The Messenger of Allāh ordered Unays to go to the married woman about whom an allegation of unlawful sexual intercourse had been made. He said to him, "If she confesses, subject her to *rajm*." Thus, his report alone about her confession would be sufficient for *rajm*.²¹⁸
3. The Messenger of Allāh used to send his envoys on various missions. These envoys used to be alone.

11.1.4.1 Conditions for acting upon the *muttaṣil ḥadīth*

The traditions (*ahādīth*) differ with respect to their narration and reporting. It is for this reason that the *mujtahids* laid down specific

218. This means that the woman was to consider the word of Unays as authoritative, although it was based on his report alone.

conditions for the acceptance of each category. The purpose of these conditions is to verify the strength of the authenticity of the report.

The *mutawātir ḥadīth* is considered certain proof of the *ahkām* insofar as the conditions of *tawātur* are found in it according to all the jurists; so also the *mashhūr* tradition according to the Hanafīs, because it offers certain knowledge coming down from the Messenger of Allāh, even if the strength of this knowledge is a little less than that of the *mutawātir*.

With respect to the *khābar wāḥid*, each *mujtahid* has laid down specific conditions, when it is relied upon for the derivation of the law.

Thus, the Hanafīs stipulate three conditions for the *khābar wāḥid*:

1. That the narrator should not have acted against the implication of the report. If he does act against it, the reliance will be upon his reported act rather than on the report. A narrator does not act against a report from the Prophet (peace be on him), unless he knows that the content of the report was abrogated. A deliberate act against the report would raise doubts about the *'adālah* of the narrator, and his report would not be acceptable, because the presumption is that the narrator is *'adl*.
2. That the report should not pertain to a matter of universal need, that is, something which is performed often and continuously repeated. Such an act requires that it be known to many people due to their need to know it prior to performance. An act that should be known to many people by necessity will push its report to the level of a report that is *mutawātir* or *mashhūr*, and it cannot be the subject-matter of a *khābar wāḥid*. The narration of an individual regarding such a matter provides circumstantial evidence of its not having been said or done by the Prophet (peace be on him).
3. That it should not oppose analogy (*qiyās*). By this is meant opposition to general and fundamental principles. If a report opposes a general principle it ceases to be a valid proof for the *ahkām*. The reason is that the principle is usually not derived from a single text, but is based upon a number of texts, which together indicate a definitive meaning. As compared to this, a *khābar wāḥid* indicates a probable meaning that cannot be

preferred over a definitive (*qat'ī*) meaning. The Hanafīs made an exemption from this rule in the case of traditions reported or upheld by the Companions who were well known as jurists and *mujtahids*, like the first four caliphs, Ibn 'Abbās and Ibn Mas'ūd. A *khābar wāḥid*, however, will be preferred over an individual *qiyās*, which is not in the meaning of a general principle. The distinction must be kept in mind.

Imām Mālik stipulates for the *khābar wāḥid* that it should not oppose the practice of the people of Medina.²¹⁹ If it does oppose it, the obligation is to follow the practice of the people of Medina and to forgo the requirement of the *khābar wāḥid*. The reason is that the practice of the people of Medina amounts to a *mutawātir* report, and the *mutawātir* being definitive is to be preferred over the *khābar wāḥid*, which is probable. It appears that he would also uphold the rule about analogy above.

Imām al-Shāfi'ī does not stipulate for the *khābar wāḥid* any other condition except that it have a sound and complete chain of narration. If this condition is met the report is to be accepted.

The condition stipulated by Ahmad ibn Hanbal is similar to that laid down by Imām al-Shāfi'ī, however, he sometimes accepts traditions that do not strictly meet this condition. He is reported to have preferred even *mursal* traditions over analogy.

11.1.4.2 *Ḥadīth* that is not *muttaṣil*

A tradition that is not continuous (*muttaṣil*) is one that has the names of one or more narrators missing from the chain of narration. This is called a *mursal* report. It is like a reliable narrator from a later generation saying: "The Messenger of Allāh said that" As for the Traditionists, they apply the term *mursal* to a tradition from the

219. In fact, some have attributed the opinion to Imām Mālik that the *khābar wāḥid* is not to be accepted if it opposes analogy (*qiyās*). 'Abd al-'Azīz al-Bukhārī has questioned the authenticity of this report from Mālik. He also quotes Abū al-Husayn al-Baṣrī, who says that if the underlying cause of the analogy is found expressly stated in the text, the analogy is to be preferred, but if the cause has been derived by the jurist the report is to be preferred. Ibid., 451. An examination of some of the opinions of Imām Mālik shows that he may have subscribed to this view. Another reason advanced in favour of analogy is that analogy does not accept restriction (*takhsīs*) whereas the *khābar wāḥid* does.

chain of which the name of the Companion is missing. If the name of someone other than a Companion is missing, they term the tradition as *munqatī'*.

The jurists disagreed about the employment of a *mursal* tradition as proof for a *ḥukm*. Thus, al-Shāfi'ī does not rely upon it, unless its authenticity is supported by another tradition.

11.2 Status of the Sunnah With Respect to the Qur'ān

The jurists maintain that the *Sunnah* is the second source among the sources of Islamic law. If the *muftahid* does not find a text in the Qur'ān for a case he has to settle, he has recourse to the *Sunnah* for the derivation of the *ḥukm*. The evidence for this is the well known tradition of Mu'ādh ibn Jabal who was sent to Yemen by the Prophet (peace be on him). The tradition has been quoted in the previous chapter.²²⁰ In addition to this there is the letter of 'Umar ibn al-Khaṭṭāb to Qādī Shurayh in which he instructs him to follow the Qur'ān first and then the *Sunnah*.

As regards the status of the *Sunnah* being secondary to the Qur'ān for proof of the *aḥkām*, the jurists maintain that the Qur'ān is definitive (*qaṭ'ī*) with respect to its narration in its details and as a whole, while the *Sunnah* is definitive as a whole, but not in all its details, because many of the reports are of the status of *khābar wāḥid*.

The *Sunnah* being an elaboration and commentary on the Qur'ān, it is not required to have recourse to it unless a text requires elaboration and commentary. If the text of the Qur'ān is explicit (*naṣṣ*) in its meaning it is to be acted upon, but if it is apparent (*zāhir*) having more than one meaning it is necessary to have recourse to its commentary, which is the *Sunnah*.

11.2.1 The manner in which the Sunnah lays down the *aḥkām*

As the *Sunnah* is a primary source of law, the jurist has recourse to it for the derivation of the *aḥkām*; it is secondary and complementary to the Qur'ān. The authority of the *Sunnah* as a source of law is derived

220. *Sunan Abū Dāwūd*, tr. Ahmad Hasan (Lahore: Sh. Muhammad Ashraf, 1984), vol. 3, No. 3585 at 1019.

from the Qur'ān. The *ahkām* derived from the *Sunnah* are, therefore, considered an explanation of the meanings in the Qur'ān. Even when the *Sunnah* appears exclusively to be dealing with a *ḥukm*, a close examination reveals that the *ahkām* so revealed are based upon principles found in the Qur'ān and the *Sunnah* is merely extending the meaning of these principles or is linking up the rule with the principle. This may be elaborated in the following points:²²¹

1. **The *Sunnah* is a commentary of the Qur'ān.** The *ahkām* are often found in the Qur'ān in general, undetermined, or unelaborated form. The *Sunnah* elaborates, restricts, or qualifies these *ahkām*.

Examples of the *Sunnah* elaborating the unelaborated are like (1) the timings of prayer and their number as well as their *rak'as*; (2) elaboration of the kinds of wealth in which *zakāt* is to be paid and the amount to be paid in each as well as the time of obligation; (3) the case of *ribā*.

An example of the restriction of a general meaning is to be found in inheritance: "For the male two shares of the female." The *Sunnah* explains that the murderer will not inherit.

The example of elaboration is in the case of theft where the *Sunnah* elaborates the meaning saying that the property must be removed from the *ḥirz* and that it is the right hand that is to be cut.

2. **The *Sunnah* links a vacillating case with a known principle.** The *Sunnah* sometimes lays down rules that are not mentioned in the Qur'ān. These rules appear to be additions over the meanings in the Qur'ān and cannot be considered as elaborations or qualifications within the categories explained in the previous section. Some jurists, however, are of the opinion that a closer examination reveals that these rules are an elaboration in the sense of classifying a rule under a principle. Often a case vacillates between two principles and the *Sunnah* links up the case with one of these principles.

For example, the Qur'ān has in a general way permitted all good things and has commanded the avoidance of *khawā'ith*.

221. The details of this discussion can be gleaned from an excellent discussion by al-Shāṭibī, *al-Muwāfaqāt*, vol. 4, 32 *passim*.

The *Sunnah* has linked with the *khābā'ith* the consumption of animals with molars and birds with claws, just as it has prohibited the consumption of domesticated donkeys.

The Qur'ān has permitted the consumption of seafood and prohibited carrion. The dead fish in the sea vacillated between these two principles. The *Sunnah* linked it with permitted food: "Its water is pure and its *maytah* (carrion) is permissible."

The Qur'ān permitted a slaughtered animal and prohibited carrion. The separated foetus of an animal after slaughter vacillated between the two principles. The *Sunnah* linked it with the slaughtered animal: "The slaughter of the foetus is the slaughter of its mother."

In these examples, we find that Qur'ān laid down two general principles, but there were certain cases that vacillated between them with the possibility of falling under either principle. The *Sunnah* attached the case to one of the general principles. Thus, the principle is mentioned in the Qur'ān and what appears to us as an additional rule laid down by the *Sunnah* is actually a category of the principle. The function of the *Sunnah* here is the analytical development of the law.

3. **The *Sunnah* performs analogy on the basis of a rule in the Qur'ān.** The Qur'ān sometimes lays down a principle or a rule without elaborating all the categories falling under that principle or covered by the rule. The *Sunnah* links a resembling case with this rule, and this function appears to be similar to analogy.

The Qur'ān prohibits marriage of two sisters to one man and then says that what is besides this is permitted. The cases of a woman along with her maternal or paternal aunt are also similar because of a common underlying cause. The *Sunnah*, therefore, prohibits such marriages too.

The Qur'ān mentions that pure water descends from the sky and is preserved in the earth. The case of sea-water was not settled. The *Sunnah* declared that it is pure and even its carrion is lawful.

4. **The *Sunnah* lays down general principles.** The *Sunnah* sometimes lays down a general principle the individual categories of which have been mentioned by the Qur'ān. For

example, the *Sunnah* lays down the principle: "No injury is to be caused or borne." The Qur'ān mentions a number of cases in which injury to others has been prohibited, like injury to a parents because of their child or injury to wives and so on. The prohibition of injury or harm is a general principle that is formulated by the *Sunnah*.

5. The *Sunnah* elaborates the meaning of words in the Qur'ān. An example of this the distinction of the white thread from the black thread during the month of Ramaḍān. The *Sunnah* explains that this is the light of day and the darkness of the night.
6. The *Sunnah* abrogates the Qur'ān. The jurists provide several examples of this that we shall have occasion to look at later (see page 352). Imām al-Shāfi'ī does not accept this and says that only the Qur'ān can abrogate the Qur'ān and the *Sunnah* can abrogate the *Sunnah*. Some modern scholars deny the theory of abrogation altogether.

11.2.2 Modern views about the relationship between the Qur'ān and the *Sunnah*

In the 20th century there have been a number of debates about the relationship of the Qur'ān and the *Sunnah*. It is not possible to record the various views expressed in these debates in this book. There is a huge amount of literature that the reader can access.²²² These debates have by no means come to an end.

While there are many types of views on the subject, a broad classification yields three types of trends.

1. The first is that of those people who wish to give greater prominence to the Qur'ān and wish to emphasise its coherence. Their view appears to be that only that *sunnah* is to be accepted as authentic that is compatible with the Qur'ān. This is an extreme view and if applied would demolish a greater part of the Islamic legal system as it exists today.

222. For those interested in certain aspects of this debate should read Muḥammad al-Ghazālī's *al-Sunnah al-Nabawiyyah bayna Ahl al-Fiqh wa Ahl al-Hadīth* (Cairo, 1989) and Yūsuf al-Qardāwī's *Kayfa Nata'āmal ma' al-Sunnah al-Nabawiyyah* (El-Masur, 1990).

2. On the other extreme are those who maintain that the acceptance of a *sunnah* should be based on its chain of transmission. If the chain is sound the content of the tradition should be accepted and absorbed, whatever the consequences for the legal system. In other words, they relegate to the background the importance of examining the content (*matn*) of the traditions.
3. The third group consists of those who give importance to the *isnād* and also to the *matn*. This third group appears to represent a kind of a middle path, however, the situation here is somewhat complex. Within this group may be those who are inclined to check the *matn* against the Qur'ān alone, and this takes them closer to the first group. Then there are those who focus more on the chain of transmission and check the *matn* not against the Qur'ān alone, but also against the *Sunnah*, i.e., other traditions. In case of conflict, however, they accept the content of the conflicting tradition as an exemption from a broad rule, but then, following the Shāfi'ī rule, they consider the exemption as a broad principle in itself. This takes them closer to the second group.

To understand the problem, a few things have to be kept in mind. First, the *Sunnah*, like the Qur'ān, deals with life and not with the legal system alone. The meaning derived by a *sufi* from a tradition may not be same as that understood by a jurist. Second, a Muslim may be ready to follow any tradition in its literal sense out of his love for the Prophet (peace be on him) and his *Sunnah*, but the same person may understand the same tradition in a different way if he is asked to make law for the subjects to follow: his approach may be different.

Here we are concerned with what is binding and generates obligatory law. A sound method, therefore, has to be followed, a method that ensures that the intention of the Lawgiver is implemented and at the same time taking care that it will not upset or unduly disturb the functioning of the rest of the legal system.

Having said this, we notice that there has never been and, perhaps, there never will be a single system even for the law. Elsewhere,²²³ we have discussed the methods followed by the jurists

223. See generally, the author's *Theories of Islamic Law*.

on their different approaches to the *Sunnah*. The two methods that emerged were as follows:

1. The method of the literalists, who gave more importance to the *isnād*. Once a sound chain was established, they tried to implement the content of the tradition even at the risk of losing analytical consistency.
2. The second method was followed by schools who preferred the analytical method based upon the general principles of the law, whether these principles had emerged out of the Qur'ān or the *Sunnah*.

In that work, we had suggested that the first method may be more suitable for what we called the fixed part of the law, i.e., matters of *'ibādāt*, *ḥudūd*, *qisās* as well as some other areas of the law that do not accept change and which deal with the relationship between the subject and the Creator (the right of Allah is involved). The second method, on the other hand, is more suitable for the rest of the *mu'āmalāt* where the relationship is either between individuals or between individuals and the community as a whole, i.e., the state. In the second area, reason has wider role to play and the examination of the *matn* for analytical consistency is essential.

The second method was refined further by al-Ghazālī (d. 505 A.H.) in his theory of the general purposes of the law. He suggested that any new principle made for the law must not only be checked against the *taṣarrufāt* of the *sharī'ah* (the established general propositions or principles of the law arising from the Qur'ān and the *Sunnah*), but also against the purposes of the law, the *maqāsid al-sharī'ah*, which are taken to be the ultimate general principles. This method ensures the sound development of the law along with the implementation of the overall intention of the Lawgiver. The method is equally valid for the reconciliation of traditions. The method also explains why Abū Hanīfah would sometimes accept a tradition that did not have a sound chain of transmission. The reason was that a broad general principle, compatible with the tradition, was already present within the legal system, and the law would have still been the same even without the tradition. For the jurist, this may be the only method that can be followed.

REVIEW QUESTIONS

1. What are the different meanings assigned to the word *Sunnah*? How does the meaning of the term *Sunnah* differ from the term *hadīth*?
2. State the classification of the *Sunnah* with respect to the channels of the *aḥkām*.
3. What do you understand by the term *sunnat al-tark*?
4. Give the classification of the *Sunnah* with respect to the modes of transmission.
5. Write a note on the concept of *tawātur* and give examples of the *hadīth mutawātir*.
6. What are the conditions for acting upon the *hadīth muttasil*?
7. What are the conditions stipulated by the jurists for accepting and acting upon the *khavar wāhid*?
8. What is a *mursal* tradition? Is it accepted as a *hujjah*?
9. Describe in detail the status of the *Sunnah* with respect to the Qur'ān.
10. How does the *Sunnah* act as a commentary of the Qur'ān?
11. What are the different approaches to the *Sunnah* in the modern times? What approach would you adopt as a jurist?

12 Consensus of Legal Opinion (*Ijmā'*)

12.1 The Meaning of *Ijmā'*

The word *ijmā'* has literal meanings as well as a technical meaning. Literally, it is used in two senses. The first is determination and resolution (عزم وتصميم). The words of Allah, the Exalted: "Determine your plan and among your partners," (فأجمعوا أمركم وشركاءكم) [Qur'ān 10 : 71] convey this meaning, that is, decide and determine the matter. So also the words of the Prophet (peace be on him), "The person who has not resolved to fast prior to dawn has no fast," (من لم يجمع الصيام) convey the meaning of deciding and resolving. The second way in which the word is used is agreement upon a matter. It is said: "the people agreed upon such and such matter" (أجمع القوم). The difference between the two literal meanings is that *ijmā'*, in the first meaning, is possible from one person, but in the second sense it requires two or more persons.

12.1.1 Technical or legal meaning

In the technical sense, *ijmā'* is defined as:

إتفاق المجتهدين من أمة محمد صلى الله عليه وسلم بعد وفاته في عصر

من العصور على حكم شرعي

The consensus of *mujtahids* (independent jurists) from the *ummah* of Muḥammad (peace be on him), after his death, in a determined period upon a rule of Islamic law (*ḥukm shar'ī*).²²⁴

12.1.2 Conditions for the validity of *ijmā'*

The definition given above shows that there are seven conditions that must be met before *ijmā'* can be said to have taken place. These conditions are imposed by the majority of the jurists. Two more conditions (nos. 8 & 9 below) are imposed by some of the jurists; however, the majority do not follow them.²²⁵

1. The agreement or consensus must take place among *mujtahids*, that is, those who have attained the status of *ijtihād*. Thus, an agreement among those who have not reached this status or who are not qualified will not constitute *ijmā'*. This will exclude all non-*mujtahids*, the general public, the members of a modern legislature, unless all of them are *mujtahids*. As to the number of *mujtahids* agreeing upon a legal issue, there is a disagreement. Some say that this number must reach the level necessary for *tawātur*, while others say that three is enough. One thing is clear, though, that if there is a single *mujtahid* in a certain period, his view or verdict will not amount to *ijmā'*.
2. The agreement must be unanimous, that is, among all the *mujtahids*. If the majority of them agree upon a *ḥukm shar'ī*, it will not amount to *ijmā'* according to most jurists, howsoever small the number of the opposing minority. The reason is that there is a possibility that the minority opinion may be correct. There are, however, those jurists who consider a consensus of the majority as valid *ijmā'* when they are being opposed by a minority. Some jurists, on the other hand, consider the

224. This definition is generally accepted and is found in most books. Al-Razī defines it as: "The consensus of the *ahl al-ḥall wa-al-'aqd* ...," but he then interprets *ahl al-ḥall wa al-'aqd* to mean the *mujtahids*. Al-Rāzī, *al-Maḥṣūl*, vol. 4, 35 passim.

225. For a detailed account of these conditions, see 'Abd al-'Azīz al-Bukhārī, *Kashf al-Asrār*, vol. 3, 360 passim.

agreement of the majority as persuasive, but would not call it *ijmā'*.²²⁶

3. All the jurists participating in *ijmā'* must be from the *ummah* of Muḥammad (peace be on him). Thus, an agreement of the jurist of another *ummah*, one of the earlier nations of the earlier prophets, will not be considered *ijmā'*. The reason is that there are textual evidences supporting the fact that it is only the *ummah* of Muḥammad (peace be on him) that is protected against error in collective agreements.
4. The agreement or consensus must have taken place after the death of the Prophet (peace be on him). Thus, an agreement during his lifetime is not considered *ijmā'*. If the Prophet (peace be on him) agreed with the Companions on an issue, then, he was the source of the rule and not *ijmā'*. If he went against their agreement, their agreement was not considered nor did it become a rule of law.
5. The agreement must be among the *mujtahids* of a single determined period, even if some of the jurists of the following or subsequent period opposed them. The reason is that the constitution of *ijmā'* depends upon the unanimous agreement of jurists and this is only possible in a determined period, like a generation. If the period were left open and the opinions of all the jurists of all periods were to be taken into account, the occurrence of *ijmā'* would become impossible.
6. The agreement must be upon a rule of law, the *ḥukm shar'ī*. An agreement upon the rules of grammar in Arabic would not be *ijmā'* nor an agreement upon other rational propositions, like the creation of the universe. Thus, the rule must state that a certain thing is prohibited, permitted, valid, or void. All non-legal matters are excluded from the domain of *ijmā'*.
7. That the *mujtahids* should have relied upon a *sanad* for deriving their opinion. A *sanad* is an evidence in one of the accepted sources of law. This is dealt with in some detail below. Does this mean that every rule that is agreed upon must have some evidence as its basis in the Qur'ān

226. Āmidī, *al-Iḥkām fī Uṣūl al-Aḥkām*, vol. 1, 140.

and the *Sunnah*? If this is the case, the stipulation takes away something from the strength of *ijmā'* as an independent principle. While it is obvious that the jurist agreeing to a rule would be relying upon an evidence from the legal system, it cannot be a condition that the *sanad* must be found in a text. If it is, then, the *sanad* is the basis of the law. Yes, it can be said that the function of *ijmā'* is to make definitive an evidence that is probable and subject to interpretation. It should be noted that the strength of *ijmā'* lies in the agreement itself. Another reason for insisting on the *sanad* could be that those who stipulate this condition want to ensure that the jurist has undertaken proper *ijtihād* to arrive at his opinion.

8. The death of those jurists who participated in the *ijmā'*, either explicitly or by silence, is not a condition for the validity of *ijmā'* according to the majority of the jurists. *Ijmā'*, according to these jurists, becomes valid as soon as agreement is found. There are a few jurists who maintain that it is possible for a jurist to change his view and as long as a jurist is alive, this possibility exists. They quote the example of Hadrat 'Alī in the case of the sale of the *ummahāt al-awlād*. They maintain that *ijmā'* cannot be treated as final as long as the participating *mujtahids* are alive. The view of the majority in this case appears to be more practical, otherwise one would have to wait for many years to finally benefit from a decision.
9. That the *ijmā'* should have been transmitted to the later jurists by way of *tawātur*. The argument is that as *ijmā'* is a definitive evidence, its mode of transmission should also be definitive. The majority of the jurists, however, do not accept this condition.

12.1.3 Types of *ijmā'*

Ijmā' is divided into two types on the basis of the way it is made known. These two types are: 1) *ijmā' ṣarīḥ* or *ijmā' qawli* and 2) *ijmā' sukūṭī* or tacit *ijmā'*.

12.1.3.1 Explicit *ijmā'* or *ijmā' qawli*

Ṣarīḥ or explicit *ijmā'* is one in which the legal opinions of all the jurists of one period converge in relation to a legal issue, and each

one of them states his opinion explicitly. This may happen when all of them are gathered in one session and an issue is presented to them and they collectively express a unanimous opinion. It may also take place when an issue is raised in a certain period and all the jurists, in turn, issue similar *fatwās* independently and at separate times.

12.1.3.2 Tacit *ijmā'* or *ijmā' sukūti*

This form of *ijmā'* takes place when some *mujtahids*, one or more, issue a verdict on a legal issue and the rest of the *mujtahids* come to know of it during the same period, but they keep silent; they neither acknowledge it nor refute it expressly.

Conditions for tacit *ijmā'*. For the occurrence of tacit *ijmā'*, the following conditions must be met.²²⁷

1. The silence must be free of all external indications that point to agreement or disagreement. If an indication of some sort is found that conveys agreement, then, *ijmā'* is not tacit, rather it is explicit. If, however, an indication is found that points to disagreement, no *ijmā'* can be said to have taken place.
2. The silence of a *mujtahid* should be maintained for a considerable period of time. The duration, however, cannot be fixed, because the issues subject to *ijtihād* and the formulation of an opinion require time, which may vary for each *mujtahid*.
3. The issue must be one in which *ijtihād* is permitted. These are issues in which the available sources are probable (*zannī*).²²⁸ If, however, the issue is one in which *ijtihād* is not permitted, that is, the controlling evidence is definitive (*qat'ī*) having one meaning, then, the silence of some jurists cannot be considered tacit approval, because jurists are not supposed to open up these issues.

12.1.4 The legal force of *ijmā'* as a source

Ijmā', as we have said, is either explicit or it is tacit. Each has a rule (*ḥukm*) that differs from the other with respect to binding strength as a source of law. This distinction is presented below:

²²⁷ Ibid.

²²⁸ The meaning of *qat'ī* and *zannī* has preceded in the previous chapter.

12.1.4.1 The binding strength of explicit *ijmā'*

The majority of the jurists agreed upon the rule that explicit *ijmā'* is a definitive source and it is obligatory to act upon it; its opposition is prohibited. Thus, if explicit *ijmā'* occurs on an issue and is published, then, the *hukm* upon which agreement is found stands established definitively (*qaṭ'an*) and it is not permitted to oppose it. Further, the issue that has been settled through such *ijmā'* can no longer be opened up again and subjected to *ijtihād*. In other words, the issue is no longer a moot point.

Al-Nazzām al-Baṣrī, a leading Mu'tazilite, and some of the Khawārij said that *ijmā'* is not a binding source. The majority, who upheld *ijmā'* as a binding source, as well as those who opposed them on this issue, argued on the basis of the Qur'ān and the *Sunnah*. Their arguments were as follows:

Arguments of the majority. The majority gave the following arguments:

1. The words of the Allah:

ومن يشاقق الرسول من بعد ما تبين له الهدى ويتبع غير سبيل المؤمنين نوله ما تولى ونصله جهنم
وساءت مصيرا

"If anyone contends with the Messenger even after guidance has been plainly conveyed to him, and follows a path other than that of the believers, we shall leave him in the path he has chosen, and land him in hell. What an evil refuge."

Allah has promised hell and a bad ending to those who follow a way different from that of the believers, and the way of the believers is determined by explicit and unanimous *ijtihād*. Thus, consensus after *ijtihād* is the true path to be followed, and it is not proper to go against it.

This argument may be refuted in the following way. The intended meaning in this verse of the way of the believers is following the Prophet (peace be on him), helping him, and repelling his enemies. It does not mean following what the *mujtahids* have agreed upon with respect to the *alīkāni*. This is the apparent meaning of the verse, from its *sabab al-nuzūl*, and from the verse that follows, which says that Allah will not forgive *shirk* and may forgive what is less than that.

2. The tradition related from the Prophet (peace be on him) about the freedom from error when the *ummah* is unanimous about the matter, like his words: "My *ummah* will not collectively agree upon an error" (لا تجتمع أمتي على خطأ), "What the Muslims consider good is good in the eyes of Allah" (ما رآه المسلمون حسنا) (فهو عند الله حسنا) and "I asked Allah that my *ummah* not agree on an error and He granted it (this prayer) to me" (سألت الله أن لا تجتمع أمتي على الضلالة فأعطانيها). They said that these traditions had been related by trustworthy narrators, and though they are not *mutawātir* in words, they are continuous (*mutawātir*) in the meaning they convey, and which is that my *ummah* is protected against falling into collective error.

It was on the basis of these evidences that the majority accepted *ijmā'* as a source of law and acted upon it as such.

Arguments of al-Nazzām al-Baṣrī Against *Ijmā'*. Al-Nazzām and those who supported him argued on the basis of the following evidences:²²⁹

1. In the words of the God, "O ye who believe, Obey Allah and obey the Prophet,...," Muslims have been commanded to refer each dispute to Allah and His Prophet, and the meaning of referring disputes to Allah and His Prophet is reference to the Qur'ān and the *Sunnah*. There is no command in this verse, he said, to refer the disputed matter to the agreement of the jurists.

The response to this argument is that it is the Book of Allah and the *Sunnah* of His Prophet (peace be on him) that give us guidance about *ijmā'* as indicated in the arguments of the majority above.

2. When the Messenger of Allah (peace be on him) asked Mu'adh ibn Jabal about the sources for his decision, he did not mention *ijmā'*. Had *ijmā'* been a valid source, it would not have been abrogated.

229. See 'Abd al-'Azīz al-Bukhārī, *Kashf al-Asrār*, vol. 3, 351, for these arguments and also those of the majority. See also al-Rāzī, *al-Maḥṣūl*, vol. 4, 35 passim.

This argument is considered weak because *ijmā'* is a source that comes into operation after the death of the Prophet (peace be on him) and Mu'ādh could not have possibly mentioned it.

The reasoning and arguments of the majority, who accept *ijmā'* and act upon it as a source of law, are considered stronger than those of the opponents.

12.1.4.2 The binding strength of tacit *ijmā'*

As for tacit *ijmā'*, some of the jurists who upheld the binding strength of explicit *ijmā'*, objected to tacit *ijmā'* as a source of law. Some of them even refused to call it by the name of *ijmā'*. Among these jurists are Imām al-Shāfi'ī as well as Mālikites.

Those who object to it argue that silence on the part of some jurists could possibly mean that they agree with the opinions expressed explicitly. It could mean that they are not willing to express an opinion on the issue due to respect for the person who has done so or out of fear or some other reason. Silence, therefore, cannot be considered as an evidence of agreement.

The majority of the jurists, however, maintained that tacit *ijmā'* is a legally binding source, but they differed with respect to its strength. Some said that it is a definitive source, like explicit *ijmā'*, and these are the Hanafī jurists and Imām Aḥmad ibn Ḥanbal. Their argument is that evidences for *ijmā'* in the Qur'ān and the *Sunnah* do not differentiate between explicit *ijmā'* and tacit *ijmā'*. Some of the jurists said tacit *ijmā'* is a probable (*ẓannī*) source. Among these jurists is al-Karkhī, the well known Hanafī jurist and al-Āmidī, a later Shāfi'ī scholar.

It is well known that the Companions of the Prophet (peace be on him) used to speak out without fear whenever they felt that a decision could be improved. For example, when the mighty 'Umar ibn al-Khaṭṭāb decided to award the penalty of stripes to a pregnant woman for her offence, Mu'ādh ibn Jabal pointed out that he would be awarding the punishment to her as well as to what was in her womb. 'Umar said, "Had Mu'ādh not been here, 'Umar would have perished." There are many such examples. Further, one would expect from a person who has attained the status of a *mujtahid* to speak his mind whenever he feels that the truth is different. He should not remain silent because of fear or some other expediency, for he is no ordinary individual and it would be his duty to speak out

if he disagrees. It is, therefore, felt that those who maintain that *ijmā' sukūṭī* is equally binding as *ijmā' qawālī* are making a sound argument, and it appears better to consider both types of *ijmā'* as having equal strength.

12.1.5 The *sanad* of *ijmā'*

The *sanad* of *ijmā'* is the evidence upon which the jurists rely for arriving upon a consensus. The majority of the jurists agree that each *ijmā'* must have a *sanad* on which the jurist should rely, while arriving at the opinion, otherwise the resulting *ijmā'* would be based upon *ra'y* (personal opinion) and this is rejected by the *sharī'ah*.²³⁰

Evidences Qualifying as a *Sanad*. There is no disagreement among the jurists that evidences from the texts of the Qur'ān and the *Sunnah* are to be treated as valid *sanads* for *ijmā'*. Thus, for the *ijmā'* on marriage being unlawful with grandmothers, the *sanad* is the verse, "حُرِّمَتْ عَلَيْكُمْ أُمَّهَاتُكُمْ" (forbidden unto you (for marriage) are your mothers). For the *ijmā'* on the prohibition of sale of food prior to possession by the buyer, the *sanad* is the tradition: *من ابتاع طعاماً فلا يبعه حتى يقبضه* (Whoever buys food should not sell it until he has taken possession of it).

As regards *qiyās* (analogy) being a *sanad* for *ijmā'*, there is disagreement among the jurists. Those who object to *qiyās* being a *sanad*, maintain that *qiyās* is a probable (*zannī*) evidence, while *ijmā'* is a definitive evidence, and it is not proper to construct a definitive evidence upon a probable evidence. The majority of the jurists, however, accept *qiyās* as a valid *sanad* for *ijmā'*. They argue that even a *khbar wāḥid* is a probable evidence, yet it is accepted as a valid *sanad* for *ijmā'* by agreement of the jurists. Further, they argue that even an analogy traces its logic back to an *aṣl* in the texts of the Qur'ān and the *Sunnah*, so accepting *qiyās* as a *sanad* should not be a problem.

230. We have already indicated that the stipulation of this condition may take away something from the strength of *ijmā'* as an independent principle. As mentioned below, some jurists even object to analogy being a supporting evidence for a rule based on consensus, the argument being that analogy is a probable evidence and it cannot support a definitive evidence.

Similar arguments are advanced with respect to *maṣlahah mursalah* as a *sanad* for *ijmā'* and it has been used as a *sanad* in practice. The examples they cite are the collection of the Qur'ān into a *muṣḥaf*. All the Companions agreed on this in the interest (*maṣlahah*) of the *ummah*. Another example they cite is about the *kharāj* lands of Iraq, which were conquered during the period of 'Umar. These lands were not divided up as *ghanimah*, but were left in the hands of those in possession as *kharāj* lands, again in the interest of the *ummah*. Those who upheld using *maṣlahah mursalah* as a *sanad* agree that an *ijmā'* based on it cannot be permanent, and will last as long as the *maṣlahah* persists. If the *maṣlahah* changes, the *ijmā'* will also have to be altered.

12.1.6 Likelihood of the occurrence of *ijmā'*

There is some disagreement about the possibility of consensus and its actual occurrence. The majority of the jurists maintained that such a consensus is possible and actually did take place. Al-Nazzām and his followers maintained that such a consensus is not possible. They argue that a condition for *ijmā'* is the participation of all the *mujtahids* of a particular period and this requires the identification of all *mujtahids* as well as the identification of their opinions. This they argue is not possible, because there is no criterion for distinguishing a *mujtahid* from a non-*mujtahid*, and even if there was such a criterion, the *mujtahids* are spread all over the Muslim lands and it is not possible to gather them in one place nor to ascertain where they are. They argue further that a *mujtahid* has to rely on an evidence in the sources for the formulation of his opinion. Now, such an evidence is either definitive or probable. A definitive evidence conveys a single meaning and there cannot be two views about it, therefore, there is no function that *ijmā'* can perform in this case. If, on the other hand, the evidence is probable, that is, it has more than one interpretation, getting all the *mujtahids* to agree upon a single meaning is an impossibility.

To these arguments, the majority respond by saying that there have been such agreements in Islamic history. The examples they quote pertain to the period of the Companions. For example, the granting of one-sixth share in the inheritance to the grandmother, the prohibition of sale of food before the buyer has taken possession, the prohibition of the marriage of a Muslim woman to a non-

Muslim, and the validity of marriage (*nikāḥ*) when a dower has not been mentioned.

The objection to this argument may be that even if this were possible during the period of the Companions, when all the *mujtahids* were well known and easily accessible, it would be impossible today when the Muslim world is composed a large number of states. Some may respond, however, that the world is once again becoming a smaller place with the rapid advancements in technology, and we cannot call the possibility of the occurrence of *ijmā'* as impossible.

12.1.7 Cases of *ijmā'* transmitted in books of *fiqh*

For an agreement to constitute valid *ijmā'* it must be among all *mujtahids* in a determined period upon a legal issue. The jurists have argued in support of this concept of *ijmā'* on the basis of the texts of the Qur'ān and the *Sunnah*. The question is: Have the rules about *ijmā'* laid down in these texts, and formulated by the *fuqahā'*, been followed in books of *fiqh*?

Those who study these books notice that instances of *ijmā'* mentioned in the books of *fiqh* are either among the majority of the jurists or they are agreements pertaining to the jurists of one school. On a number of occasions, the cases cited are those of tacit rather than explicit *ijmā'*. Thus, for example, we may find, in the Ḥanafī books, statements to the effect that such and such jurist upheld such an opinion and no one opposed him, thus it constitutes *ijmā'*. It is obvious that such claims of *ijmā'* do not meet all the conditions that the *fuqahā'* have themselves laid down for valid *ijmā'*.

In addition to this, there is no compiled source for cases of *ijmā'*. There are a few books, like the one by Ibn Ḥazm, who belonged to the Zāhirī school, which is now extinct. The name of the book is *Marātib al-Ijmā'*.

12.1.8 Role of *ijmā'* in the modern world

In the preceding discussion, it has been stated that there are various objections against the principle of *ijmā'*. Some of the objections pertain to the conditions of *ijmā'* as stipulated by the jurists, while others relate to the possibility of its occurrence. Some practical difficulties have also been pointed out. *Ijmā'* is a source that is accepted by all the Sunnī schools, just as they accept the two primary

sources, yet there is no established system for its transmission. The only transmission of *ijmā'* one finds is within the schools; in the books of each school. Further, some of the cases or instances of *ijmā'* that are cited do not meet the conditions stipulated for *ijmā'* when they are examined outside the schools of *ijtihad* and *fiqh*.

Due to these factors and objections, some modern scholars have said that *ijmā'* does not appear to be a practical principle and cannot operate as a source of law, at least in the modern times. The view of the present author is that the very fact that *ijmā'* has been accepted as a primary source of law for so many centuries by the leading jurists of Islam, it has to have a greater or deeper role than is exhibited by the external conditions imposed by jurists. In other words, the matter needs to be examined a little more deeply, perhaps, in the context of modern law.

An examination of the principle of *ijmā'* in a general way reveals that all it is saying is that if a rule or principle is upheld collectively by the highest legal forum in the land, then, such a principle or rule must be followed by those subordinate to this forum. This is exactly what the doctrine of *stare decisis* says in the English common law system. The deeper the examination of the principle of *ijmā'*, the greater is the conviction it requires that the decision of the higher forum, or the full bench of the highest court (*en banc*), so to say, must be followed and maintained by the lower courts.

In the earlier stages of the growth of Islamic law, the forum was confined to the jurist Companions. Later, when the schools of law emerged, the forum moved to the leading jurists of each school and operated within the schools. Today, when the *ummah* is composed of different jurisdictions in Muslim countries, the forum would automatically be the highest court in each Muslim country. In fact, the principle fits in perfectly with the legal system in those countries that have the English common law as the modern tradition.

REVIEW QUESTIONS

1. What is the meaning of *ijmā'* and what are the conditions for its validity?
2. What are the different types of *ijmā'* and what is the legal force of *ijmā'* as a source of Islamic law?
3. What is the binding strength of tacit *ijmā'* or *ijmā' sukūṭī*?

4. What do you understand by the term *sanad* of *ijmā'*? Is it necessary for the jurist to rely on *sanad* for purposes of *ijmā'*?
5. Describe the meaning of *ijmā'* and its role as a source of law in the modern times.
6. The Constitution of Pakistan does not recognize *ijmā'* as a source of Islamic law. Discuss.
7. Compare the activities of the Supreme Court, the Federal Shariat Court and the Council of Islamic Ideology with the activity of the jurists when arriving at a consensus (*ijmā'*).

Part III

The Secondary Sources of Islamic Law

Maṣlahah and the Maqāṣid al-Sharī'ah

The secondary sources of Islamic law are mostly rational. The term "rational" with respect to secondary sources means that these are not material sources in which the rules are stated. The rational sources are techniques of legal reasoning that the *mujtahid* employs during his *ijtihād*. The material sources used during this legal reasoning are the Qur'ān, *Sunnah* and *ijmā'*, and the rational secondary sources provide the means of extension for the law stated in these primary sources.

The secondary sources of Islamic law to be discussed in the chapters of this Part are: *qiyās* (analogy); *istihsān* (juristic preference of the stronger principle); *istiḥāb al-hāl* (presumption of continuity); *maṣlahah mursalah* (extended analogy); and *sadd al-dharī'ah* (blocking the lawful means to an unlawful end). Sources that are not considered rational, but transmitted are discussed in the last chapter of this Part. Accordingly, The first study taken up is that of *qiyās*, however, before we do so we would like to discuss the concept of *maṣlahah* and the *maqāṣid al-sharī'ah*.

A discussion of the *maqāṣid al-sharī'ah* (the purposes of Islamic law) as well as the principle of *maṣlahah*, before discussing the rational sources, becomes necessary due to several reasons. The first is that the principle of *maṣlahah* has grown to envelope all the rational

sources. Each rational source is today considered part of the larger doctrine of *maṣlahah*. The second is that this principle is considered the most important and the most comprehensive instrument of *ijtihād* for the modern times; its discussion must therefore precede that of the rational sources. A third reason is that the larger doctrine of *maṣlahah* must be distinguished from the narrower principle of *maṣlahah mursalah*, which is considered one type of rational source within the broader doctrine.

In our book, *Theories of Islamic Law*, we have given most of the credit to Imām al-Ghazālī for developing the doctrine of *maṣlahah*. This is justified, but here we would like to acknowledge the contribution of the jurist who made the first clear statement about *maṣlahah* and the *maqāṣid al-sharī'ah*. It was none other than the great Imām al-Sarakhsī.

The meaning of *maṣlahah* is discussed first and is followed by a description of the purposes of Islamic law or the *maqāṣid al-sharī'ah*.

13.1 The Meaning of *Maṣlahah* (Interest) and the Doctrine of Utility

The words *maṣlahah* and *manfa'ah* are treated as synonyms. *Manfa'ah* means "benefit" or "utility," that is, it leads to some kind of benefit. In its literal meaning *maṣlahah* is defined as جلب المنفعة ودفع المضرة (*jalb al-manfa'ah wa-daf' al-maḍarrah*) or the seeking of benefit and the repelling of harm.

13.1.1 The Meaning of Utility and Bentham

If this literal meaning is pursued further it will lead to something similar to the principle of utility expounded by Jeremy Bentham, which means securing the maximum human happiness. The seeking of human happiness in this sense may imply three things:

- (i) That the happiness sought here is dependent upon human desires or reason. The pursuit of such happiness may or may not coincide with the form of benefit or *manfa'ah* intended by the *sharī'ah*.
- (ii) The emphasis in this form of happiness will always be on the collective utility, that is, the happiness of the entire community and the interests of the individual may be given a back seat.

- (iii) The pursuit of pure utility²³¹ may ultimately lead to the economic analysis of law (as expounded by Richard Posner and the Chicago School). In other words, all legal decisions must be reduced to a cost-benefit analysis either financial or economic. This may or may not suit the goals of the *sharī'ah*.

13.1.2 *Maṣlahah* in Islamic Law

Manfa'ah (benefit or utility), however, is not the technical meaning of *maṣlahah*. What Muslim jurists mean by *maṣlahah* is the seeking of benefit and the repelling of harm as directed by the Lawgiver. The seeking of utility in Islamic law is not dependent on human reason and pleasure. Al-Ghazālī, therefore, defines *maṣlahah* as follows:

As for *maṣlahah*, it is essentially an expression for the acquisition of *manfa'ah* (benefit) or the repulsion of *maḍarrah* (injury, harm), but that is not what we mean by it, because acquisition of *manfa'ah* and the repulsion of *maḍarrah* represent human goals, that is, the welfare of humans through the attainment of these goals. What we mean by *maṣlahah*, however, is the preservation of the ends of the *shar'*.²³²

Three things are obvious from this statement:

- (i) That the pursuit of human goals and the principle of utility based on human reason is not what is meant by *maṣlahah*.
- (ii) That *maṣlahah* is the securing of goals or values that the Lawgiver has determined for the *sharī'ah*.
- (iii) That the goals determined for the *sharī'ah* by the Lawgiver may or may not coincide with values determined by human reason. Thus, reasoning based upon the principle of utility or on economic analysis may sometimes be acceptable to the *sharī'ah*, but it may be rejected at other times when there is a clash of values.

231. See Edgar Bodenheimer, *Jurisprudence: The Philosophy and Method of the Law*, 84 for the details of the principles of utility and Richard Posner, *Economic Analysis of Law* for economic analysis.

232. Al-Ghazālī, *al-Mustasfā min 'Ilm al-Uṣūl*, Baghdad, 1294 (A.H.), vol. 1, 286.

13.2 The Classification of *Maṣlahah*

Muslim jurists classify *maṣlahah* in several ways. These classifications are expected to show us how this principle covers most of the rational sources and how the discussion of the sources is linked with the purposes of Islamic law. Some of the most important classifications are provided below.

13.2.1 First classification: *maṣlahah* acknowledged or rejected by the *sharī'ah*

For purposes of this classification, it is important to understand that the underlying causes of the *ahkām* present a hierarchical structure of attributes. Sometimes the *sharī'ah* recognises a lower level attribute as the basis for the law, while at other times it accepts a higher level attribute. The level at which an attribute is acknowledged indicates the type of rational source being used. The classification that follows is based on the recognition of attributes at different levels.²³³ Four types of *maṣlahah* are discussed under this heading:

1. *Maṣlahah* acknowledged at the level of the lowest category. The first type is *maṣlahah* acknowledged by the Lawgiver at the level of the lowest category (*naw'*). Take the case of drinking *khamr* (wine). The underlying cause at the lower level could be "intoxication," that is, losing of one's senses. A higher level cause could be the "protection of the intellect." Recognition of a cause at the lower level means that the rational source invoked is analogy (*qiyās*). This means that the law can be extended to other things on the basis of analogy using the rule: whatever intoxicates is prohibited. Prohibiting intoxication is, therefore, the repelling of harm or the securing of an interest protected by the law (*maṣlahah*). All those cases where the Lawgiver has identified underlying causes at the lowest level fall under the first type of *maṣlahah*. Further, this tells us that using analogy (*qiyās*) is one type of *maṣlahah*.
2. *Maṣlahah* acknowledged at the level of the genus. The second type is *maṣlahah* that is acknowledged by the Lawgiver

233. The most lucid presentation of the different types of *maṣlahah*, in our view, is to be found in al-Rāzī, *al-Maḥṣūl*, vol. 6, 162–67.

at the level of the genus, that is, at a level higher than the lowest category. Such a recognition takes us beyond the level of analogy into the realm of other rational sources, especially *maṣlahah mursalah*. This recognition of attributes can go up to the highest level of the purposes of law. The purposes of Islamic law at the highest level are five: Preservation of *dīn*; preservation of life; preservation of *nasl* (progeny); preservation of intellect; and preservation of wealth. The jurists illustrate the recognition of these attributes through a large number of examples. Thus, the Companions of the Prophet (peace be on him) were not sure whether the text of the Qur'ān should be compiled, because the Prophet had not done so during his lifetime. In the interest of "preservation of *dīn*" they decided that it should be gathered and compiled. The texts clearly mention that a life is to be taken for a life in the case of *qisās* (retaliation). Where two or more persons participate in the murder of one person, should more than one life be taken for a single life? It was decided that in the interest of the "preservation of life" such a law should be made. The details of this type will be explained under the discussion of *maṣlahah mursalah* as well as under the discussion of the third mode of *ijtihād*.

3. *Maṣlahah* that is rejected by the *sharī'ah*. The third type *maṣlahah* is one that is not acknowledged by the *sharī'ah*, because it clashes with a text. The jurists have found it difficult to give examples of this type. They provide hypothetical cases. Let us assume that the *ḥukm* for a person indulging in sexual intercourse during fasting is the freeing of a slave. A jurist may say that this provision gives a loophole to a very rich person, because setting free a slave is nothing for him. Such a jurist may say that this option should therefore not be available to a rich man in the interest of "the preservation of *dīn*." The *sharī'ah*, however, does not recognise such a measure and the argument is without foundation and is rejected. In other words, a provision proposed in contradiction of what the *sharī'ah* has already provided will not be recognised as a *maṣlahah* that clashes with a text of the Qur'ān or *Sunnah* is rejected.

4. *Maṣlahah* that is neither acknowledged nor rejected. The

fourth type is a *maṣlahah* that is neither acknowledged by the *sharī'ah* nor is it rejected. This type of *maṣlahah* is one that is strange (*gharīb*) for the *sharī'ah*. An example will be provided under the discussion of *maṣlahah mursalah* for ease of understanding.

13.2.2 Second classification: *maṣlahah* according to its inner strength

This classification is based upon the purposes of Islamic law and their types. The types of *maṣlahah* according to their inner strength are three: *darūrāt* (necessities); *hājāt* (needs); and *tahsīnāt* (complementary goals).

1. *Darūrāt* (necessary interests). Necessary interests are those without the protection of which there would be anarchy and chaos in society. The absence of protection for these interests would mean the loss of everything that we hold dear. These prized social interests are five in number:
 - a) Preservation and protection of religion (*ḥifẓ 'alā al-dīn*).
 - b) Preservation and protection of life (*ḥifẓ 'alā al-nafs*).
 - c) Preservation and protection of progeny (*ḥifẓ 'alā al-nasl*).
 - d) Preservation and protection of intellect (*ḥifẓ 'alā al-'aql*).
 - e) Preservation and protection of wealth (*ḥifẓ 'alā al-māl*).
2. *Hājāt* (supporting needs). The second type of interests are called *hājāt* or supporting interests required by the necessary interests for their smooth operation and implementation. If these supporting interests are not protected by the law there would be hardship and loss in the performance of social functions. This means that the primary or necessary interests would not be lost, but there would be considerable friction and difficulty in their protection. The examples of these interests given by jurists pertain mostly to exemptions granted by the law. For example, the exemptions available due to illness or journey in case of worship serve these interests, just like the contract of *salam* (advance payment) works as an exemption to facilitate transactions. The necessary interests do not depend on these exemptions or supporting needs, but their operation is facilitated.

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- d) Preservation and protection of intellect (*hifẓ 'alā al-'aql*).
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3. *Tahsīnāt* (complementary interests). These interests provide additional rules that lead to the moral and spiritual progress of the individual and society. Examples are: voluntary *ṣadaqah* and many ethical and moral rules (like the command not cut trees or to kill animals during war). In reality, the *tahsīnāt* tell us that there is a moral shell around the necessities and supporting needs provided by the *sharī'ah*. Thus, morality goes hand in hand with the law and there is no separation as may be found in Western law.

This classification shows the types of purposes of the Islamic law and the relationship between them.

13.2.3 Third classification: definitive and probable interests

Some jurists, and some later writers, have maintained that there are interests that are definitive (*qaṭ'ī*) and those that are probable (*ẓannī*). Jurists like al-Ghazālī and al-Shātibī have spent considerable time in showing that all the interests classified according to their inner strength above are definitive, because they have been constructed through a process of induction (*istiqrā'*) rather than deduction. Certain cases of interests that have been called strange or *gharīb* may, however, be deemed to be probable. Yet, the major area of probable purposes lies in the area called *ashbāh* by al-Ghazālī.²³⁴ (See the figure below at p. 226, as well as the section on what lies beyond the *maqāṣid*.)

This issue is found in Western law as well when values are classified according to different types of rationality, with some legal philosophers, like Kelsen, maintaining that most interests or values preserved by the law do not meet the standards of rationality that can be called definitive.²³⁵ These, however, are values identified by human reason. We shall have something more to say about this when we discuss the third mode of *ijtihād* in the next part of this book.

234. See Al-Ghazālī, *Shifā' al-Ghalīl fī Masālik al-Ta'līl*, 142 as well as the chapter on the *ashbāh*.

235. Edgar Bodenheimer, *Jurisprudence*, 203.

13.2.4 Fourth classification: public and private interests

The necessary interests, the supporting needs and complementary interests can all be divided into public interests and private interests. In fact, the settlement of legal disputes always involves some kind of conflict or clash between public and private interests or between two private interests.

The problem that arises, especially in modern times, is whether public interests are based on the rights of Allah (*ḥaqq Allāh*) or on the rights of the state (*ḥaqq al-saltānah*) or are these the same thing?

13.3 The Doctrine of *Maṣlahah* and *Maslahah Mursalah*: Distinction

The principle of *maṣlahah mursalah* was first used by Imām Mālik, the founder of the Mālikī school. It was elaborated and developed in the works of al-Ghazālī.²³⁶ Out of this discussion there emerged a larger doctrine of *maṣlahah*, which is much wider than the principle or source of Islamic law called *maṣlahah mursalah*.

The larger doctrine requires that during the use or employment of rational sources to discover the law, each derived law must be checked against the purposes of Islamic law or the *maqāṣid al-sharī'ah*. If there is some compatibility (*munāsabah*) between the derived law and the purposes, then the law is valid, otherwise it may be rejected. In this sense, all the rational sources fall under this larger doctrine. Thus, the larger doctrine covers *qiyās*, *istiḥsān* and *maṣlahah mursalah*. In other words, each of these rational sources has now become or is deemed a type of this larger doctrine. It is for this reason that the meaning of *maṣlahah* and the nature of the purposes of law has been discussed before the description of the rational sources.

13.4 *Maqāṣid al-Sharī'ah* or the Purposes of Islamic Law

The purposes of law are divided by al-Ghazālī into two types:

- *dīnī* or purposes of the Hereafter.

236. Especially in his book *Shifā' al-Ghalīl*.

- *dunyawī* or purposes pertaining to this world.

Each of these is divisible into *tahṣīl* or securing of the interest and *ibqā'* or preservation of the interest. *Tahṣīl* is the securing of a benefit (*manfa'ah*) and *ibqā'* is the repelling of harm (*maḍarraḥ*). The phrase *ri'āyat al-maqāṣid* (preservation of the *maqāṣid*) is used to indicate both *tahṣīl* and *ibqā'*.²³⁷

The worldly purposes (*dunyawī*) are further divided into four types: the preservation of *nafs* (life), the preservation of *nasl* (progeny), the preservation of *'aql* (intellect), and the preservation of *māl* (wealth). Each worldly purpose is meant to serve the single *dīnī* purpose. When all types are taken together, we have five ultimate purposes of the law:

- *dīn* (religion),
- life,
- progeny (may be called the preservation of the Family),
- intellect, and
- wealth.

These five purposes are designated as *darūrāt* (necessities) and are the primary purposes of the law. These are followed by the *hājāt* (needs), which are additional purposes required by the primary purposes, even though the primary purposes would not be lost without them. The third category is that of purposes that seek to establish ease and facility (*tawassu'* and *taysīr*) in the law; these are called the *tahṣīnāt* (complementary values).

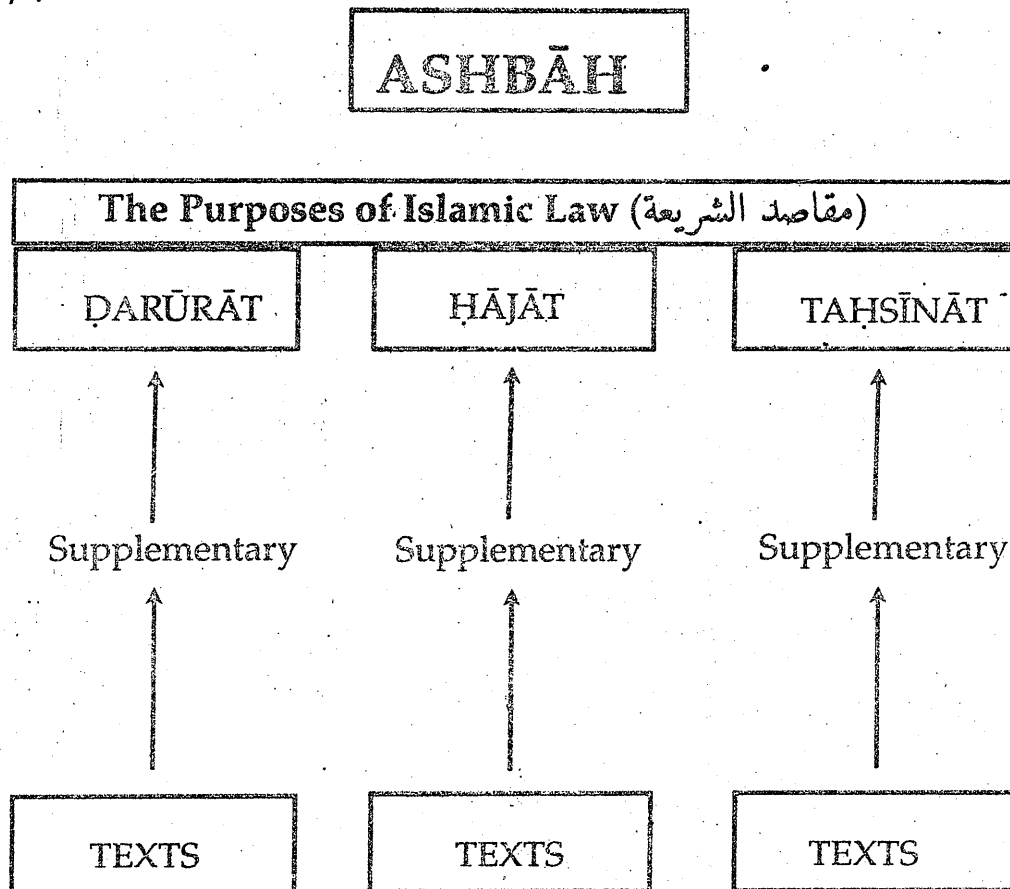
The relationship of the purposes of Islamic law may be seen in the figure below.

13.4.1 What is beyond the purposes?

If we move beyond the ultimate values recognised as the purposes of the law, we reach the area of weaker attributes, which are also used by the jurists for extending the law. This is the area of the *ashbāh* (probable values). These too are organized in the form of the

237. Al-Ghazālī, *Shifā' al-Ghalīl*, 186–87.

particular and the general. This is the area of the probable or *ẓanni* *maqāṣid*.



Thus, the purpose beyond these purposes could be the building of civilisation, security, the maintenance of equality, freedom, and many other values that are preserved and protected by each society and they are expressed as the aims of justice in Western law.²³⁸ The Muslim jurists did not deal with such values, because they are probable and do not fall in the area of certain rationality. An attribute depicting such values is called *wasf ba'īd* or a distant value; it is distant in comparison with the *darūrāt*, each of which is a *wasf qarīb* or near value.

13.4.2 *Maqāṣid al-sharī'ah* and the texts

The purposes of Islamic law have been determined from the texts through a process of induction (*istiqrā'*) rather than through deduction.²³⁹ This is the reason why the *maqāṣid* are considered definitive (*qat'ī*), and can be relied upon without a doubt, and the

238. Bodenheimer, *Jurisprudence*, 196.

239. Al-Shāṭibī, *al-Muwāfaqāt*, vol. 2, 7.

same pattern is to be found in the other details of the *sharī'ah*.²⁴⁰ Al-Shāṭibī quotes a large number of verses of the Qur'ān to show how the ultimate purposes are indicated by the texts.

13.5 The Nature and Structure of the Purposes of the *Sharī'ah*

The structure of the *maqāṣid* is understood by appreciating the relationship of the primary purposes among themselves, and their relationship with the secondary and supporting purposes. As the *maqāṣid* are designed to ultimately serve the interests of the Hereafter, it is this relationship that may be examined first.

13.5.1 Primary purposes in the service of the Hereafter

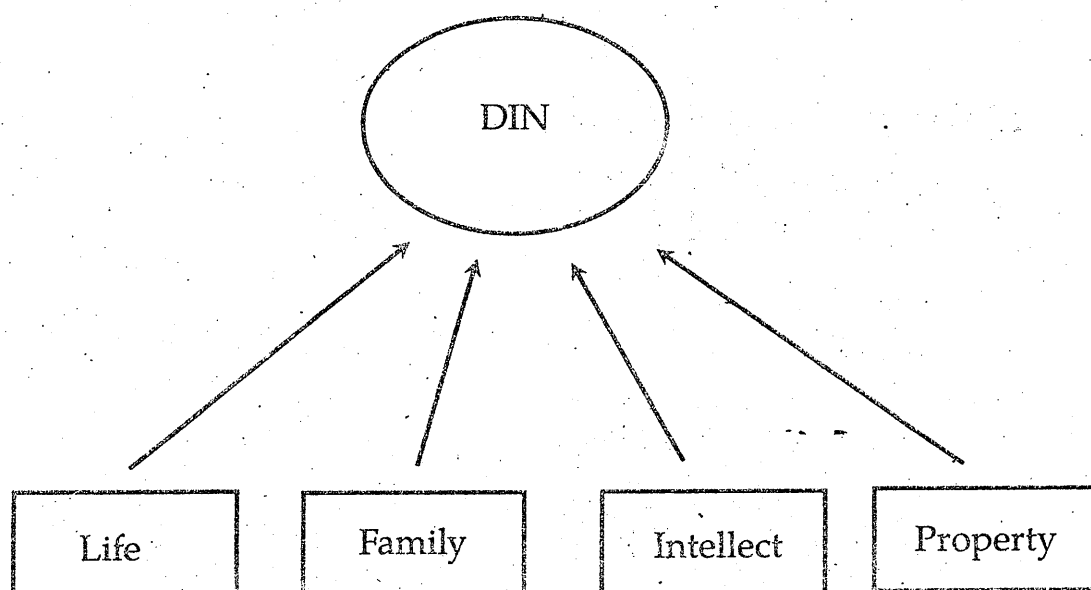
The first purpose of the *sharī'ah* is to secure the interest of Man that pertains to the Hereafter. It is for this reason that the purposes are divided into *dīnī* or purposes of the Hereafter and *dunyawī* or purposes restricted to this world. The worldly purposes, in combination, seek to preserve and protect the interest of *dīn*.

Al-Ghazālī says that the second purpose, which is the preservation and protection of life, may be considered by some to have a higher priority than *dīn*, because without life there would be no religion. This argument takes collective life into consideration, and in this sense it would also hold true for the intellect too, because the existence of '*aql*' is considered by jurists to be a condition of *taklīf* (legal obligation). He points out, however, that some provisions of the law clearly support the superiority of the interest of *dīn*. For example, the interest of *dīn* is preferred when the subject is asked to give up his life in the way of Allah, that is, for *jihād*. The relationship of the necessities or the primary purposes is seen through the following figure:

Al-Shāṭibī devotes three of the thirteen rules, in which he discusses the relationship among the purposes, to the discussion of the Hereafter. The most important point he makes in this context is that the identification of the interests of Man has not been left to the whims and fancies of human beings, that is, to human reason,

240. Ibid.

because all the purposes seek to establish and maintain life in this world to serve the interests of the Hereafter.



He also discusses the concept of utility and points out that benefits and harms are relative; they may vary from individual to individual, and from one situation to the other. If harm and benefit cannot be established directly from the texts, then, it is to be linked to what is usually considered beneficial or harmful. The general rule that he derives is that since the *maqāṣid* serve the interests of the Hereafter the determination of what is beneficial and what is harmful cannot be left to human reason. He seeks support from a number of Qur'ānic verses. One of these is:

ولو اتبع الحق أهواءهم لفسدت السموات والأرض ومن فيهن

And if the Truth had followed their desires, verily the heavens and the earth and whosoever is therein had been corrupted. [Qur'ān 23 : 71]

In his view, the role of human reason begins after the *sharī'ah* has laid down the essential principles.²⁴¹ The first of the thirteen rules he expounds is devoted to this point.

The primary purpose of the *sharī'ah*, then, as indicated already, is to free Man from the grip of his own whim and fancy, so that he may become the servant of Allāh by choice, just as he is one without it.²⁴² The preservation and protection of *dīn* is intended by the Lawgiver to achieve this.

241. Al-Shātibī, *al-Muwāfaqāt*, vol. 2, 48.

242. Ibid., vol. 2, 38, 168.

13.5.2 The two faces of the *maqāṣid*

Perhaps the most important feature of the *maqāṣid* is their dual thrust. Al-Ghazālī discusses this dual nature in detail in his book called *Jawāhir al-Qur'ān*.²⁴³ This point has been ignored by almost all the later jurists, except for al-Shāṭibī.

The dual feature of the *maqāṣid* is evident in the use of the terms *ibqā'* and *ḥifz*, which we may call preservation and protection.²⁴⁴ Al-Shāṭibī considers these the two aspects of *ḥifz*. The first he says is "what affirms its elements and establishes its foundations."²⁴⁵ The second is "what repels actual or expected disharmony."²⁴⁶ The focus of later jurists, and hence that of modern scholars, has been on the aspect of protection alone. Each purpose, however, has a positive or aggressive aspect and a negative or defensive aspect. From the positive aspect, the interest is secured by establishing what is required by the *sharī'ah* through each of its *maqāṣid*. Thus, the interest of *dīn* is secured by the creation of conditions that facilitate worship and establish the other essential pillars of Islam. The interest of life is secured by creating conditions for the existence of life. The interest of progeny is supported by facilitating and establishing family life. The interest of intellect is secured by promoting the means for the growth of the intellect. The interest of wealth is secured by creating proper conditions for the growth of wealth.²⁴⁷

	<i>Dīn</i>	Life	Family	Intellect	Wealth
+ve	Establish	Establish	Establish	Establish	Establish
-ve	Defend	Defend	Defend	Defend	Defend

From the defensive or the protective aspect, interests are secured by preventing the destruction or corruption of the positive aspect. Thus, *jihād* is prescribed for defending *dīn*, while prayer, fasting, pilgrimage, and *zakāh* help establish it. It is the duty of the *imām*

243. Al-Ghazālī, *Jawāhir al-Qur'ān* (Beirut: Dār Ihyā' al-'Ulūm, 1985), 32-35.

244. There may be a problem with the terminology adopted by the two jurists, because we noted above that al-Ghazālī has used the terms *taḥṣīl* and *ibqā'* where *ibqā'* means protection rather than preservation.

245. Al-Shāṭibī, *al-Muwāfaqāt*, vol. 2, 8.

246. Ibid.

247. Ibid., 2, 9.

to ensure proper conditions for both, while it is binding upon each subject to fulfil these duties, individually and collectively. Life is preserved through the provision of sustenance and the maintenance of good health, while it is protected or defended through the provision of penalties for those who destroy life without legal justification. *Nasl* is promoted through the maintenance of healthy family life and the institution of marriage, while penalties are provided for those who would corrupt it and destroy its values. The preservation of *'aql* is achieved through the provision of education and healthy conditions for its growth, while penalties are provided for the consumption of substances that destroy the intellect. Preservation of wealth is achieved by encouraging its growth, while theft or misappropriation of wealth is punished through penalties.

13.5.3 Primary and secondary purposes

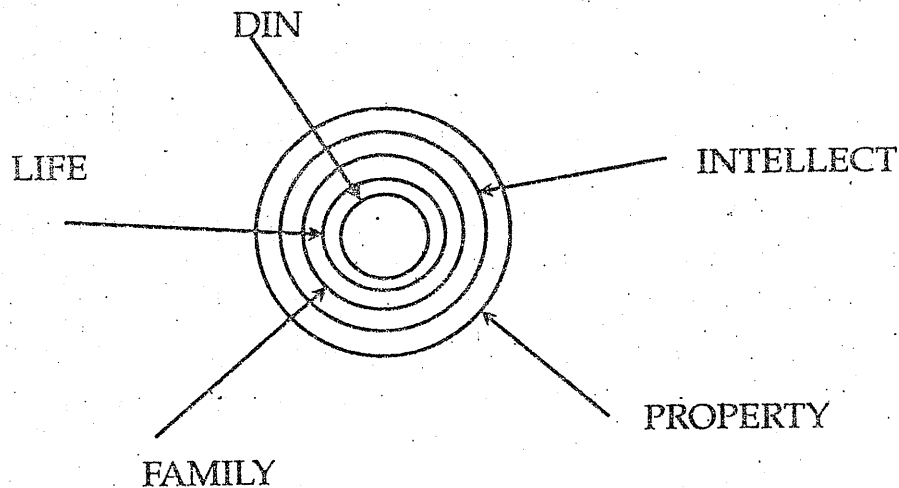
The jurists break up the *maqāṣid* into three levels. This has already been pointed out. The first level is that of the necessities (*darūrāt*), which have been maintained by all societies and without which the social structure will collapse. These are the primary *maqāṣid* and the jurists focus mostly on these. They are supported by the supporting needs (*hājāt*). The third level is that of complementary values and norms (*taḥsīnāt*).

The important point made by jurists about the significance of each level is that the primary purposes are supported by the two other levels. However, if the last two levels are abolished the primary purposes will stand by themselves. This is not true for the lower levels. Thus, the existence of *hājāt* and the *taḥsīnāt* depends upon the primary purposes and they cannot be maintained on their own.

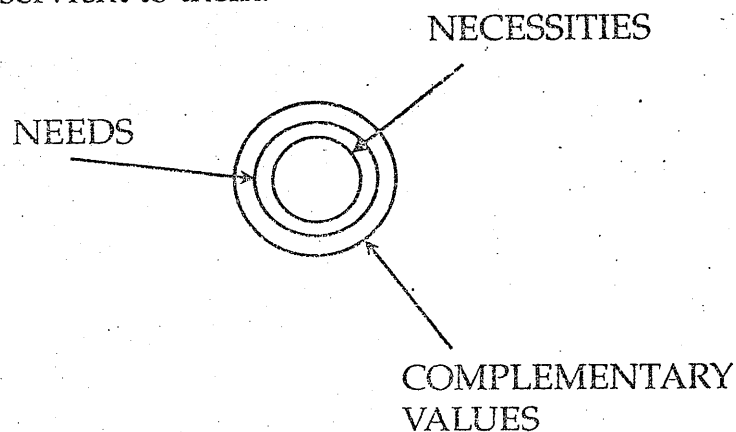
Dīn	Life	Family	Intellect	Wealth
Public	Public	Public	Public	Public
Private	Private	Private	Private	Private

The importance of the individual purposes within the *darūrāt* is reflected in the order in which they are stated. Thus, *dīn* has precedence over life, life has precedence over *nasl*, *nasl* has precedence over *'aql*, and *'aql* has precedence over *māl*. This is not all.

Each of the primary purposes may be divided into public and private purposes. The public purposes seek to preserve the interests of the community as whole, while the private purposes protect the rights of individuals. Again, the purposes are divisible into those securing the rights of Allāh and those preserving or protecting the rights of the individuals. There is a fine distinction between the two kinds of divisions, though many modern scholars tend to consider them identical. The distinction lies in the fact that there are three kinds of rights to be identified rather than two. These are the right of Allāh, the right of the community as whole, and the right of the individual.



The relationship that exists between the primary purposes may be highlighted by visualising outer shells serving or protecting the inner shell or shells. Thus, the innermost shell is represented by the preservation and protection of *dīn*. This represents the foremost purpose of the *sharī'ah*. The shell surrounding it is that of life, which is itself surrounded by *nasl* and so on. The outermost shell is that of the preservation of wealth that serves all the inner shells and is subservient to them.



Each primary purpose considered to be a necessity has its own supporting needs and complementary norms. These are also to be viewed as shells, one inside the other. This relationship is explained by al-Shāṭibī through examples. Considering the example of prayer (*ṣalāt*), he says that the essential parts of the prayer are its *arkān* (elements) and *farā'id* (obligations). Whatever is besides these is meant to complete and complement it.²⁴⁸ The parts of prayer are distributed among the *maqāṣid* in such a way that each outer shell forms a protective boundary for the inner shell. One who crosses the outer shell or boundary will soon demolish the inner shell. Thus, the person who gives up the *nafl* (supererogatory) prayers will soon give up the *ṣunan*, and will finally demolish the *farā'id*. There are many instances in the law, he says, that correspond with the analogy of *nafl* and *farā'id*. For example, even a drop of wine or a small quantity of it is prohibited, because it leads to the consumption of larger quantities, though it does not intoxicate or damage the intellect. A severe penalty is provided for stealing a thing of small value as it leads to the stealing of larger amounts and to robbery.²⁴⁹ In the same way, the ethical and moral norms hover around and protect the main and essential legal norms. The *ḥājī* and the *taḥsīnī* are, therefore, to be considered the servants of the *darūrī*.

13.5.4 Priorities within the *maqāṣid*

The relationships described above indicate that some purposes have a higher priority than others, that is, they would be preferred in case of a clash between two interests. This fact also highlights an important point that while deciding a legal case or while attempting to understand the position of Islamic law on an issue, one cannot look at one purpose or interest alone. There is always a clash of two or more interests. This is achieved through the machinery of organized political society that seeks to strike a compromise between the conflicting wants, desires, and claims of individuals and between the competing interests. Looking at the purposes of law alone and identifying the priorities that exist between them would present a simplistic view of things.

The *maqāṣid* are always used as a reference point for the general principles of the law, and this makes the situation highly complex.

248. Al-Shāṭibī, *al-Muwāfaqāt*, vol. 2, 22.

249. Ibid., 22–23.

This will be illustrated in the third part of this book under the discussion of the third mode of *ijtihād* (see page 343). Nevertheless, the *maqāṣid* considered alone present a fair picture of the entire system even for the layman, who is not trained in the law. If he observes a few rules, he can easily determine the answer to a question that he may have about the law. For the present purposes, we shall describe three main rules that govern the employment of the *maqāṣid*. Some other minor rules can be stated, but the idea is to avoid too much detail and technicalities.

13.5.4.1 Rule 1: The stronger interest shall prevail

The inherent strength of the interests secured by Islamic law is reflected in the order in which the *maqāṣid* are listed by the jurists. Thus, the preservation and protection of *dīn*, as we have pointed out earlier, has preference over the preservation and protection of life; life has a higher priority than *nasl*; *nasl* is prior to *ʿaql*; and *ʿaql* is preferred over *māl*.

<i>Dīn</i>	Life	Family	Intellect	Wealth
First	Second	Third	Fourth	Fifth

In practice this would mean, for example, that *jihād* has priority over preservation of life, and if an individual is asked to participate in it and give up his life in the cause of Allāh, there is legal justification for it. Preservation of life has a higher priority than the protection of *ʿaql*. Therefore, if a person is facing death in a desolate place due to lack of water and the only thing available to him is wine, he is under an obligation to save his life by drinking the wine. Life has priority over *māl* too and it is permitted to take the property of another person without fear of penalty during a famine, if such taking results in the saving of life or lives.

In the same way, the *ḍarūrāt* have priority over the *ḥājāt*, which in turn have priority over the *taḥsīnāt*.

13.5.4.2 Rule 2: The public interest is prior to the private

The different categories of the purposes can be understood in terms of public and private interests. Whenever a public interest is in conflict with a private interest, the public interest will prevail. The example used by the jurists is that of material handed over to artisans

and craftsmen. The original rule of deposit (*wadī'ah*) required that this material being a deposit would not be compensated by the craftsmen in case it was destroyed, and the burden of proving tort (*ta'addī*) or negligence would be upon the customer, the owner of the property. This rule was changed to conform with the public interest, because the craftsmen were misusing the facility. The burden of proof was shifted to the craftsman, who had to show the absence of negligence. The Hanafīs based this change on *istihsān*. The example is expected to show that the public interest requiring security of transactions and protection of property of the general public was given preference over the interest of individuals, that is, the craftsmen.

In this case, both interests, public as well as private, lie within the same category, that is, the preservation of wealth. Does the rule that the public interest prevails over the private cut across all the categories? Can a public interest in a lower category be preferred over a private interest in a category with a higher priority? Apparently it can. Yet, the matter is not that simple; it involves the discussion of the three kinds of rights mentioned above, individual rights guaranteed by the *sharī'ah*, and the exact meaning of public interest. We do not have space to discuss all these issues here. This discussion will be taken up in a separate study of justice and Islamic law.

Another example used by al-Ghazālī upholds justification of taxation by the *imām* when the public interest is at stake. He permits a ruler in need of money to levy taxes in order to organise *jihād*. Here what we are calling public interest is actually the right of God, which may not be the same as the right of the state.

13.5.4.3 Rule 3: The definitive interest prevails over the probable

This rule has been the cause of confusion for some jurists following al-Ghazālī, and the confusion is witnessed in the works of some modern scholars too. Al-Shāṭibī states very clearly that all the interests preserved and protected by the *sharī'ah* are definitive (*qaṭ'ī*). He repeats this point over and over again, and it is in fact a fundamental assumption of his work. The question, therefore, arises that if all interests are definitive, where does the probable interest come from? The answer to this issue is that the probable goals of the law belong to the area that is beyond the purposes

and has been discussed above. These purposes have not been discussed by the jurists in detail. Most of the goals like building of civilisation, maintenance of security, equality, freedom and others would come under this heading. From another perspective, these goals have neither been rejected by the Lawgiver nor have they been directly acknowledged. Two cases mentioned by al-Ghazālī have been mentioned under the discussion of *maṣlahah mursalah* in the following chapter. There are, however, other possibilities too for probable interests to exist within the structure discussed, but we would like to leave this topic for the researcher here and devote adequate space to it in a separate study mentioned in the previous section.

13.5.5 *Maṣlahah*, Public Interest and Human Rights

Uṣūlīs, like al-Ghazālī, maintain that the public interest (*maṣlahah ‘āmmah*) is invariably to be preferred over the private interest. This is the conclusion that Jeremy Bentham arrived at for his doctrine of utility. The problem is that with such an approach the possibility of promoting human rights, which are private interests, is eliminated. In other words, human rights will have very little role within such a philosophy. For Bentham this was not a problem. First, he rejected the idea of human rights and called such rights “nonsense on stilts.” Second, he rejected the idea of the purposes of law. It was, therefore, natural for him to prefer the public interest all the time.

For Islamic law the position is different. In fact, the purposes of the *sharī‘ah* are a reliable guide for human rights and they help us evaluate these rights. We have discussed this topic in a later chapter dealing with the third mode of *ijtihād*.

REVIEW QUESTIONS

1. Compare the meaning of utility as expounded by Jeremy Bentham with the meaning of *maṣlahah* as used in Islamic law.
2. Give the classification of *maṣlahah* that has been acknowledged or rejected by the *sharī‘ah* and then explain what is meant by the larger doctrine of *maṣlahah*.
3. Elaborate the classification of *maṣlahah* on the basis of its inner strength and explain the relationship of this classification with the general principles of Islamic law.

4. Interests are classified into definitive and probable. What is the advantage or purpose of such a classification?
5. Distinguish the doctrine of *maṣlaḥah* from *maṣlaḥah mursalah*.
6. What do you mean by the purposes of Islamic law? What is their relationship with the texts?
7. What is the purpose of the purposes of law or what is beyond the purposes?
8. The primary purpose is the preservation of *Dīn*. Elaborate.
9. The purpose of the *sharī'ah* have an affirmative and a defensive posture. Elaborate.
10. All the purposes of the *sharī'ah* can be classified into public and private interests. Elaborate.
11. What do you understand by the primary and secondary purposes of the *sharī'ah*?
12. Explain how the priorities within the *maqāṣid al-sharī'ah* work.
13. The *uṣūlīs* have stated that *maṣlaḥah 'āmmah* is always to be preferred over the *maṣlaḥah khāṣṣah*. Do you see some problems with this statement?

14 Qiyās (Analogy)

The discussion of *qiyās* covers several topics. These are: definition; elements; conditions pertaining to the elements; types of analogy; and justification of *qiyās* as a source of law. Some topics that are of practical significance, like deriving the underlying cause ('illah), will be taken up under the second mode of *ijtihād* in the next part, where it will be shown how the *mujtahid* undertakes *ijtihād* based on analogy.

14.1 Definition of Qiyās

In its literal meaning, the word *qiyās* (قياس) means measuring or estimating one thing in terms of another. Thus, measuring cloth against the metre rod is *qiyās*. It also applies to making two things equal, that is, comparing. This comparison may be physical or it may be rational. Thus, mapping a shoe upon a shoe to see their equality is *qiyās*.²⁵⁰ The word *qiyās* is sometimes used in its figurative sense, and not its actual sense, to mean examination (*naẓr*) or even *ijtihād*, which

250. Al-Bazdawī, *Uṣūl al-Bazdawī* in 'Abd al-'Azīz al-Bukhārī, *Kashf al-Asrār*, vol. 3, 395.

is its method,²⁵¹ by the application of the term used for the cause to the resulting activity.²⁵² The distinction between these terms needs to be maintained to avoid confusion.

In the technical sense, as defined by the jurists, it applies to "the assignment of the *hukm* of an existing case found in the texts of the Qur'ān, the *Sunnah*, or *ijmā'* to a new case whose *hukm* is not found in these sources on the basis of a common underlying attribute called the '*illah* of the *hukm*.'" Another definition is: "the equality of a case, whose *hukm* is not mentioned explicitly in the texts, with a case whose *hukm* is mentioned, on the basis of the equality between the underlying causes found in the two cases."

The definitions are stated in Arabic as follows:

(١) إلحاق ما لم يرد فيه نص على حكمه بما ورد فيه نص على حكمه في الحكم،
لاشترائيهما في علة ذلك الحكم (٢) تسوية واقعة لم يرد نص بحكمها، بواقعة ورد النص
بحكمها في الحكم المنصوص عليه، لتساوي الواقعتين في علة الحكم

If the texts of the Qur'ān or the *Sunnah*, or *ijmā'* contain a case whose '*illah* is known to the *mujtahid*, that is, the underlying reason because of which the *hukm* has been laid down, and he then sees a new case which has the same '*illah* in it, he will assign the *hukm* of the existing case to the new case. By such an assignment, he renders the two cases equal in terms of the *hukm*. This assignment or rendering equal is called *qiyās* in the terminology of the jurists.

14.2 Elements of *Qiyās*

The definitions of *qiyās* show that it has four ingredients or elements:

- the case (set of facts) mentioned in the text with its *hukm*;
- the *hukm* of the set of facts mentioned in the text;
- the '*illah* or the underlying cause that has led to the *hukm*; and
- the new case or the set of facts for which the *hukm* has not been explicitly mentioned and which needs a *hukm*.

The case mentioned in the text (the first element) is called the *asl*, that is, the root case or even the base. It is also called the *maqīs 'alayh* or

251. Ibid., vol. 3, 396.

252. Ibid.

the case upon which analogy has been constructed. The *ḥukm* of this case (the second element) is called the *ḥukm al-aṣl* or the rule to be passed on. The underlying cause of the *ḥukm*, which is determined by the jurist, is called the '*illah*' or the *ḥukm*. The new case to which the *ḥukm* is extended is called the *far'* or the offshoot.²⁵³ It is also called the *maqīs* or the case for which analogy is constructed. The *ḥukm* that has been established for the new case is called the *ḥukm al-far'* or the rule established.

14.3 Examples of *Qiyās*

We may now look at some examples to understand the operation of *qiyās*:

1. The prohibition of *khamr* (wine from grapes) is laid down in the Qur'ān.²⁵⁴ The text prohibits *khamr* along with a statement of the disaster it leads to, that is, enmity and hatred among people. Now, *khamr*, according to some jurists (the Hanafīs), is the name of an intoxicating liquor made from grape juice, called wine in English. The Arabic term *khamr* in their view does not include other intoxicating liquors like whiskey and beer that are made from other substances. The other intoxicants, according to the Hanafīs, are prohibited separately by the texts of the *Sunnah*. The Hanafīs, therefore, see no need to use analogy in this case. The majority, however, say that even if the word *khamr*, in its literal meaning, does not cover the other types of intoxicating liquors, the *ḥukm* of *khamr* can be extended to them through *qiyās* (analogy). Their reasoning takes the following form:

The jurists first decide that the '*illah*', or the underlying cause for which *khamr* has been prohibited is intoxication. On examining the other intoxicating liquors, they find that the

253. *Far'* (فرع) literally means branch.

254. O ye who believe! Intoxicants and gambling, (dedication of) stones, and (divination by) arrows, are an abomination, - of Satan's handwork: eschew such (abomination), that ye may prosper. Satan's plan is (but) to excite enmity and hatred between you, with intoxicants and gambling, and hinder you from the remembrance of God, and from prayer: will ye not then abstain? [Qur'ān 5:93, 94].

property of being intoxicants is found in them. When it is verified that this property is found, they extend the *ḥukm* of *khamr*, which is prohibition, to the other intoxicating liquors as well.

Thus, *khamr* in this case is the *aṣl*, or the *maqīs 'alayh*, each one of the intoxicants, other than *khamr*, is the *far'* or the *maqīs*, and the property of being an intoxicant is the '*illah*'. The prohibition of *khamr* is the *ḥukm al-aṣl*, while the prohibition of whiskey, say, is the *ḥukm al-far'*, which has been established through *qiyās*.

2. There is a tradition from the Prophet (peace be on him) that says: "The murderer will not inherit." This tradition prohibits the granting of inheritance to an heir who kills his predecessor from whom he is to inherit. The punishment for such an offender, in addition to the punishment for his crime, is deprivation from inheritance.

What about a bequest (*waṣīyyah*)? The tradition mentions inheritance alone and not bequest. Supposing a legatee murders the testator, who has bequeathed his property to the legatee in his will. The offending legatee will be prevented from taking the bequeathed property on the basis of *qiyās*, because the '*illah*' in the two cases is similar, which is "hastening the benefit prior to its appointed time through a criminal act or unjustified enrichment."

Murdering the predecessor in the case of inheritance mentioned in the tradition is the *aṣl* or the *maqīs 'alayh*, while murdering the testator is the *far'* or the *maqīs*. Hastening death prior to its appointed time through a criminal act is the '*illah*', because of which the *ḥukm* has been assigned. The *ḥukm al-aṣl* is prevention from inheritance, while deprivation from the bequest or legacy is the *ḥukm al-far'* established through *qiyās*.

3. A tradition from the Prophet (peace be on him) says: "A believer is a brother to his believer, therefore, it is not permitted for a believer to make a proposal (for marriage) where the proposal of his brother is still pending, or to make an offer of sale where his brother's offer is pending." This tradition proscribes proposals or offers to the same party till such time that similar offers made to this party by another person

are pending and have not been refused or accepted. The underlying cause or *'illah* is causing harm to another's interest. This tradition does not mention the hiring of services or property. The proscription can be extended to hire through analogy.

4. Indulging in sale when the call for the Friday prayer is made is prohibited by the text of the Qur'ān. The underlying cause is reducing the incentive to offer the Friday prayer. This *hukm* can be extended to other contracts like pledging or marriage that may have been planned at such a time.

14.4 Conditions Pertaining to the Elements

As stated above, analogy has four elements: *aṣl*; *hukm al-aṣl*; *'illah*; and *far'*. The conditions pertaining to the remaining three elements are stated below:²⁵⁵

14.4.1 Conditions of the *aṣl* or the case in the texts

A single condition is stipulated by the jurists for the *aṣl*. The condition is that the base case, on which analogy is being constructed, should not be an extension (*far'*) of another case mentioned in the texts. The reason is that if it is so, the analogy will be constructed upon the original case and not upon the extension.

14.4.2 Conditions pertaining to the *hukm* of the *aṣl*

The *hukm* has several conditions:

1. It should be a *hukm* that has been established directly from the Qur'ān, *Sunnah* or *ijmā'*. This means that it should not be the *hukm al-far'* or a *hukm* extended to a new case through analogy or some other method of legal reasoning.

There is some disagreement among jurists whether a *hukm* established through consensus (*ijmā'*) can become a basis for

255. For a systematic explanation of the conditions related to the elements of *qiyās*, see al-Sarakhsī, *Kitāb al-Uṣūl*, vol. 2, 149–74; al-Ghazālī, *al-Mustaṣfā*, vol. 2, 87–99; al-Rāzī, *al-Maḥṣūl*, vol. 5, 331–76; Ṣadr al-Sharī'ah, *al-Tawḍīh*, vol. 2, 539–50.

extension through analogy. Those who oppose this say that it is difficult to determine the underlying cause for a *ḥukm* established through '*ijmā'*'. In addition to this, each consensus has relied upon some evidence (which is called its *sanad*) in the texts. It is, therefore, better to rely upon the *ḥukm* in the *sanad* rather than upon *ijmā'*. Those who favour extension of the *ḥukm* from *ijmā'* maintain that there are several modes of discovering the '*illah*', and this can facilitate the extension of the *ḥukm* in *ijmā'*. They maintain that this is possible even when the *sanad* is not evident.

2. **That a determined '*illah*' (cause) should be found for the *ḥukm* of the text.** The jurist should be able to determine an '*illah*' for the *ḥukm*, and '*illah*' that can be rationally understood to be the cause of the *ḥukm*.²⁵⁶ It should not be *ḥukm* that has no understandable '*illah*' and is *ta'abbudī* (requiring ritual obedience). Thus, the setting of the sun is the cause for the evening prayer, but we cannot understand or are not required to understand why it has been determined as the cause. As compared to this "intoxication" as a cause for prohibition of wine is a cause that can be rationalised. Analogy is permitted where the '*illah*' can be rationalised; in other cases there is no '*illah*' and analogy fails.
3. **That the *ḥukm* should not have been abrogated.**²⁵⁷ Analogy cannot be constructed on the basis of a *ḥukm* that stands abrogated. This depends upon the acceptance of the theory of abrogation. All four schools accept this theory.
4. **That the *ḥukm* should not be restricted to a specific case by another text.** If a *ḥukm* is specific for someone or some occasion it cannot be extended to other persons. Thus, the permission for the Prophet (peace be on him) of marrying more than four wives or the prohibition of marrying his wives after his death cannot be extended through analogy; these *aḥkām* were specific to him.²⁵⁸
5. **That the *ḥukm* should not pertain to an exemption.** The majority of the jurists maintain that analogy should not be

256. 'Abd al-'Azīz al-Bukhārī, *Kashf al-Asrār*, vol. 3, 443.

257. Ibid., 445.

258. Ibid., 443.

constructed upon exemptions. The contract of *salam* (advance payment), for example, is an exemption from the rules of *ribā*; further analogy cannot be constructed upon it.

Some of the Shāfi'īs maintain that once the exemption is granted through a text, it becomes a principle in its own right and may be used for further analogy. The pursuit of analytical consistency in the law and reasoning from principles would resist such a view. For how can you maintain two contradictory principles and still be able to extend them through legal reasoning; the results will be contradictory. It can be done, however, if one is using a literal system of interpretation that has no room for reasoning for broad general principles. (See, for example, the discussion about the narrow definition of *fiqh* at page 49.)

6. That the *ḥukm* should not pertain to the criminal law.²⁵⁹ This condition is imposed by the Ḥanafīs and pertains to the disagreement among the jurist about the meaning of *dalālat al-naṣṣ*. It may be mentioned here that this rule is observed in Western law as well. If the criminal law and crimes are permitted to be extended through analogy it will violate the principle of legality, which states that there can be no crime and no penalty without prior legislation.

14.4.3 Conditions pertaining to the *far'* or new case needing a *ḥukm*

The jurists lay down three conditions for the *far'*:

1. That the texts should be silent about its *ḥukm*. This means that it should not be expressly mentioned in the texts or in *ijmā'*. There is no *qiyās* for a case that is expressly mentioned in the text, because it has already been settled.
2. The *'illah* of the *aṣl* should be found in the *far'*. The jurist should be able to find the same *'illah* in the new case that he has found for the case mentioned in the texts.

259. Al-Sarakhsī, *Kitāb al-Uṣūl*, vol. 1, 242; Ṣadr al-Sharī'ah, *al-Taḥdīṭ*, vol. 2, 543. Cf. al-Ghazālī, *al-Mustasfā*, vol. 2, 92.

When this condition is not met fully and there is a difference between the *'illah* established for the *aṣl* and that for the *far'*, the analogy undertaken is called *qiyās ma' al-fāriq* or analogy with a distinctive attribute. An example is the division of the property through preemption between co-owners of the property from which the right emanated. Should the property be divided equally among them, or should it be divided in proportion to their shares? The Ḥanafīs maintain that they should be given equal shares irrespective of the proportion of their shares in the original property that gave them the right of preemption. The other jurists maintain that this right is similar to a partnership and they should be assigned the right of preemption in proportion to their property. The Ḥanafīs object that this is *qiyās ma' al-fāriq*, and the distinction is that in a partnership the revenue grows out of the property owned, while the right of preemption is not the result of a growth in property and cannot be compared with revenue.

14.4.4 Conditions pertaining to the *'illah* and meaning of *'illah*

The discussion of the *'illah* is, perhaps, the most important topic within the subject of rational sources. The limits and the conditions of the *'illah* not only determine the nature of analogy, but also determine the scope of other rational sources or techniques of legal reasoning like *istiḥsān* and *maṣlaḥah mursalah*. The larger doctrine of *maṣlaḥah* partly discussed in the previous chapter has also grown out of these discussions. This section is devoted to the conditions of the *'illah*. The modes of discovering the *'illah* called the *masālik al-'illah* will be discussed in the next part under the second mode of *ijtihād*.

Before the conditions pertaining to the *'illah* are discussed it is important to note certain distinctions. The first distinction is between *'illah* and *sabab*. This distinction was discussed in chapter 4 in the first part. The second distinction is between *'illah* (underlying cause) and *ḥikmah* (wisdom). These distinctions become obvious when the *'illah* is defined and its conditions are stated.

14.4.4.1 The meaning of *'illah* (the underlying cause)

The underlying cause of a *ḥukm* or its *'illah* is perhaps the most difficult concept in Islamic jurisprudence. Accordingly, many of the

earlier jurists have avoided a definition. Instead, they try to focus on what it can be or what it cannot be. For example, al-Ghazālī begins the discussion of the *'illah* by saying: "It is permitted that the *'illah* be a *ḥukm* itself, like our saying that the sale of wine is void, because its utilisation has been prohibited...."²⁶⁰ He then goes on to mention a large number of shapes that the *'illah* may acquire.

Modern jurists have tried to give definitions, but such definitions can be shown to be defective in the light of what the earlier jurists have said. In some of these definitions importance has been given to the securing of *maṣlaḥah*, while in others the importance has been given to the relationship between the cause and the *ḥukm*. We will extract the text of *al-Tanqīḥ* that is woven into the text of *al-Tawdīḥ* to show how Ṣadr al-Sharī'ah describes it:

فصل العلة قيل المعروف ويشكل بالعلامة وقيل المؤثر وهي في الحقيقة ليست بمؤثرة الا ان يقال بالنسبة اليها فان الاحكام تضاف الى الاسباب وقيل الباعث لا على سبيل الايجاب اي المشتمل على حكمة مقصودة للشارع في شرعه الحكم او دفع ضرر وكون العلة هكذا يسمى مناسبة والحكمة المجردة لا تعتبر في كل فرد لخفاؤها وعدم انضباطها بل في الجنس فيضاف الحكم الى وصف ظاهر منضبط يدور معها او يغلب وجودها عنده

We have given this text above to acknowledge the skill of this learned man, however, we will focus on the overlined part:

وصف ظاهر منضبط يدور معها او يغلب وجودها عنده

An apparent and stable attribute that is either coterminous with the underlying rationale or the rationale is usually present when the attribute exists.²⁶¹

In this definition we will focus on the words "apparent" and "stable," because they explain some important features of the underlying cause.

14.4.4.2 Conditions for the validity of the *'illah*

The analysis of this definition yields the following conditions for the *'illah*:

1. That the *'illah* must be an apparent cause. An apparent cause is one that can easily be perceived by the senses. It is an outward attribute and not something internal and concealed.

260. Al-Ghazālī, *al-Mustasfā*, vol. 2, 93

261. Ṣadr al-Sharī'ah, *al-Tawdīḥ*, 551-54.

This apparent attribute can be identified with ease both in the *ʿaṣl* and in the *farʿ*. As compared to the *ʿillah*, the *ḥikmah* (wisdom) of the law is something internal and concealed and cannot be verified with ease. An internal or concealed reason does not qualify for becoming an *ʿillah*. The *ḥikmah*, according to al-Rāzī, is the *ʿillah* of the *ʿillah*. He maintains that the *ḥukm* can be based upon the *ḥikmah* as well.²⁶²

In contracts, for example, the objective theory is favoured, because inner intention is something difficult to verify. It is difficult to verify what the contracting party really intends. The cause that makes a contract valid is, therefore, the outward expression of offer and acceptance (*ʿijāb* and *qabūl*). Accordingly, the jurists maintain that the validity of contracts does not depend upon intention, but on the outward expression. In this case, verification of the intention is the *ḥikmah*, while offer and acceptance are the *ʿillah*. The *ḥukm* of validity is tied to the cause, offer and acceptance, in a way that the existence of the cause means the existence of the *ḥukm* and the non-existence of the cause its non-existence.

In the case of curtailment of prayer on a journey, the *ḥikmah* is the hardship that a person will face. This is something internal and it cannot be verified whether the traveller is actually facing hardship. The *ḥukm* is, therefore, tied to the *ʿillah*, which is "journey" in this case.

2. That the *ʿillah* should be a constant and stable attribute. A constant and stable attribute is one that does not change with a change in circumstances and does not vary from person to person. In the example of curtailment of prayer on a journey, the *ʿillah* was "journey" itself. This attribute does not vary from person to person, that is, it does not matter whether the person going on a journey is young or old, strong or weak, healthy or ill. As compared to this, "hardship" is something that may vary from person to person: a strong person is not likely to face the same hardship as a weak person.

The *ʿillah* does change due to a change in circumstances either. In the same example, when "journey" is the cause of the *ḥukm*, it will not matter whether the subject is going on foot

262. Al-Rāzī, *al-Maḥṣūl*, vol. 5, 287 passim.

or on horseback, on a train or by car. The cause remains the same. If the wisdom, that is, "hardship" is deemed to be the cause, it will alter with the means adopted for travelling. A person going by car will suffer a lesser amount of hardship as compared to one going on foot.

3. That the '*illah* should be extendible and not confined to the *asl*. If the attribute determined by the *mujtahid* cannot be extended to other cases, the determination of such an '*illah* is futile and will not constitute a valid analogy. In the case of *ribā*, trading in gold and silver with an excess or with a delay is restricted. The '*illah* determined by Shāfi'is here is "currency-value" (*thamaniyyah*). The Hanafis maintain that this is an '*illah* that is *qāsirah* (confined to these two metals and coins made from them).²⁶³ It cannot be extended to other things, therefore, it is not a valid '*illah*. It is for this reason that the Hanafis determine "weight and measure" to be the '*illah* along with "genus."
4. That the '*illah* should be an attribute that is compatible with the purposes of the law (*munāsib*). The reason is that the purposes of Islamic law, in reality, provide the underlying rationale of all the rules. That is why the *hikmah* has been emphasised.

Most of the attributes that have been determined as causes for the *ahkām* are compatible with the purposes of Islamic law. The reason is that the purposes of the law have emerged from a collective consideration of the various '*ilal*. An '*illah* derived by a jurist must, therefore, meet this condition. "Intoxication" as an '*illah* for the prohibition of *khamr* is compatible with the "preservation of the intellect." As compared to this, the colour of wine or its smell have no compatibility with this purpose and are not suitable causes.

There are different levels of compatibility and the concept of suitability (*munāsabah*) is not confined to *qiyās* alone. The concept covers other forms of legal reasoning, like *maṣlahah mursalah*, where it is not always the '*illah* that is relevant; the

263. Today we may agree that the '*illah* of "currency-value" has been extended to paper money.

ḥikmah (wisdom) may also be used for determining the law.²⁶⁴ The concept of *munāsabah* will be discussed within the second and third modes of *ijtihād* in the next part.

14.5 Types of Analogy (*Qiyās*)

The majority of the jurists classify *qiyās* into two broad types. The first type is determined by looking at the strength of the similarity of the two '*illahs* in the *aṣl* and in the *far'*. The second type is based on the manner in which the *ḥukm* is established in the new case. In addition to this, the Ḥanafīs classify analogy into *qiyās jalī* (manifest analogy) and *qiyās khafī* (concealed analogy). The classification according to the majority of the jurists is discussed first.

14.5.1 The first type: probable and definitive or *qaṭ'ī* and *ẓannī*

Qiyās is definitive when two conditions are met:

- That the *mujtahid* is fully convinced about the '*illah* he has discovered in the *aṣl*.
- That exactly the same '*illah* is found in the *far'*, that is, there are no distinctive attributes.

The example of *qaṭ'ī* analogy is the proscription of saying "fie" to parents. The '*illah* discovered here by the *mujtahid* is "torment." In other words, saying "fie" to parents is something that causes grief or pain to them. This satisfies the first condition, because there is no doubt that the underlying cause is torment. When the *mujtahid* faces cases like abuse of parents or beating of parents, he is also sure that this underlying cause of torment is definitely found in such acts. This satisfies the second condition with certainty.

The underlying certainty in the discovery of the '*illah* and its application to the new case makes the analogy definitive or *qaṭ'ī*.²⁶⁵

The same conditions, when reversed, need to be fulfilled in the case of *ẓannī qiyās* or analogy with a probable strength. If

264. For a detailed analysis see Imran Ahsan Khan Nyazee, *Theories of Islamic Law*, 200–12.

265. It may be noted that the *ḥukm* in the text may not be *qaṭ'ī* here, that is, *qaṭ'ī al-dalālah*.

the *mujtahid* is not certain about the 'illah in either or both cases, the *qiyās* is said to be probable. An example of *ẓannī qiyās* is the assignment of the *ḥukm* of *ribā* from food items mentioned in a tradition to the water-melon on the basis of "food-value" as the 'illah. The 'illah of "food in general" is not a very convincing underlying cause; the Ḥanafīs and Mālikīs, therefore, reject it. Identifying it as a cause violates the first condition. The reason is that all the items mentioned in the tradition are basic foods with the significant attribute of being stored over long periods. This attribute is missing in the water-melon and, therefore, violates the second condition pertaining to the *far'*.

It may be noted here that even if the number of traditions in the case of *ribā* has reached a level that makes it *mutawātir ma'nawī*, which makes the *ḥukm* definitive, the *qiyās* in the above example is still *ẓannī* due to a weakness in the 'illah both for the *aṣl* and the *far'*.

14.5.2 The second type: classification according to the strength of the *ḥukm* established in the *far'*

This classification is based on the nature of the *ḥukm* in the *aṣl*. It is a classification of analogy when the *ḥukm* in the *aṣl* is *ẓannī*.

When the *ḥukm* in the *aṣl* is probable (*ẓannī*), the *qiyās* constructed upon it may be of three types. This is based upon the strength of the *ḥukm* established in the *far'*. Is the strength of the *ḥukm* of a higher order than that in the *far'*? Is the established *ḥukm* of the same order or strength? Is it of a lesser strength or order?

1. *Qiyās* that is of a higher order is called *qiyās awlā*. The example again is of constructing analogy for beating parents upon saying "uff" or "fie" to them. The 'illah is torment and the torment inflicted in beating them is more than that in saying "uff." In another example, the consumption of the wealth of the minor, or even transferring it to one's own name, is proscribed by the Qur'ān. Consumption leads to the destruction of this wealth. By analogy it is said that destruction of any other type with respect to such wealth is also proscribed on the basis of the 'illah of destruction (*itlāf*). Destruction by arson, for instance, is of a higher-order, because there is no chance of retrieval or recovery of the same wealth.

This type of analogy is called *qiyās al-ma'nā* by Imām al-Shāfi'ī and is considered by him to be the strongest type of *qiyās*.

According to the Hanafis, this is not *qiyās* at all, but a literal mode for establishing the *ḥukm* called *dalālat al-naṣṣ*.

2. The second type of *qiyās* is where the *ḥukm* established is of an equivalent order or of the same strength. There is a tradition about the male slave jointly owned by two persons to the effect that if one of the co-owners sets him free, to the extent of his own share, he becomes liable to pay the value of the other co-owner's share to him. The case of the female slave is held to be identical on the basis of the '*illah*' that is considered to be the "gifting of freedom by the *sharī'ah*" or freedom by operation of the law. The *ḥukm* for the male and female slave is deemed equal for this purpose.

Another example given by some jurists is that of reducing the penalty of a married male slave, for extra-marital sexual intercourse, to half of 100 stripes on the analogy of the female slave whose case has been mentioned in the Qur'ān.²⁶⁶

Most of the cases of analogy will be covered by this type. It is called *qiyās al-'illah* and also *qiyās jalī* or manifest analogy.

3. The third type is that of *qiyās adwan* or analogy of a lower order. The example is that of extending the prohibition of *ribā* to all types of food on the basis of "food in general" as the '*illah*'. This '*illah*', as stated earlier, is upheld by Imām al-Shāfi'ī. Imām Mālik disagrees with him by saying that the '*illah*' in the food items mentioned in the tradition is food, but food that can be stored and preserved not all types of food. This attribute is missing from the water-melon, which lacks such attributes. Analogy if undertaken will be of a lower order due to a lesser number of attributes in the *far'*.

14.5.3 *Qiyās jalī* and *qiyās khafī* or manifest and concealed analogy

The term *qiyās jalī* (manifest analogy) has been used in various senses by the jurists, depending upon the school to which they belong. In the previous section, the term was used for the second

266. It is to be noted that the Hanafis will use *dalālat al-naṣṣ* in this case, because analogy cannot be used in the law of crimes for assigning or even reducing penalties.

type of analogy where the *ḥukm* established is of the same strength. Some have used it for the first type as well. Under this heading we are concerned with the way the Hanafi jurists have used it.

The Hanafis use the term *qiyās jalī* to mean analogy for which the underlying cause is more or less apparent or can be discovered with relative ease. The jurist does not have to ponder too much over the attributes of the '*illah*'. Almost all types of analogy are classified under this meaning. As compared to this, the real '*illah*' may be less apparent and the jurist has to expend considerable effort to discover it; the '*illah*' is concealed so to say. This type of analogy is considered *qiyās khafī* or concealed analogy. In reality this is not analogy at all. In Islamic jurisprudence, according to the Hanafis, concealed analogy is called *istiḥsān*. The next section deals with this form of analogy: *istiḥsān*.

14.6 Justification of *qiyās* as a source of Islamic law

The majority of Muslim jurists consider *qiyās* to be a valid evidence for proving the *aḥkām*. The Zāhirīs, some of the Mu'tazilah and the Ja'farī school (Shī'ahs) rejected it as a source and a form of legal reasoning. Both sides, those who accept it and those who reject it, give arguments in support of their view. Some of these arguments are recorded below:

14.6.1 Arguments of those who uphold *qiyās*

The arguments are provided from the Qur'ān, the *Sunnah*, from the practice of Companions and as rational propositions.

1. فاعتبروا يا أولي الأبصار (Consider, then, O ye with eyes (to see) [Qur'ān 59 : 2]). This verse asks those with eyes (intellect) to consider things, compare them, and ponder over them. The word *i'tibār* implies moving from one thing or place to another. In the present context it means moving one's thoughts between things in an effort to compare them. As *qiyās* is a method of legal reasoning that requires comparison between two things and moving the *ḥukm* from one to the other, it falls within the implications of this verse.

2. The famous tradition about Mu'ādh ibn Jabal when he was sent as a *qāḍī* to Yemen. He stated before the Prophet (peace be on him) that if he was not able to find a direct evidence in the Qur'ān and the *Sunnah*, he would use his considered opinion. This was approved by the Prophet (peace be on him). As considered opinion in the context of law is nothing more than proper legal reasoning, and *qiyās* is the soundest method of legal reasoning, this amounts to an approval of *qiyās*.
3. There are many cases in which the Prophet (peace be on him) in response to the queries of the Companions tried to give answers in a form that was supposed to train them in legal thinking, and in many such cases the method is quite similar to analogy. For example, a person came to the Prophet (peace be on him) and said that his mother had resolved during her lifetime to perform *hajj*, but she died before she could fulfil this promise, and could he now perform it on her behalf? The Prophet (peace be on him) replied: "If she were under debt would you pay it back on her behalf?" The man said: "Yes." The Prophet replied: "Then pay the debts of Allah for these have the highest priority."
4. The Companions used to settle cases by performing analogy on already settled cases, that is, they followed precedents and performed analogy. In addition to such cases, there are instructions from the Companions to this effect. For example, the well known letter written by 'Umar, may Allah be pleased with him, to Abū Mūsā al-Ash'arī. In this letter he advised him: "Compare cases with settled precedents, and then select what you think will please Allah and is closer to the truth."
5. The cases in the texts of the Qur'ān and the *Sunnah* are limited and the cases that are faced by human beings are unlimited, therefore, there has to be some way of extending the law in these sources to cover new cases as well so that the new cases are settled according to Islamic legal norms. *Qiyās* is a very strict and tested method of extending the law, and in reality is nothing more than legal reasoning.

14.6.2 Arguments of those who reject *qiyās*

1. A verse of the Qur'ān says: "O ye who believe! Put not yourselves forward before God and His Apostle, but fear God: for God is He Who hears and knows all things." [Qur'ān 49 : 1] The person who upholds analogy acts against the implication of this verse, because analogy means "putting yourself forward" before Allah and His Messenger when the Qur'ān and the *Sunnah* have not settled a case.
2. Another verse says: "And pursue not that of which thou hast no knowledge." [Qur'ān 17 : 36] Analogy is something that is probable (*ẓannī*) and doubtful, and acting upon it would amount to acting according to something of which we have no knowledge. This is particularly so when the Qur'ān says: "And We have sent down to thee the Book explaining all things, a guide and a mercy and glad tidings to Muslims." [Qur'ān 16 : 89] As everything is to be elaborated by the Qur'ān, there is no need for analogy.
3. There are many sayings of the Companions in which they have condemned the use of *ra'y* (personal opinion), and analogy is personal opinion.
4. Analogy leads to discord among the Muslims, because it does not lead to exactly the same opinion when different jurists are exercising it. The reason is that they may be trying to use a different precedent for solving the same problem. Something that leads to differences should be shunned.
5. It cannot be said that the *ahkām* of the *sharī'ah* are based upon similarity and equality. For example, the thief who steals is to be given the penalty of cutting of the hand, while the embezzler is not punished in the same way, although there is no difference between them. Water and clean soil have both been considered means of ritual cleanliness when they are opposites.

The weaknesses in the arguments of those who reject analogy can be seen with ease. The main point here is that the judge has to give relief to the litigants who come to him. It is not possible for him to say to them that "I cannot find anything in the Qur'ān and the *Sunnah* to settle this case, therefore, I cannot help you."

The presumption is that a solution exists in the *sharī'ah* and the judge has to adopt some method of legal reasoning to extend the law from the limited number of texts that he can employ. As long as he is required to do so, analogy is a good and strict method of legal reasoning that maximises the chances of the discovery of the intention of the Lawgiver. The assertion that analogy is based on probable (*ẓannī*) knowledge is also without foundation, because there are many verses that are *ẓannī al-dalālah*, that is, there can be more than one way of interpreting them and understanding their meaning.

REVIEW QUESTIONS

1. Define *qiyās* and explain why it is a strict method of extending the legal meanings in the texts.
2. What are the elements of *qiyās*? Explain the conditions associated with the '*illah* (underlying cause).'
3. What do you understand by the *aṣl* of *qiyās*? What are the conditions pertaining to the *aṣl*?
4. What kind of new case becomes the object of *qiyās*.
5. Define the term '*illah* and explain the conditions pertaining to it.
6. What is the difference between an '*illah* and *sabab*?
7. Distinguish the meaning of '*illah* from that of *ḥikmah* as understood in *uṣūl al-fiqh*.
8. What do we mean when we say that the '*illah* must be compatible with the purposes of the *sharī'ah*?
9. Give the various classifications of *qiyās*.
10. *Qiyās* is either definitive or probable. Elaborate.
11. How is *qiyās* classified on the basis of the strength of the *ḥukm*?
12. Explain the terms *qiyās jalī* and *qiyās khafī*. What is the relationship of this classification with *istiḥsān*?
13. Justify *qiyās* as a source of law. What are the arguments of those who reject *qiyās* as a valid source.

Istiḥsān (Juristic Preference)

15.1 The Meaning of *Istiḥsān*

In its literal sense the word *istiḥsān* means "to consider something good." It is also applied to mean something towards which one is inclined or which one prefers, even if it is not approved by others. Al-Sarakhsī says: "*Istiḥsān* is the giving up of analogy and the adoption of what is easier for the people."²⁶⁷

Technically, it has been defined in several ways. Al-Bazdawī defines it as "moving away from the implications of analogy to an analogy that is stronger than it, or it is the restriction of analogy by an evidence that is stronger than it."²⁶⁸ Al-Ḥalwānī defines it as "the giving up of analogy for a stronger evidence from the Book, the *Sunnah*, or *ijmā'*."²⁶⁹ The Mālikī jurist, Ibn al-'Arabī defines it as "sacrificing some of the implications of an evidence by way of exception insofar as the exception opposes some of these implications."²⁷⁰

267. Al-Sarakhsī, *al-Mabsūt*, vol. 10, 151.

268. Al-Bazdawī, *Uṣūl al-Bazdawī* in 'Abd al-'Azīz al-Bukhārī, *Kashf al-Asrār*, vol. 4, 7-8.

269. Ibid.

270. Ibid.

From all these definitions it is obvious that *istihsān* means the preference of a stronger evidence over analogy. In other words, it means:

- The preference of *qiyās khafī* over *qiyās jalī*, as explained in the previous section.
- It also means following the requirements of a stronger general principle that requires something different from strict analogy.
- It may also mean the creation of an exception to a general principle due to a stronger evidence when the general principle is based upon analogy.

Al-Sarakhsī points out that some jurists have criticised *istihsān* on the grounds that analogy is being given up for the personal opinion of the jurists.²⁷¹ He responds that this is totally misfounded for how can a jurist give up a *hujjah* (legally admissible authority) for something that has no authority.²⁷² In modern times, the words "juristic preference" may have implied something similar.²⁷³ The reader should note that analogy is given up by the jurist only when he has a stronger evidence to rely on and this stronger evidence is one that is valid according to the *sharī'ah*. *Istihsān*, he says, is merely the comparison of two valid evidences (sources) and the preference of the stronger over the relatively weaker. It may also mean the restriction of one with the other. He concludes that "giving up of *qiyās* is sometimes due to the text, and at other times due to *ijmā'* or due to the principle of necessity."²⁷⁴

15.1.1 *Istihsān* is a method for looking at the consequences of a decision

Al-Sarakhsī explains that *istihsān* is a way of looking at the consequences of the application of two legal rules and the selection of one that creates ease and facility. He says that analogy is of two types. The first one is *jalī* or manifest where the strict rules of logic

271. Al-Sarakhsī, *Kitāb al-Uṣūl*, vol. 2, 199.

272. Ibid., 200.

273. A term used by Abdur Rahim in his excellent book *Muhammadan Jurisprudence* (Lahore, 1908), section on *istihsān*.

274. Al-Sarakhsī, *Kitāb al-Uṣūl*, vol. 2, 202.

require a certain thing, but the consequences of implementing it are injurious.²⁷⁵ On the other hand, the second type of legal reasoning called *qiyās khafī* may not appeal very much to the rules of logic, but its consequences are good and beneficial.²⁷⁶ Al-Sarakhsī says that:

Qiyās and *istihsān* are in reality two types of *qiyās*. One is *jālī*, but its effect is weak, therefore, it has been called *qiyās*. The other is *khafī* (concealed), but its effect is stronger, therefore, it has been called *istihsān*, that is, *qiyās mustahsan* (approved, preferred). The preference is due to the effect and not because it is manifest or concealed. It is like this world and the hereafter: this world is manifest whereas the hereafter is concealed.²⁷⁷

He gives a number of examples to explain this, and some of these are given below.

15.2 Examples of *istihsān*

1. Abū Hanīfah on deciding the issue of the person who eats during a fast out of forgetfulness, is reported to have said: "Had it not been for the report by the people, I would have said that he should repeat his fast." What he meant by this was that strict application of the rules of fasting requires that anyone eating food has broken the fast. A report from the Prophet (peace be on him) says that "liability for three things has been lifted from my Ummah: forgetfulness; mistake; and duress." This is a case of *istihsān* where a text has been preferred over analogy, and by means of which an exception has been created.²⁷⁸
2. *Qiyās* prohibits the contract of *salam*, because it involves delay in the exchange of food items listed in the tradition of *ribā*. There is, however, the tradition from the Prophet (peace be

275. Ibid., 203.

276. This reminds us of the often quoted remarks of Oliver Wendell Holmes that the life of the law has not been logic, but experience.

277. Al-Sarakhsī, *al-Mabsūt*, vol. 10, 151.

278. 'Abd al-'Azīz al-Bukhārī, *Kashf al-Asrār*, vol. 4, 7.

on him) that says that "he made an exemption in the case of *salam*."²⁷⁹

3. Similar to *salam* is the case of the contract of *istiṣnā'* or the manufacturing contract with advance payment. Analogy prohibits it on the basis of the same rules as in the case of *salam*. It is, however, permitted on the basis of *ijmā'* according to the Hanafīs.²⁸⁰
4. Analogy requires that ritually pure water should be used for ablution. In the case of wells in which dirt or carcasses of animals have fallen, following strict analogy would mean the non-use of these wells, and this would cause hardship to the people. The principle of necessity requires that use of these wells be permitted. This is done after observing formal cleaning methods.
5. The general principle of sale requires that a thing that does not exist cannot be sold. In the contract of hire (*ijārah*), the benefits or services that are being paid for do not exist at the time of the contract. The contract has been permitted on the basis of necessity, seeking support from the contract made by the Prophet Mūsā (Moses) as mentioned in the Qur'ān.²⁸¹

In all these cases, the consequences of the application of strict analogy have figured significantly in the decision and the decision preferred was one that had more healthy consequences for the people.

15.3 Types of *Istiḥsān*

We may now list the various methods through which *istiḥsān* is employed in legal reasoning.²⁸²

1. *Istiḥsān* through the text (*naṣṣ*). A general principle emerging from the texts may not permit something, yet another text may

279. Ibid.

280. Ibid.

281. Ibid.

282. The various types of *istiḥsān* have been explained by al-Sarakhsī, *Kitāb al-Uṣūl*, vol. 2, 202–208. See also 'Abd al-'Azīz al-Bukhārī, *Kashf al-Isrār*, vol. 4, 4–11.

provide an exception to this broad principle. An example of this is the contract of *salam* explained above; it has been permitted on the basis of a tradition when strict analogy would not permit it. Another example is that of *khiyār al-shart* (stipulated option). The general principle requires that all contracts become binding on their conclusion. A tradition permits the stipulation of an option for three days as an exception to this principle.

2. *Istihsān* on the basis of *ijmā'*. The example is again the contract of *istiṣnā'* mentioned above. The general principle forbids transactions in things that do not exist at the time of contract. An exemption was made on the basis of consensus for the manufacturing contract seeking strength from the exemption made for the contract of *salam*.
3. *Istihsān* on the basis of what is good (*ma'rūf*). Some writers have used the word '*urf*' (custom) to indicate that this one method of employing *istihsān*. Care has to be exercised in using such concepts. Al-Sarakhsī explains that one meaning of *istihsān* is where the *sharī'ah* is asking us to follow what is good and has left the determination of this *ma'rūf* to our opinion. For example, the words of the Qur'ān: *مَتَاعًا بِالْمَعْرُوفِ حَقًّا عَلَى الْمُحْسِنِينَ* (A gift of a reasonable amount is due from those who wish to do the right thing [Qur'ān 2:236]). So also the words: *وَعَلَى الْمَوْلُودِ لَهُ* (But he (to whom the child is attributed) shall bear the cost of their food and clothing [Qur'ān 2:233]). In such cases, the principle is that we follow what the *sharī'ah* would consider to be good, that is, we determine it in accordance with the general principles of the *sharī'ah*. It does not mean following each and every custom in accordance with what the people have been practising. Even if it is an age old custom and is generally considered good, the ruling of *sharī'ah* must be given before it can be accepted. The point is explained under the discussion of custom as a source of law.
4. *Istihsān* on the basis of necessity (*ḍarūrah*). The example of wells has already been given above. So also Imām Mālik permitted slight uncertainty that will not lead to a dispute where the general principle requires the avoidance of uncertainty (*gharar*) that will lead to a dispute.

5. *Istihsān* on the basis of *maṣlahah*. This is attributed to Imām Mālik. The example, however, is from the time of the Companions and pertains to the liability of artisans. The general principle required that artisans were not to be held liable for things handed to them, unless it could be proved that they were guilty of negligence. In other words, the burden of proof of negligence was placed on the customer. 'Alī, may Allah be pleased with him, changed the rule, because the artisans were misusing the facility. He placed the burden of proof on the artisans who were required to show that there had been no negligence. The Hanafīs call this *istihsān* on the basis of necessity of the preservation of wealth, which again is similar to *maṣlahah*.
6. *Istihsān* on the basis of *qiyās khafī*. The general rule required that if beasts of prey had drunk from water it was no longer pure. Strict analogy required that the rule be applied to domestic animals as well. Pondering over the issue the jurist finds that beasts of prey have soiled saliva, whereas domestic animals do not. The rule was not applied to such animals.²⁸³

15.3.1 Distinction between the various types

Al-Sarakhsī says that if *istihsān* is based upon the text or upon *ijmā*, the derived rule can serve as a further basis for analogy. In the other cases, like *istihsān* based upon necessity or concealed analogy, it is not possible to extend the new rule further.²⁸⁴

15.4 Justification of *Istihsān*

Some jurists, especially the Shāfi'īs, have objected to the use of *istihsān*. Imām al-Shāfi'ī said that *istihsān* is the following of one's personal whim and amounts to unjustified legislation. The dispute, however, appears to be around the literal meaning of the word *istihsān* rather than its technical meaning. The above examples show that many of the opinions stated above, especially those based on the texts, are held by the Shāfi'īs as well.²⁸⁵ *Istihsān* is an efficient

283. 'Abd al-'Azīz al-Bkhārī, *Kashf al-Asrār*, vol. 4, 9–11.

284. Al-Sarakhsī, *Kitāb al-Uṣūl*, vol. 2, 204.

285. See 'Abd al-'Azīz al-Bukhārī, *Kashf al-Asrār*, vol. 4, 18 for an explanation.

method of legal reasoning that ensures analytical consistency in the system and helps the jurist identify general principles and exceptions besides giving importance to the consequences of the decision.

REVIEW QUESTIONS

1. *Istihsān* is the preference of *qiyās khafī* over *qiyās jalī*. Elaborate.
2. *Istihsān* is a method for adopting suitable consequences of a decision. Elaborate.
3. What are the different types of *istihsān*?
4. What are the various methods or evidences relied upon for employing *istihsān*?

(Presumption of Continuity)

16.1 The Meaning of *Istishāb*

The word *istishāb* means the continuance of companionship. Technically it means the presumption of continuance of an earlier rule or its continued absence.²⁸⁶ In this sense it means the maintenance of a status quo with respect to the rule. The previous rule is accepted, unless a new rule is found that goes against it. As an easy reference one may refer to *istishāb al-hāl* as the "accompanying rule." In reality, *istishāb al-hāl* is not a source of law nor is it a source for establishing new rules; it is merely a set of presumptions. This will be obvious from the discussion below.

16.2 The Principles That Form the Basis of *Istishāb*

The following general principles form the basis of *istishāb*:

1. الأصل في الأشياء الإباحة—The original rule for all things is permissibility, that is, the presumption is that all things are

286. Al-Sarakhsī, *Kitāb al-Uṣūl*, vol. 2, 223.

permitted, unless prohibited by the *sharī'ah*. This rule applies to beneficial things alone, like food, drink and benefiting from all good things. It is known that spilling blood without justification is prohibited. The taking of wealth without a legal right is prohibited. Indulging in sex without lawful permission is prohibited. In general, the commission of any act that is injurious to another is prohibited, like defamation and all kinds of falsehood. This narrows down the scope of this principle. It is for this reason that some of the Hanafis are considered to maintain the opposite principle: *الأصل في الأشياء التحريم* (the presumption is that all things are prohibited, unless the *sharī'ah* permits them). If we assume that most beneficial things are originally permitted, it means that they have been permitted by the Lawgiver. Can the state today prohibit some of these things? It is obvious that the evidence to do this must come directly from the sources of Islamic law. This shows that the principle may have some problems.²⁸⁷ This is what Imām al-Ghazālī calls *naft' aslī* or the original vacuum. He maintains that this vacuum cannot be filled without a *dalīl* from the Qur'ān or the *Sunnah*.

2. *الأصل براءة الذمة*, also called *barā'ah asliyyah*. This principle means that there is no presumption of liability against anyone, and all liability has to be proved. This principle is more of a procedural nature and places the burden of proof on the person making a claim.
3. *اليقين لا يزول بالشك* (certainty does not give way to doubt). This means that once a thing is established beyond doubt, it can only be set aside through an equally certain evidence. If a person is sure that he has performed ablution and later doubts this he is presumed to be ritually pure till he is certain that he is not.

The above principles highlight the different ideas associated with the principle of *istiṣhāb*.

287. For further details, see Imran Ahsan Khan Nyazee, *Theories of Islamic Law*, 47–50.

16.2.1 Types of *Istishāb* and Their Legal Validity

The principle of *istishāb* in certain forms was accepted by al-Shāfi'ī and in some of its forms by the Ḥanafīs as well. The following discussion by al-Sarakhsī is expected to throw light on the issue.

Al-Sarakhsī first discusses a broad principle in legal reasoning where there is no *dalīl*. The issue is whether "no *dalīl*" can be a form of legal proof. He says that some jurists lay down the following principle: "No-*dalīl* is an evidence for purposes of defence, but not for asserting a claim."²⁸⁸ He maintains that an analysis of issues settled by the Shāfi'ī school shows that "it is a defensive presumption for the continuance of an existing rule, but not for establishing what was not there from the start." He then says that an analysis of cases in the Ḥanafī school shows that what al-Shāfi'ī states is valid only to the extent where the right of Allah is involved, but where the right of the individual is concerned it is not an evidence for either of the litigants, neither for purposes of defence and denial nor for purposes of establishing claims.

After dealing with this general approach, al-Sarakhsī states that "among the forms of reasoning without any *dalīl* is one called *istishāb al-ḥāl*." This type of reasoning he states is *bātil*.²⁸⁹ He then analyses the various types of *istishāb* to show what is acceptable and what is not. He divides *istishāb* into four types:

1. Where the absence of *dalīl* is known with a certainty. This type of certainty can come only from the texts themselves and should be similar to the words: قل لا أجد فيما أوحى إلى محرما (Say: "I find not in the message received by me any (meat) forbidden" [Qur'ān 6:145]). When it is known with a certainty that there is no evidence that will change the existing rule, and the *dalīl* of the existing rule is known, the continuance of the *ḥukm* is valid. This rule requires a thorough examination of a new issue in the light of the general principles of the *sharī'ah*.²⁹⁰
2. Where after pondering over the general evidences it is obvious to the jurist that there is an evidence that will change the existing *ḥukm*. This means a negative *istishāb* where a jurist wishes to allege a change in an existing *ḥukm*

288. Al-Sarakhsī, *Kitāb al-Uṣūl*, vol. 2, 215.

289. Ibid., 223.

290. Ibid, 224.

established through valid evidences. In such a case, it can only be used as a defence and not for establishing a claim, because the opponent will say that in his opinion there is a contrary evidence.²⁹¹

3. Where the continuance of a *ḥukm* is alleged without making an effort for seeking an evidence that will change the rule. According to al-Sarakhsī this is ignorance. The reason is that before searching for such an evidence the jurist cannot know whether the *ḥukm* has changed or an evidence is available for settling the case. This ignorance can in no way become an argument against others.²⁹²

4. *Istishāb* for establishing a rule *ab initio*. To use *istishāb* to establish a new rule is a grave mistake according to al-Sarakhsī. *Istishāb al-ḥāl*, he says, is the name for the continued following of a *ḥukm* that had been established through a valid evidence. Where there is no such *ḥukm*, the principle of *istishāb* does not apply.²⁹³ Those who maintain otherwise should examine the concept of *naḥī aṣlī* elaborated by al-Ghazālī.

16.3 *Istishāb al-Ḥāl* Cannot Establish a New Rule

The above discussion shows that *istishāb* is a procedural rule that creates a presumption for denying something, but not for establishing a claim. As a source of law, the principle has little value as it cannot be used to establish a new rule.

16.4 *Istishāb al-Ḥāl* and the Islamisation of Laws

The law obtaining in Pakistan is based on the English law. It is the practice of some institutions to say that where a direct evidence is not found to show that the law is against the Qur'ān and the *Sunnah* it

291. Ibid., 224

292. Ibid.

293. Ibid. This is something to be noted by writers today who attempt in a haste to legalise modern institutions.

will be accepted as valid. According to this reasoning some people can be heard saying that only 5% of the laws need to be changed, because they clash with the texts and the rest should be accepted as Islamised. In the same spirit, perhaps, the Council of Islamic Ideology says that they have reviewed a large number of laws.

The principle of *istishāb* asserts that the continuance of a rule is conditional upon the fact that it was originally established by an evidence from the *sharī'ah*. Does the acceptance of existing Western laws, on the grounds that they are not repugnant to the Qur'ān and the *Sunnah*, enough to justify their validity? Will it not be better if each and every law on the statute book is justified *ab initio* on the basis of the sources of Islamic law? Will this not help in the application of these laws by the judiciary who deal in general principles as well as rules? It is, therefore, suggested that the CII should publish its legal reasoning underlying its recommendations and so should the Islamic Fiqh Academy of the OIC.

REVIEW QUESTIONS

1. Elaborate the meaning of *Istishāb al-hāl*.
2. What are the principles associated with the "presumption of continuity"? What do you understand by the term *naḥī aṣlī*?
3. *Istishāb* is not a valid method for laying down new rules. Comment.

Maslahah Mursalah (Extended Analogy)

17.1 The Meaning of *Maṣlahah Mursalah*

Maṣlahah is defined in its literal sense as "the acquisition of *manfa'ah* (benefit) or the repulsion of *maḍarrah* (injury, harm)." In the technical sense it means "the preservation of the the purposes of Islamic law in the settlement of legal issues."²⁹⁴ The purposes of the law are interests recognised by the *sharī'ah*. *Maṣlahah mursalah* is also referred to as *istidlāl mursal*.

It was stated in the previous chapter that the jurists classify *maṣlahah*, in accordance with the acceptance and rejection by the *sharī'ah*, into four types:

1. The first type is *maṣlahah* acknowledged by the Lawgiver at the level of the lowest category (*naw'*). This is called *qiyās* (analogy).
2. The second type is *maṣlahah* that is acknowledged by the Lawgiver at the level of the genus (*jins*). This is called *maṣlahah mursalah*.

294. Al-Ghazālī, *al-Mustasfā min 'Ilm al-Uṣūl*, vol. 1, 286.

3. The third type of *maṣlaḥah* is one that is not acknowledged by the *sharī'ah*. This is called an interest that is rejected or *mulghā*.
4. The fourth type is a *maṣlaḥah* that is neither acknowledged by the *sharī'ah* nor is it rejected. This type of *maṣlaḥah* is called strange (*gharīb*).

In the present section the meaning of the second and the fourth types will be examined, that is, *maṣlaḥah mursalah* and *maṣlaḥah* that is strange or *gharīb*. The examination of the *gharīb* is expected to sharpen the understanding of *maṣlaḥah mursalah*.

17.2 The Conditions for the Validity of *Maṣlaḥah Mursalah*

Maṣlaḥah mursalah, sometimes referred to in the plural as *maṣāliḥ mursalah*, is a highly flexible and advanced type of analogy. It is employed when the jurist cannot find a rule for the case at hand through literal interpretation nor can he extend the meaning through strict analogy (*qiyās*), because there is no specific base (*aṣl*) from which he can extend the rule by analogy. In other words, individual or specific evidences do not control the law any more. The word *irsāl* means to "let go." We can say here that the individual or specific texts have "let go" of the issue or they have released their hold. The case now has to be settled by "looking at all the texts collectively." This is achieved by referring to the purposes of Islamic law or the *maqāṣid al-sharī'ah*.

The first thing that a jurist employing *maṣlaḥah mursalah* has to do is to "formulate a new principle that will control the problem being faced by him."²⁹⁵ The new principle he has formulated must meet the following three conditions identified by al-Ghazālī:

1. He has to make sure that the new principle he has formulated does not clash with a text (*naṣṣ*) or attempt to alter the implication of a text.
2. He has to make sure that the principle does not clash with the existing principles and propositions of Islamic law. Al-

295. For the details see Imran Ahsan Khan Nyazee, *Theories of Islamic Law*, 282–87.

Ghazālī calls these principles and propositions the *taṣarrufāt* (established practices) of the *sharī'ah*.²⁹⁶

3. The jurist must ensure that the principle he has formulated is not *gharīb* (strange) for the *sharī'ah*. This in reality means that the norm it promotes must be among the purposes of Islamic law recognised by the *sharī'ah*.

17.3 Illustrations of *Maṣlahah Mursalah*

The jurists provide a number of examples to elaborate the meaning of *maṣlahah mursalah*. Some of these are listed below:

1. The compilation of the Qur'ān after the death of the Prophet (peace be on him). Although the Prophet had indicated the order of the *sūrah*s, he had not given the orders for its compilation in the form of a book between two covers. The Companions were, therefore, not sure whether this should be done, because it was something that the Prophet had not done himself. They decided that it was essential to gather it and compile it in the "interest of the preservation of *dīn*." History has shown that this was a very wise decision.
2. The rule for murder (*qatl 'amd*) provided in the texts was that one life could be taken for one life by way of retaliation. It was not clear whether a number of persons could be subjected to *qisās* when they participated in killing a single person. 'Umar decided that all of them should be put to death. This rule it is said was based on the "preservation of life," which is a purpose of Islamic law. This is strengthened by the words of the Qur'ān: "In retaliation there is life for you." 'Umar is reported to have said (in this decision) that if all the people of San'ā' had conspired to kill a single person he would put all of them to death.
3. The rule for artisans accepting goods from people for doing work on such things was that they were not required to show negligence if the thing was destroyed. The burden of proving negligence was on the customer. The artisans started misusing

²⁹⁶ Ibid., 286.

this facility. The Companions, therefore, decided to change the rule. After this decision, if a thing was destroyed in the hands of the artisans, the artisan would be required to show that there was no negligence on his part. The decision is based upon the need to "preserve the wealth of the community." This decision was given by 'Alī (R).

4. Al-Ghazālī has stated that on the basis of *maṣlahah mursalah* it is permitted to the ruler to impose taxes if the coffers are empty and he needs money for *jihād* or for preserving the security of the Muslim *Ummah*.
5. There is no penalty in the Qur'ān for drinking of wine. In the *Sunnah* the traditions vary, with some providing 80 lashes and others 40. 'Alī (R) fixed the penalty at 80 on the analogy of *qadhf*. This is the most elaborate and instructive of the examples and is explained below

These examples may appear simple in the identification of the rule, but the mental process required for employing it is somewhat complex. The process is quite similar to what is referred to in Western law as "reasoning from legal principles." This process is highlighted in the examples below. The first case is that of fixing of 80 lashes as a penalty for drinking wine. This is followed by two examples, one of *gharīb* and the other of *mulghā*. These two examples are hypothetical and have been constructed by al-Ghazālī to show the operation of the conditions.

17.4 The Process of Using *Maṣlahah Mursalah*

In this example it is shown that the jurist usually has a principle that is valid. He also has another principle about the validity of which he is not sure. The jurist makes a third broader principle that accommodates the two existing principles within it. In law this is considered to be a broad form of analogy and is called reasoning from legal principles.

The purpose of this example is also to show how the three conditions identified by al-Ghazālī above are satisfied. These conditions are that the new principle should not be *gharīb*, it should not conflict with a text, and it should not attempt to alter the

implications of the text, that is, of other established principles, and that it should conform with the *maqāsid*.

The case, as is well known, was decided by 'Alī (R). The drinking of wine is prohibited by the texts, however, no fixed penalty is prescribed. The penalties that appear in the traditions vary and are not fixed. He is reported to have said:

He who drinks is intoxicated; he who is intoxicated raves; he who raves slanders; I (therefore) uphold the penalty of the slanderer for him.

This, according to al-Ghazālī, is based on *maṣlahah mursalah*. The principle quoted in the above statement is not mentioned in the texts, nor can it be derived from a specific rule. The first principle that the jurist possesses here and under which the penalty of slander *qadhif* is covered is that the "person who slanders is to be awarded the penalty of *qadhif* (slander)." This is explicitly mentioned in the Qur'ān, and the penalty is eighty stripes.

Al-Ghazālī says that this principle is *munāsib* (suitable), that is, it conforms with the purposes of the law. However, if we attempt to apply it to the case of the person who drinks, it does not appear to be *mulā'im* (compatible) with the general practices and principles (*taṣarrufāt*) of the law. The reason is that it would amount to giving him a penalty for an offence that he did not commit; namely, *qadhif*. Al-Ghazālī maintains that when probed deeply we find it to be *mulā'im* (compatible). This is based on the following legal reasoning.

The law, he says, often assigns the outward indication (*mazīnnah*)²⁹⁷ of a thing the *ḥukm* of the underlying intended act or happening. Thus:

- penetration is considered to stand in place of actual ejaculation for purposes of bathing to achieve ritual purification;
- *bulūgh* (the age of puberty), which is the outward indication of discretion and maturity, is assigned the *ḥukm* of actual discretion to determine majority;
- sleep is assigned the *ḥukm* of ritual impurity, because one who sleeps is liable to become ritually impure.

297. In the literal sense, it would be the outward location or incidence of the *ḥukm*.

Examining the last case, the reasoning would be:

He who sleeps becomes ritually impure; he who becomes ritually impure performs ablution; therefore, he who sleeps is to perform ablution (for the next prayer).

This is the same as saying:

He who drinks is intoxicated; he who is intoxicated raves; he who raves slanders; therefore, he who drinks is to be awarded the penalty for slander.

This reasoning leads to the conclusion that drinking of *khamr* is the outward indication of the loss of one's senses that leads to slander and finally to enmity and hatred. As a punishment for slander has been provided by the texts, it should be awarded for drinking wine, which is its outward indication. A new, and much wider, principle has now been formulated. The larger principle now includes both cases of *qadhf* (slander) and *shurb* (drinking).

Further, we notice that this case meets all three conditions prescribed by al-Ghazālī, that is, it is not *gharīb*, it does not conflict with an explicit text, and it does not alter the implications of the general propositions of law. The case, then, falls within the principle of *maṣlaḥah mursalah* proper.

It may be mentioned here that this illustration is not intended to show that a new rule was laid down. The penalties are provided in the texts of the *Sunnah*, and this legal reasoning was used as an aid to interpret the texts for choosing the appropriate penalty. Establishing a new rule for the criminal law through analogy or other forms of legal reasoning is not approved by all the jurists as it is against the principle of *nulla poena sine lege*, which is approved by Islamic law.

17.5 Identifying *Maṣlaḥah* That is *Gharīb*

The second example is being stated here to show the operation of the three conditions stipulated by al-Ghazālī, as well as further conditions on the basis of which a case that appears to be based on the *mursal* principle, but which is actually *gharīb*, may be accepted. The case is purely hypothetical.

Al-Ghazālī gives the example of Muslims besieged in a fort by the enemy. The enemy is attacking this fort and is using Muslim captives as shields in the hope that the Muslims in the fort will not

fire at them. The question is should the Muslims fire at the enemy, even if the Muslims being used as human shields are killed?

This case violates all three conditions that al-Ghazālī has stipulated for *maṣlahah mursalah*.

- First, it conflicts with the texts that clearly lay down that no one is to be killed intentionally.
- Second, it violates the general propositions of the law, which prescribe that only those persons can be killed who have committed an offence. It is, therefore, not *mulā'im* (compatible) with the general principles, which means it is *gharīb* or unacknowledged by the law.
- Third, by permitting the killing of Muslims under certain circumstances due to necessity, it attempts to alter the meaning of the implications of the texts, which is the third condition stipulated by al-Ghazālī.

Al-Ghazālī appears to be saying, although he does not say it explicitly, that even such a case may be drawn into the fold of the *istidlāl mursal*, which is *mulā'im*, but with additional conditions. These conditions are:

- that the case should lie in the area of the *darūrat* (necessities), that is, it should be one of the five top purposes of the Islamic law;
- that it should be definitive (*qaṭ'ī*), that is, we should be certain about the resulting consequences;
- and it should be general (*kullī*), that is, it should affect the entire Muslim *ummah* and be a public interest.

This hypothetical case can be approved only if it assumes that the entire Muslim community is being attacked at once. If the entire community is destroyed or eliminated, Islam as a religion will disappear. If the entire Muslim *ummah* is threatened, this case would lie in the area of the *darūrat*, as it affects the first primary purpose of the law, that is, the preservation and protection of *dīn*. The second assumption is that we are certain that if we shoot at the disbelievers, who are using the Muslim captives as shields, they will be driven away and the Muslims, at least some of them, will be

saved. This certainty about survival makes the case definitive (*qaṭ'ī*). The third assumption is the same as the first that the entire Muslim community is being attacked. Thus, there is the interest of a few Muslims pitted against the community as a whole, and the latter is to be preferred.

With these three conditions, then, this *mursal gharīb* may be accepted, however, it can be seen that the three conditions are impossible to meet in this case, even though they are hypothetically possible.

17.6 Identifying *Maṣlahah* That is Rejected (*Mulghā*)

As compared to the above hypothetical case, al-Ghazālī presents another hypothetical case. The case is that of a number of people in a boat who are cast out at sea and are about to die from hunger.²⁹⁸ They cast lots to choose one of their companions who will be killed and his flesh will be eaten so that the others are saved. For legality, this requires a *gharīb* rule that is rejected by the *sharī'ah*, because it does not meet the three additional conditions imposed by al-Ghazālī.

- First, though it is obligatory on the people in the boat to save their lives even if they have to consume *ḥarām*, they cannot kill someone else to do so. The reason is that killing another person is prohibited without legal justification. Saving themselves by killing one whose life the *sharī'ah* protects is not a purpose defended by the *sharī'ah*. In other words, it is not *darūrī*.
- Second, the people in the boat are not sure that they will be saved even if they consume the flesh of the person they kill. It is possible that they will stay at sea and will not be saved. The issue is, therefore, not *qaṭ'ī*.
- Third, and this is most important, the issue concerns only a few individuals in the boat and not the entire Muslim Ummah. It is, therefore, not *kullī* and, thus, cannot be a public interest.

298. It would be interesting to compare this with Lon Fuller, "The Case of Speluncan Explorers" in Davenport, *Voices in Court* (New York: The Macmillan Company, 1957), 514.

Killing of one individual here cannot be permitted by the *sharī'ah* as the issue fails to meet the additional conditions identified by al-Ghazālī. The interest of these individuals is thus rejected.

17.7 Justification of *Maṣlahah Mursalah*

The main objection against the use of *maṣlahah mursalah* in particular and the concept of *maṣlahah* in general is that it is based upon the *ḥikmah* (wisdom) of the rule rather than on the 'illah.²⁹⁹ The jurists have been very cautious in the use of *ḥikam* for the determination of laws. This argument is based on the use of strict analogy (*qiyās*) as the sole rational secondary source for the derivation of rules. The principle of *maṣlahah* is more flexible than strict analogy and is based on an interplay of general principles and the purposes of Islamic law. The general principles and the *maqāṣid* are based on the *ḥikmah* underlying the various rules.

Another argument that is sometimes advanced is that it will be misused by ignorant people. The response to this is that the legal system must ensure that its professionals observe the proper methodology that meets the conditions imposed above. Further, the principle is to be used mostly by the judges of the Higher Courts of the country and by the lawyers who assist these Courts. It is not upto every person to employ legal reasoning.

REVIEW QUESTIONS

1. What is the meaning of *maṣlahah mursalah*? What is the meaning of the term *mursalah* within this term?
2. *Maṣlahah mursalah* is used when there is no supporting *aṣl*. Elaborate.
3. Describe the process of using *maṣlahah mursalah*?
4. How is a new rule justified by the jurist on the basis of *maṣlahah mursalah*?
5. What is *maṣlahah* that is *gharīb*?

299. For a detailed discussion see al-Rāzī, *al-Maḥṣūl*, vol. 5, 287 passim.

Sadd al-Dharī'ah (Blocking the Lawful Means to an Unlawful End)

The word *dharā'ī'* is the plural of *dharī'ah* (means to an end). It is the means to an end irrespective of the end being lawful or unlawful, beneficial or harmful. The term *sadd al-dharī'ah*, however, means "blocking the lawful means to an unlawful end." As compared to this, the term *fath al-dharī'ah* is also used, which means "permitting the unlawful means to a lawful end."

The principle of *sadd al-dharī'ah* is attributed to Imām Mālik. Some modern writers insist that its use can be seen in the rulings of most schools, however, the classical jurists have not acknowledged or even discussed it. It has been given attention by al-Shāṭibī.

The principle is not concerned with unlawful acts, because those are prohibited anyway. It is concerned with lawful acts that may be prohibited as they lead to unlawful results. For example, the cultivation of poppy has been banned in many countries, because it is leading in most cases to the production of opium and heroin, which is a deadly drug that is being misused. Here an act that was basically lawful has been declared unlawful. This prohibition in the terminology of the jurists would be called *sadd al-dharī'ah* or the "blocking of lawful means to an unlawful end." The question in each individual case would be: Is the end unlawful according to the

sharī'ah?³⁰⁰

18.1 Types of Lawful Acts

For purposes of this principle, the jurists divide acts into three kinds:

1. **Those that rarely lead to harmful results.** The interest (*maṣlahah*) to be secured in such acts is greater than the injury (*mafsadah*) to be sustained. Examples are: looking at a woman to be proposed to and maintaining vineyards for grapes. The injuries that may arise from these acts are less than the benefits. Thus, the first usually leads to marriage and lawful relations, though it may sometimes lead to illicit relations as well. Grapes are used for a large number of purposes though they may also be used for making wine. The benefits in both are more than the harm.
2. **Those that usually lead to harmful results.** The injury in such acts is much more than the benefits to be derived. Examples are: the sale of arms during waves of terrorism and rebellion; renting out property to one who will use it for unlawful purposes, like maintaining a brothel; like the selling of grapes to a winery; like the sowing of poppy from which heroin will be made.
3. **Those in which there is an equal probability of harm and benefit.** This is a difficult area. Examples are: Marrying a woman with the intention of divorce so as to enable her to remarry her previous husband; prohibiting multiple transactions that may lead to *ribā* when combined, like *bay' al-'inah*.

18.2 Disagreement of Jurists About the Legality of the Principle

Out of the three types of lawful acts discussed above, there is no dispute that the first type do not fall within the purview of the

300. The reader will notice that this principle might clash directly with the principle of *istishāb*, which implies that lawful acts can only be prohibited on the basis of a *dalīl* from the *sharī'ah*.

principle of *sadd al-dharī'ah*. The jurists disagree about the remaining two categories, that is, the second and the third. The Mālikīs and Hanbalīs say that acts in these two categories may be prohibited if they are leading to unlawful means. The Shāfi'īs and the Zāhirīs³⁰¹ say that these are lawful acts and they cannot be prohibited.

Those who prohibit them argue that *sadd al-dharī'ah* is an acknowledged principle of *sharī'ah* and as long as these acts lead to unlawful results, they should be prohibited. For the last category of acts, the Mālikī jurists would say that "repelling of injury is to be accorded greater weight than the securing of benefit."

The root of the problem is based upon two theories in the law of contracts, because most of the acts mentioned above are contracts and are mostly lawful transactions (except for looking at a woman for purposes of marriage). These are the objective theory of contracts and the subjective theory of contracts. According to the objective theory, the law goes by the obvious meaning of the words used for offer and acceptance. It does not attempt to investigate the inner intention of the contracting parties. If the parties are entering into a contract that is lawful on the face of it, this theory will permit it. As compared to this, the subjective theory tries to investigate the inner intention of the parties as well. If it can be shown that the ultimate purpose is unlawful, the subjective theory will declare the contract unlawful. Take the case of *bay' al-'īnah* or the buy-back agreement, for instance. It consists of two separate transactions. If A sells a book to B for \$100 in cash paid on the spot, and then after a few minutes B sells the book back to A for credit of one year for a sum of \$120, the two separate transactions when combined are a transaction for lending on interest at 20%. Imām al-Shāfi'ī following the objective theory looks at them as two separate transactions having their own offer and acceptance; he does not bother about their real inner intention (which here appears to be the conclusion of an interest bearing transaction).

The principle of *sadd al-dharī'ah*, then, revolves around these theories. The Mālikīs and Hanbalīs favour the subjective theory and declare the principle of *sadd al-dharī'ah* to be lawful. The rest of the schools favour the objective theory and, therefore, find it difficult to accept this principle. As the bulk of the rulings in Islamic law are

301. A Sunni school now extinct. As stated in the previous note, al-Shāfi'ī cannot accept this principle, because it will clash with the principle of *istishāb*, which he upholds.

based upon the objective theory, it would be better to side with those who favour this theory.

The two sides provide detailed arguments for the acceptance or rejection of the principle. It is, however, suggested that the principle should not be rejected outright or even accepted outright. The principle should be linked with empirical evidence. If all the scientific and other evidence is pointing to the fact that an act is certainly leading to greater harm than benefit, the state should consider prohibiting the act in the greater public interest.

Although the jurists have deemed *sadd al-dhari'ah* to be an independent principle, there is no reason why it cannot be considered part of *maṣlahah mursalah*.

This brings to an end the study of the rational secondary sources in Islamic law. Some modern writers have also tried to include the use of legal fictions (*hiyal*) in such sources. Legal fictions, however, are procedural devices and part of the law of conveyancing. As such they cannot be considered a source of Islamic law.

REVIEW QUESTIONS

1. What do you understand by the term *sadd al-dhari'ah*?
2. Analyze the type of lawful acts so as to identify those to which the principle of *sadd al-dhari'ah* can be applied.
3. The principle of *sadd al-dhari'ah* is disputed by some. Elaborate.

Other Secondary Sources

The previous chapters were devoted to the study of the rational sources or the rational secondary sources. There are a few other secondary sources that depend upon transmission (*naql*) and not on methods of reasoning. These will be considered in this chapter. The sources are the opinion of a Companion, earlier scriptures and custom.

19.1 Companion's Opinion (*Qawl al-Ṣaḥābī*)

A Companion, according to most jurists, is someone who saw the Prophet (peace be on him), believed in him, supported him and was in association with him for some time so that he could understand something of the ways of the *sharī'ah* from him.³⁰² After the death of the Prophet (peace be on him), it was the Companions who interpreted the law and developed it where needed. They undertook *ijtihād*, issued rulings, settled cases and became a source of guidance for later generations.

302. Al-Sarakhsī, *Kitāb al-Uṣūl*, vol. 2, 108–109.

19.1.1 Views of those who accept it as a source

The main issue faced by the jurists under this source is whether *the opinion of a Companion is to be preferred over analogy (qiyās) undertaken by a later jurist?* In general, the Ḥanafīs maintain that if there is a clash between the opinion of a Companion and analogy, the analogy is to be given up and the opinion of the Companion is to be followed. The Shāfi'īs uphold that it is not binding on the jurist to give up analogy, he may or may not do so at his discretion.

Al-Sarakhsī, the Ḥanafī jurist, has the following to say:

In the opinion of a Companion there is a chance that it is based on a narration of the revelation. It appears from their practice that if one of them possessed a text, he would either narrate it or he would base his opinion on it. There is no doubt that the opinion in which there is a chance of transmission from the Prophet (peace be on him) (the possessor of the revelation) is to be preferred over mere opinion. It is in this context that the preference of the opinion of the Companion over opinion is analogous to the preference of a *khbar wāḥid* over analogy. And even if their view was based upon analogy, their view is stronger than all who are not Companions. The reason is that they were witness to the practice of the Prophet (peace be on him) in the elaboration of the *aḥkām* and they saw the events that were the cause of revelation. It is on this basis that their view is to be preferred over the view of those who did not witness any of these things.³⁰³

The second area in which the Ḥanafīs maintain that it is binding to follow the opinion of a Companion is where the Companion is talking about quantities, numbers and periods.³⁰⁴ The reason is that analogy has no role to play in this area, and most jurists are agreed that the opinion of a Companion is to be followed. Al-Sarakhsī points out that it is for this reason that we have followed the opinions of Companions in the following cases (examples).³⁰⁵

- The rates of *zakāt*.
- The determination of the amount of dower.
- The determination of the minimum and maximum for the period of menstruation.

303. Ibid., 108.

304. Ibid., 111.

305. Ibid., 111–13.

- The determination of the post-natal period.
- The determination of the maximum gestation period.

19.1.2 Views of those who do not consider it binding

Those who do not consider the opinion of a Companion to be binding maintain that they are under an obligation to follow the Qur'ān and the *Sunnah*, as well as those sources that are indicated by these two primary sources. These primary sources have not asked us to follow the opinion of a Companion as a source of law.³⁰⁶

19.1.3 Opinions of the Followers of the Companions (Tābi'ūn)

Al-Sarakhsī maintains that there is no dispute that the opinions of the Tābi'ūn are not binding in the sense that analogy should be given up in their preference. If one of them holds an opinion contrary to the consensus of the Companions, his opinion is not given weight in opposition to theirs.³⁰⁷

19.2 *Shar' Man Qablanā* (Earlier Scriptures)

The meaning of *shar' man qablanā* is the body of rules ordained by Allah for the nations before the Muslim *ummah* through revelation to their Prophets and Apostles. Muslim jurists have differed somewhat about the relationship of such laws with the *sharī'ah*, as well as about their binding force for the Muslims. Some maintained that it was abrogated by our *sharī'ah*, while others said that those parts that were not abrogated are binding on us.

19.2.1 Types of earlier laws

1. Rules that have been repeated in the Qur'ān or the *Sunnah* and made obligatory. These texts themselves provide the evidence about the binding nature of the laws and we do not have to refer to the earlier scriptures. These laws are binding on us just as they were binding on the earlier nations. Example: Fasting during Ramaḍān [Qur'ān 2 : 183].

306. Ibid., 106.

307. Ibid., 114–16.

2. Rules that have been described in the Qur'ān or in the *Sunnah*, but are considered abrogated. Rules about carrion, blood, flesh of swine and the like.
3. Rules that are not mentioned in the Qur'ān and the *Sunnah*, but are found in the earlier Scriptures. There is no dispute that these are not binding on us.
4. Rules that are mentioned in the Qur'ān and the *Sunnah*, but there is no evidence whether or not they are to be followed. The example given by some jurists under this heading is that of *qisās* (retaliation). There is, however, ample evidence in the texts that it is binding on us.

This shows that the real source for all such rules are the Qur'ān and the *Sunnah*, and they become binding on the Muslims when these primary sources grant the authority.

19.2.2 Reason why the earlier laws are not binding

To elaborate the basis for not accepting the rules in the earlier Scriptures, Al-Sarakhsī makes the following statement:³⁰⁸

The most authentic statement in our view is that what is confirmed as an earlier law through the Book of Allah, or the elaboration by the Prophet (peace be on him), becomes a law for us, unless it is abrogated. As for what is transmitted by the People of the Book or is understood by the Muslims from their Scriptures is not binding on us, *because of the established evidence that they altered their Books*. Their transmission is, therefore, not accepted on the assumption that what is transmitted is entirely changed.

19.3 Custom ('Urf)

The earlier jurists make only a passing reference to custom, and they have never considered it as a source of law. In modern times, under the influence of Western jurisprudence, some writers have given more importance to custom as a source of law. Custom has been a source of law, but in a limited sense. This will be obvious from the discussion below.

308. Ibid., 99-100

The word '*urf*' is usually associated with the word *ma'rūf* (good) in the texts. In this sense, it is what the *sharī'ah* considers to be good, and not what human reason or the prevalent practices consider to be good. If some of these practices are approved by the *sharī'ah*, then, they are acceptable to the law. The process of approval, prior to acceptance, is necessary.

19.3.1 Types of '*urf*'

There are different ways of classifying '*urf*', and each classification is intended to bring out its nature.

19.3.1.1 Division into usage and practice

'*Urf*' is divided first into '*urf qawli*' (usage) and '*urf fi'lī*' (practice).

'*Urf qawli*'. The first type, or usage, may be analysed into the following types:

1. The meaning of terms during the period of the Prophet (peace be on him). This is the usage that was prevalent during the time of the Prophet. The meaning assigned to words at that period is used to understand the true intention of the Lawgiver.
2. Technical terms of the law or '*urf shar'ī*'. The jurists usually employ the term '*urf shar'ī*' to denote the technical sense that a term may have acquired in Islamic law. This technical meaning is usually different from the literal meaning in which the term is used. Thus, the word *ṣalāt* means any type of prayer or supplication, but in the technical sense it means the entire form of the prayer that has been transmitted from the Prophet (peace be on him). The word *ribā* literally means excess and in general usage it means "interest" in the sense of *sūd* in Urdu, but in the technical sense it has a much wider and comprehensive meaning assigned to it by the Qur'ān and the *Sunnah*. For legal purposes, it is the '*urf shar'ī*' that has to be followed.
3. Usage in a local area for purpose of transactions. It is obvious that people using languages other than Arabic, undertake their transactions in their own language. Islamic law will recognise the meaning in such usage, but only if it conforms with the

forms prescribed by the law, that is, if such use of words achieves the same purpose as the one prescribed. If it does not, the law will declare it *fāsid*. In other words, such usage has to be measured against the permitted rules before it can become permissible. It will not be recognised automatically.

It is obvious that none of these can be called a source of law in the sense that we understand custom to be a source in Western law.

'Urf fi'lī (practice). This is of two types:

1. **The practices prevalent during the period of the Prophet (peace be on him).** These practices were either approved by the Prophet (peace be on him), either expressly or tacitly, or they were rejected. As such they became part of the *Sunnah*. The source of the law here was not custom, but the *Sunnah*, even though customs and practices did provide the raw material. Each practice was subjected to the norms of the *sharī'ah* by the Prophet himself, and was either accepted or rejected.
2. **Practices during the later periods.** These practices were faced by the jurists like new instances or cases and each one of them was subjected to scrutiny by the jurists. The jurists either justified these practices in the light of the principles of Islamic law or rejected them in the light of the same principles. No practice could automatically be approved just because it was a long standing custom.

We see from the above that though custom may provide the raw material to be considered by the jurist, no practice or custom can automatically be accepted as law. It has to be analysed and Islamised before it may be accepted. It may be noted that even in Western law, customs become law only when they are recognised by courts as such, and recognition means weighing them against the rest of the law for compatibility.

19.3.2 Can the Western laws obtaining in Pakistan be treated as custom?

It has been suggested by some that all the laws prevalent in Pakistan may be treated as *'urf* (custom) and thus declared valid. The idea

behind this suggestion is that customs attain automatic validity just by being called customs. The idea is used by those who maintain that only five percent of the law needs to be changed for purposes of Islamisation and the rest should be left untouched. This is not correct. Each prevalent law must be treated as a new case and be analysed in the light of the principles of Islamic law. It is not sufficient to say that there is nothing in the Qur'ān and the *Sunnah* that clashes with a certain law, that is, the law has passed the repugnancy test. This way the law will not develop further on Islamic lines. Each law must be shown to be valid according to a principle of Islamic law. The Courts will then be able to develop the law and the principles further.

REVIEW QUESTIONS

1. What is the status, among different schools, of the opinion of a Companion as a source of law?
2. Write a note on the earlier scriptures as sources of Islamic law.
3. Explain the meaning of '*urf*' as a source of law. Compare it with custom as a source in English common law.
4. What are the different types of '*urf*' and what is their significance for Islamic law?
5. Can the existing laws based on the English common law be treated as '*urf*'? Answer the question by explaining the meaning of both '*urf*' and custom in some detail.

